

MEMORANDA

OF

DECISIONS RENDERED DURING THE PERIOD EMBRACED IN THIS VOLUME

[999 NE2d 159, 976 NYS2d 681]

409-411 SIXTH STREET, LLC, Appellant, v MASAKO MOGI, Respondent.

Decided October 10, 2013

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered October 2, 2012. The Appellate Division (1) reversed, on the law and the facts, an order of the Appellate Term of the Supreme Court in the First Judicial Department (27 Misc 3d 126[A], 2010 NY Slip Op 50511[U] [2010]), which had affirmed a judgment of the Civil Court of the City of New York, New York County (Jean T. Schneider, J.), entered after a nonjury trial, awarding petitioner possession of the subject premises in a non-primary residence holdover proceeding, (2) denied the petition, and (3) dismissed the proceeding. The following question was certified by the Appellate Division: “Was the order of this Court, which reversed the order of the Appellate Term of the Supreme Court, First Department, properly made?”

409-411 Sixth St., LLC v Mogi, 100 AD3d 112, reversed.

HEADNOTE

Courts — Appellate Division — Standard of Review of Appellate Term Decision

In a summary holdover proceeding to evict respondent tenant from her rent-stabilized apartment in New York City on the ground that she was not using the apartment as her primary residence, the Appellate Division, which reversed an order of the Appellate Term affirming a judgment in petitioner landlord’s favor, applied the incorrect standard of review. In primary residence cases, where the Appellate Division acts as the second appellate court, the decision of the fact-finding court should not be disturbed upon appeal unless it is

obvious that the court's conclusions could not be reached under any fair interpretation of the evidence, especially when the findings of fact rest in large measure on considerations relating to the credibility of witnesses. However, the Appellate Division did not apply that standard of review, instead substituting its own view of the trial evidence. Accordingly, the case was remitted to the Appellate Division to apply the appropriate standard of review.

APPEARANCES OF COUNSEL

Belkin Burden Wenig & Goldman, LLC, New York City (*Magda L. Cruz* of counsel), for appellant.

De Castro Law Firm, Woodside (*Steven M. De Castro* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed, with costs, and the matter remitted to the Appellate Division for further proceedings in accordance with this memorandum. The certified question should not be answered upon the ground that it is unnecessary.

Landlord 409-411 Sixth Street, LLC commenced a holdover proceeding to evict tenant Masako Mogi from her rent-stabilized apartment in New York City on the ground that she was not using the apartment as her primary residence as required by Rent Stabilization Code (9 NYCRR) § 2524.4. After a bench trial, New York City Civil Court found in landlord's favor, determining that tenant had not used the apartment as her primary residence. The Appellate Term affirmed the judgment, concluding that a fair interpretation of the evidence supported the Civil Court's determination (27 Misc 3d 126[A], 2010 NY Slip Op 50511[U] [App Term, 1st Dept 2010]). In a 3-2 decision, the Appellate Division reversed the Appellate Term order, denied the holdover petition, and dismissed the proceeding (100 AD3d 112 [2012]).

We agree with the dissenting opinion that the Appellate Division applied the incorrect standard of review to the Appellate Term order. In primary residence cases, where the Appellate Division acts as the second appellate court,

“the decision of the fact-finding court should not be disturbed upon appeal unless it is obvious that the court's conclusions could not be reached under any fair interpretation of the evidence, especially when

the findings of fact rest in large measure on considerations relating to the credibility of witnesses” (*Claridge Gardens v Menotti*, 160 AD2d 544, 544-555 [1st Dept 1990]; see also *Thoreson v Penthouse Intl.*, 80 NY2d 490, 495 [1992]).

The Appellate Division did not apply this standard of review to this case, instead substituting its own view of the trial evidence. Accordingly, the case needs to be remitted to that Court to apply the appropriate standard of review.

Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, PIGOTT, RIVERA and ABDUS-SALAAM concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed, with costs, case remitted to the Appellate Division, First Department, for further proceedings in accordance with the memorandum herein, and certified question not answered upon the ground that it is unnecessary.

[999 NE2d 156, 976 NYS2d 678]

MERRILL LYNCH, PIERCE, FENNER & SMITH, INCORPORATED, et al., Respondents, v GLOBAL STRAT INC., Also Known as GLOBAL STRATEGIES INC., et al., Defendants, and EZEQUIEL NASSER et al., Appellants. (And Another Action.)

Argued September 10, 2013; decided October 10, 2013

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered April 10, 2012. The Appellate Division (1) affirmed an order of the Supreme Court, New York County (Ira Gammernan, J.H.O.), which had directed entry of a default judgment against the individual defendants and awarded damages to plaintiffs, and (2) modified, on the law, an order of that court which had granted so much of defendants’ motion as sought to dismiss the eighth cause of action and to dismiss the complaint in its entirety as against defendant Albert Nasser for lack of personal jurisdiction. The modification consisted of denying the motion as to the individual defendant. The Appellate Division otherwise dismissed the appeal from that order as academic.

Merrill Lynch, Pierce, Fenner & Smith, Inc. v Global Strat Inc., 94 AD3d 491, modified.

HEADNOTE

Disclosure — Penalty for Failure to Disclose — Abuse of Discretion — Grant of Default Judgment

In an action charging defendants, holding companies and their individual “alter egos,” with fraud and related causes of action arising from defendants’ investment activities, Supreme Court abused its discretion in directing entry of a default judgment against the individual defendants, since the penalty imposed for defendants’ alleged failure to respond to plaintiffs’ discovery demands was not commensurate with the alleged disobedience, i.e., failure to produce documents that plaintiffs claimed were in the individual defendants’ possession with respect to the corporate defendants. The record evidence showed that plaintiffs originally sought only the imposition of a substantially lesser penalty, namely, depositions of the individual defendants in order to ascertain whether they complied with the discovery demands. Supreme Court specifically referred the matter to a Referee to determine whether the depositions were warranted, but the Referee provided no basis for his conclusion concerning the individual defendants’ alleged noncompliance. Thus, there was no record support for the granting of a default judgment against the individual defendants who had yet to answer and against whom a stay of discovery on the claims against them had been granted.

APPEARANCES OF COUNSEL

Shibolet LLP, New York City (*Charles B. Manuel, Jr.*, and *Robert A. Rosenberg* of counsel), for appellants.

Bingham McCutchen LLP, New York City (*Kenneth I. Schacter, Timothy J. Stephens* and *Leigh M. Nemetz* of counsel), and *Bressler, Amery & Ross, P.C.* (*Brian F. Amery* and *Dominick F. Evangelista* of counsel), for respondents.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be modified, without costs, by vacating the judgment of Supreme Court and remitting to that court for further proceedings in accordance with this memorandum and, as so modified, affirmed.

Merrill Lynch, Pierce, Fenner & Smith, Inc. and Merrill Lynch Capital Services, Inc. (collectively, Merrill Lynch) commenced this action against Ezequiel, Raymond, Albert and Scarlett Nasser (collectively, the Nassers) and the Nassers’ offshore personal holding companies and corporations (Nasser entities), asserting that they engaged in “high-risk” investment activities through their Merrill Lynch accounts, resulting in a net deficit balance of over \$68 million. In addition to bringing claims against the Nassers in their personal capacities under an “alter ego” theory, Merrill Lynch asserted claims against certain of the

Nassers and the Nasser entities for fraud, fraudulent conveyance and breach of fiduciary duty. The Nasser entities answered the complaint, with counterclaims; the Nassers in their personal capacities moved to dismiss the complaint for, as relevant here, lack of personal jurisdiction.

During the pendency of the motion to dismiss, Merrill Lynch served notices for discovery and inspection on the Nasser entities and the Nassers personally, excepting Scarlett. The Nassers were granted a stay of discovery on the claims against them personally pending the outcome of the motions to dismiss.

Four months after Merrill Lynch served its discovery notices, the Nasser entities had still not produced any documentation, prompting Merrill Lynch to request a court conference. At the conference and following thereafter, charges and countercharges ensued over the adequacy or inadequacy of the entities' responses to the discovery demands. Supreme Court warned that if the responses were not accurate and detailed, it would "enter a judgment in this case" and order an inquest on damages.

When discovery disputes continued, the court referred the matter to a Referee for a determination whether defendants had been forthcoming with respect to the discovery demands served on them regarding the claims against the entities. Counsel for Merrill Lynch advised the Referee that Merrill Lynch was seeking to take depositions of the Nassers and representatives of the Nasser entities to determine what steps had been taken to ensure compliance with the discovery demands, reserving the right to seek a default judgment should the facts demonstrate entitlement to such relief. In a brief report, devoid of substance, the Referee failed to address Merrill Lynch's request for depositions and concluded that while there was insufficient evidence that the Nasser entities failed to comply with the discovery demands, there was sufficient evidence that the Nassers had failed to do so.

Merrill Lynch then moved to confirm the Referee's report and sought immediate entry of a default judgment against the Nassers personally, despite the fact that the lawsuit against the Nassers had been stayed and they had yet to answer. Supreme Court granted the motion and directed the entry of a judgment against the Nassers personally on liability and ordered an inquest on damages, which subsequently resulted in the entry of a default judgment against the Nassers, excepting Scarlett, in an amount of approximately \$98 million, and judgment against Scarlett in the amount of \$369,125.

Subsequent to the entry of that judgment, Supreme Court denied the motions of Ezequiel, Raymond and Scarlett Nasser seeking dismissal, but granted Albert's motion and vacated the judgment against him. The Nassers' appeal from the judgment and the order denying their motion to dismiss was consolidated with Merrill Lynch's cross appeal from the trial court's order dismissing the complaint against Albert. The Appellate Division concluded that Supreme Court erred in dismissing the complaint against Albert for want of personal jurisdiction, but upheld the entry of a default judgment against the Nassers (94 AD3d 491, 491-492 [1st Dept 2012]). We granted the Nassers leave to appeal.

CPLR 3126 provides that if a party "refuses to obey an order for disclosure or wilfully fails to disclose information which the court finds ought to have been disclosed . . . , the court may make such orders with regard to the failure or refusals as are just." Such an order may include the entry of a default judgment against the non-complying party (*see* CPLR 3126 [3]). It is within the trial court's discretion to determine the nature and degree of the penalty (*see Kihl v Pfeffer*, 94 NY2d 118, 122 [1999]), and the sanction will remain undisturbed unless there has been a clear abuse of discretion (*see Those Certain Underwriters at Lloyds, London v Occidental Gems, Inc.*, 11 NY3d 843, 845 [2008]). The sanction should be "commensurate with the particular disobedience it is designed to punish, and go no further than that" (Patrick M. Connors, Practice Commentaries, McKinney's Cons Laws of NY, Book 7B, CPLR C3126:8 at 462).

Here, Supreme Court abused its discretion with respect to the grant of a default judgment against the individual Nassers. The penalty imposed—entry of a default judgment against the Nassers, individually—was not commensurate with the alleged disobedience, i.e., failure to produce documents that Merrill Lynch claimed were in the Nassers' possession with respect to the Nasser entities. The record evidence shows that Merrill Lynch originally sought only the imposition of a substantially lesser penalty, namely, depositions of the Nassers in order to ascertain whether they complied with the discovery demands. Supreme Court specifically referred the matter to a Referee to determine whether the depositions were warranted, but the Referee provided no basis for his conclusion concerning the Nassers' alleged non-compliance. Thus, there is no record support for the granting of a default judgment against the individual defendants who had yet to answer and against whom a stay had been granted. We therefore remit the matter to Supreme Court for

the imposition of an appropriate sanction, should it determine that a sanction is warranted.

We have considered the Nassers' remaining contention that the Appellate Division erred in concluding that Albert was subject to jurisdiction under this state's long-arm statute and deem it to be without merit.

Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, FIGOTT and RIVERA concur; Judge ABDUS-SALAAM taking no part.

Order modified, without costs, by vacating the judgment of Supreme Court, New York County, and remitting to that court for further proceedings in accordance with the memorandum herein and, as so modified, affirmed.

[998 NE2d 1050, 976 NYS2d 426]

GIUSEPPE ROMANELLO, Appellant, v INTESA SANPAOLO, S.p.A., et al., Respondents.

Argued September 9, 2013; decided October 10, 2013

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered July 17, 2012. The Appellate Division order, insofar as appealed from, with two Justices dissenting in part, affirmed an order of the Supreme Court, New York County (Louis B. York, J.; op 2010 NY Slip Op 31341[U] [2010]), which had, among other things, granted defendants' motion to dismiss plaintiff's first and second causes of action alleging violations of the State Human Rights Law and the New York City Human Rights Law respectively.

Romanello v Intesa Sanpaolo, S.p.A., 97 AD3d 449, modified.

HEADNOTES

Civil Rights — Discrimination in Employment — Discrimination Based on Disability — State Human Rights Law — Indefinite Leave of Absence Not Reasonable Accommodation

1. A cause of action alleging that defendant discriminated against plaintiff on the basis of his disability in violation of the State Human Rights Law by terminating his employment (*see* Executive Law § 296 [1]) was properly dismissed where plaintiff, who had been diagnosed with depression and other disorders and had been on paid leave, informed defendant that he was suffering from disabling illnesses that continued to prevent him from working in any capacity, that he had not expressed an intention to abandon his job and

that his return to work date was “indeterminate.” To state a claim under the State Human Rights Law, a plaintiff must set forth factual allegations showing that upon the provision of reasonable accommodations, which would not impose an undue hardship on the business, the employee could perform the essential functions of the job (*see* Executive Law § 292 [21], [21-e]). Indefinite leave is not considered a reasonable accommodation under the State Human Rights Law. However, the only conclusion to be reached by plaintiff’s own description of the circumstances was that he had hoped to keep his job by requesting an indefinite leave of absence.

Civil Rights — Discrimination in Employment — Discrimination Based on Disability — New York City Human Rights Law — Employer’s Pleading Obligation

2. A cause of action alleging that defendant discriminated against plaintiff on the basis of his disability in violation of the New York City Human Rights Law by terminating his employment (*see* Administrative Code of City of NY § 8-107 [1] [a]) was improperly dismissed where plaintiff, who had been diagnosed with depression and other disorders and had been on paid leave, informed defendant that he was suffering from disabling illnesses that continued to prevent him from working in any capacity, that he had not expressed an intention to abandon his job and that his return to work date was “indeterminate.” The New York City Human Rights Law defines disability solely in terms of impairments and it is the employer’s burden to prove undue hardship. Employers have an affirmative defense if the employee cannot, with reasonable accommodation, “satisfy the essential requisites of the job” (Administrative Code § 8-107 [15] [b]). Thus, the employer, not the employee, has the “pleading obligation” to prove that the employee could not, with reasonable accommodation, satisfy the essential requisites of the job. Accordingly, upon being informed of plaintiff’s disability, defendant did not meet its obligation under the New York City Human Rights Law to plead and prove that plaintiff could not perform his essential job functions with an accommodation.

APPEARANCES OF COUNSEL

Di Santo Bowles Bruno & Lutzer LLP, New York City (*Maury B. Josephson* of counsel), and *Law Office of Maury B. Josephson, P.C.*, Melville, for appellant.

Gilmartin, Poster & Shafto LLP, New York City (*Michael C. Lambert, Richard A. Bertocci* and *Andreas Seuffert* of counsel), for respondents.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division, insofar as appealed from, should be modified, without costs, by reinstating the second cause of action and, as so modified, affirmed.

Plaintiff Giuseppe Romanello is a former executive of the financial services firm Intesa Sanpaola S.p.A. (Intesa). Plaintiff worked for Intesa and its predecessor for approximately 25 years when he became ill and unable to work. He was diagnosed with a series of disorders including major depression.

After plaintiff had been absent from work for almost five months during which time Intesa continued to pay his full salary, Intesa, through its counsel, sent plaintiff's counsel a letter, stating, among other things, "Mr. Romanello's FMLA [Family Medical Leave Act] expires on June 3, 2008 and the bank would appreciate knowing whether he intends to return to work or to abandon his position." Plaintiff's counsel responded, stating, in part, that "Mr. Romanello has, since on or about January 9, 2008, been suffering from severe and disabling illnesses that have prevented him, and continue to prevent him, from working in any capacity, let alone in the capacity in which he had been serving [Intesa]" and that Mr. Romanello "has not at any time evidenced or expressed an intention to 'abandon his position' with [Intesa]. Rather, he has been sick and unable to work, with an uncertain prognosis and a return to work date that is indeterminate at this time." Intesa responded by terminating plaintiff's employment, although he continued to seek and eventually received long term disability payments under a policy of insurance provided by his employer.

Plaintiff thereafter commenced this action including claims that Intesa discriminated against him on the basis of his disability in violation of the New York State Human Rights Law (*see* Executive Law § 296 [1] [a]) (the State HRL) and the New York City Human Rights Law (Administrative Code of City of NY § 8-107 [1] [a]) (the City HRL). Plaintiff's complaint alleged separate causes of action for the State HRL (first cause of action) and the City HRL (second cause of action). Defendant moved to dismiss pursuant to CPLR 3211 (a) (1) and (7), and submitted the parties' letters as documentary evidence supporting dismissal. Supreme Court, among other things and as relevant here, dismissed and severed the first and second causes of action. The Appellate Division affirmed, with two Justices dissenting in part and voting to reinstate the first and second causes of action (97 AD3d 449 [2012]). Plaintiff appealed as of right pursuant to CPLR 5601 (a) from so much of the Appellate Division order as affirmed the dismissal of the severed first and second causes of action.

[1] In the context of employment discrimination, the term "disability" as defined in the State HRL is "limited to disabilities which, upon the provision of reasonable accommodations, do not prevent the complainant from performing in a reasonable manner the activities involved in the job or occupation

sought or held” (Executive Law § 292 [21]). A “reasonable accommodation” means actions taken which permit an employee with a disability to perform in a reasonable manner activities involved in the job, and “do not impose an undue hardship on the business” (Executive Law § 292 [21-e]). To state a claim under the State HRL, the complaint and supporting documentation must set forth factual allegations sufficient to show that, “upon the provision of reasonable accommodations, [the employee] could perform the essential functions of [his or] her job” (*Staskowski v Nassau Community Coll.*, 53 AD3d 611, 611 [2d Dept 2008]; *Pimentel v Citibank, N.A.*, 29 AD3d 141, 146 [1st Dept 2006], *lv denied* 7 NY3d 707 [2006]). Indefinite leave is not considered a reasonable accommodation under the State HRL (*cf. Phillips v City of New York*, 66 AD3d 170, 176 [1st Dept 2009] [unlike “the State HRL (as well as the ADA) . . . there is no accommodation (whether it be indefinite leave time or any other need created by a disability) that is categorically excluded from the universe of reasonable accommodation” under the City HRL]).

Here, neither plaintiff’s communications with his employer just prior to his termination nor the complaint filed one year later offer any indication as to when plaintiff planned to return to work. Instead, plaintiff informed his employer that he had not expressed any intention to “abandon” his job and that his return to work date was “indeterminate”; the complaint merely alleges that plaintiff sought “a continued leave of absence to allow him to get better and return to work.” “Indeterminate” means “not definitely or precisely determined or fixed” (Merriam-Webster’s Collegiate Dictionary [11th ed 2008]). Contrary to the dissent’s view, we are not taking a one-sided view of plaintiff’s claim. The only conclusion to be reached by plaintiff’s own description of the circumstances is that he hoped to keep his job by requesting an indefinite leave of absence. Thus, even construing the complaint liberally and according plaintiff “the benefit of every possible favorable inference” (*511 W. 232nd Owners Corp. v Jennifer Realty Co.*, 98 NY2d 144, 152 [2002]), plaintiff fails to state a claim under the State HRL and the first cause of action was properly dismissed.

[2] The City HRL, on the other hand, affords protections broader than the State HRL (*see Phillips*, 66 AD3d at 176; *Williams v New York City Hous. Auth.*, 61 AD3d 62, 66 [1st Dept 2009]; Local Law No. 85 [2005] of City of NY § 7, amending Administrative Code § 8-130 [declaring that the provisions of

the City HRL “shall be construed liberally for the accomplishment of the uniquely broad and remedial purposes thereof, regardless of whether federal or New York State civil and human rights laws . . . have been so construed”). Accordingly, we have held that the provisions of the City HRL should be construed “broadly in favor of discrimination plaintiffs, to the extent that such a construction is reasonably possible” (*Albunio v City of New York*, 16 NY3d 472, 477-478 [2011]).

Unlike the State HRL, the City HRL’s definition of “disability” does not include “reasonable accommodation” or the ability to perform a job in a reasonable manner. Rather, the City HRL defines “disability” solely in terms of impairments (Administrative Code of City of NY § 8-102 [16]). The City HRL requires that an employer “make reasonable accommodation to enable a person with a disability to satisfy the essential requisites of a job . . . provided that the disability is known or should have been known by the [employer]” (*id.* § 8-107 [15] [a]). Contrary to the State HRL, it is the employer’s burden to prove undue hardship (*Phillips*, 66 AD3d at 183). And, the City HRL provides employers an affirmative defense if the employee cannot, with reasonable accommodation, “satisfy the essential requisites of the job” (Administrative Code § 8-107 [15] [b]). Thus, the employer, not the employee, has the “pleading obligation” to prove that the employee “could not, with reasonable accommodation, satisfy the essential requisites of the job” (*Phillips*, 66 AD3d at 183 [internal quotation marks omitted]).

Plaintiff, through his letter from counsel, made his disability known to Intesa (*see* Administrative Code of City of NY § 8-107 [15] [a]). Intesa did not meet its obligation under the City HRL to plead and prove that plaintiff could not perform his essential job functions with an accommodation (*id.* § 8-107 [15] [b]). Because Intesa made no such allegation or showing on its CPLR 3211 motion to dismiss, the City HRL claim should not have been dismissed.

ABDUS-SALAAM, J. (dissenting in part). Plaintiff clearly satisfied the liberal pleading requirements set forth in the City Human Rights Law (City HRL) (*see* Administrative Code of City of NY §§ 8-102 [16] [a]; 8-107 [15] [a]), and as the majority determines, the second cause of action should survive dismissal. However, the allegations in the complaint, construed broadly in favor of plaintiff (*see e.g. Leon v Martinez*, 84 NY2d 83, 87 [1994]), are also sufficient to state a claim under the State Human Rights Law (State HRL) (*see* Executive Law § 296 [1] [a]), and Intesa’s documentary evidence failed to adequately refute

those allegations. In holding otherwise, the majority necessarily construes the evidence *against* plaintiff, which is antithetical to our review on a motion to dismiss (*see Leon*, 84 NY2d at 87). Because dismissal of plaintiff's State HRL claim is not warranted under CPLR 3211 (a) (1) or (7), I would reinstate the first cause of action and, therefore, I respectfully dissent.

When plaintiff informed Intesa of his disability in early January 2008, Intesa continued to pay plaintiff's salary pursuant to its six-month salary continuation policy. The company also obtained short-term and long-term disability insurance contracts for plaintiff with Prudential Insurance Company of America. Once plaintiff had been out on disability for about 4½ months, Intesa's counsel informed plaintiff's counsel that, according to Prudential, plaintiff was no longer entitled to short-term disability payments, and Intesa "would appreciate knowing whether [plaintiff] intends to return to work or to abandon his position."

Plaintiff's counsel responded by letter, stating that plaintiff "has . . . been suffering from severe and disabling illnesses that have prevented him, and continue to prevent him, from working in any capacity, let alone in the capacity in which he had been serving" as an executive for Intesa. The letter explained that, although plaintiff "remains unable to return to work in any capacity because of his disabling conditions," he "has not at any time evidenced or expressed an intention to 'abandon his position' with [Intesa]. Rather, he has been sick and unable to work, with an uncertain prognosis and a return to work date that is indeterminate at this time." The letter asserted that, in any event, plaintiff was entitled to continued payments pursuant to Intesa's salary continuation policy, and sought confirmation defendant would provide this benefit for the full six months.

In response, Intesa terminated plaintiff's employment, and plaintiff thereafter commenced this lawsuit alleging causes of action under both the State and City HRLs. Plaintiff's complaint states, as relevant here, that (1) plaintiff was disabled within the meaning of both statutes; (2) plaintiff's requests for short- and long-term disability and salary continuance from Intesa "were requests for reasonable accommodation of his disability through a leave of absence to allow him to recover and return to work"; and (3) Intesa was put on notice that plaintiff sought such an accommodation by the letter from counsel, which asserted that plaintiff did not intend to abandon his position. The

complaint further alleges that Intesa “failed and refused . . . to engage in an interactive process with [plaintiff] concerning reasonable accommodation” before terminating his employment.

When assessing the adequacy of a complaint in light of a CPLR 3211 (a) (7) motion to dismiss, our role is “to determine whether plaintiffs’ pleadings state a cause of action” (511 W. 232nd Owners Corp. v Jennifer Realty Co., 98 NY2d 144, 151-152 [2002]), not whether the plaintiff has a cause of action (see *Guggenheimer v Ginzburg*, 43 NY2d 268, 275 [1977]). To accomplish this task, “we [must] liberally construe the complaint,” accept the facts alleged in it as true, and accord the plaintiff “the benefit of every possible favorable inference” (511 W. 232nd Owners Corp., 98 NY2d at 152; see e.g. *Simkin v Blank*, 19 NY3d 46, 52 [2012]; CPLR 3026). “The motion must be denied if from the pleadings’ four corners factual allegations are discerned which taken together manifest any cause of action cognizable at law” (511 W. 232nd Owners Corp., 98 NY2d at 152 [internal quotation marks omitted]; see *Guggenheimer*, 43 NY2d at 275).

Plaintiff’s complaint, on its face, is sufficient to withstand a CPLR 3211 (a) (7) challenge to his State HRL cause of action. The complaint alleges that plaintiff suffered from a disability within the meaning of the State HRL (see Executive Law § 292 [21]), and that Intesa was aware of his disability. Plaintiff also pleaded that when he requested an accommodation through a leave of absence (see *Phillips v City of New York*, 66 AD3d 170, 179-180, 182 [2009]), Intesa terminated him before considering whether his proposed accommodation was reasonable (see Executive Law § 296 [3] [a]).

Under the State HRL, an “employer has a duty to move forward to consider accommodation once the need for accommodation is known or requested” (9 NYCRR 466.11 [j] [4]; see *Pimentel v Citibank, N.A.*, 29 AD3d 141, 149 [1st Dept 2006], *lv denied* 7 NY3d 707 [2006]). The complaint expressly alleges that Intesa failed to undertake this duty and, instead, terminated plaintiff immediately after receiving counsel’s letter (see *Phillips*, 66 AD3d at 176 [“A failure to consider the accommodation . . . is a violation of Executive Law § 296 (3) (a)”]). In response, Intesa never alleged that it considered plaintiff’s proposed accommodation or that such accommodation would cause it undue hardship (see Executive Law § 292 [21-e]). Accordingly, the complaint adequately states a cause of action under the State HRL.

Turning to Intesa's CPLR 3211 (a) (1) motion to dismiss on the ground that the action is barred by documentary evidence, "such motion may be appropriately granted only where the documentary evidence utterly refutes plaintiff's factual allegations, conclusively establishing a defense as a matter of law" (*Goshen v Mutual Life Ins. Co. of N.Y.*, 98 NY2d 314, 326 [2002], citing *Leon*, 84 NY2d at 88). Thus, the issue here is whether the parties' letter correspondence, submitted in support of the motion to dismiss, conclusively establishes that plaintiff's State HRL cause of action has no merit (*see Held v Kaufman*, 91 NY2d 425, 430 [1998]).

Applying this standard, Intesa's motion must fail. The letter from plaintiff's counsel contains contradictory statements made with equal force: plaintiff "remains unable to work in any capacity" for an "indeterminate" period, and he does not intend to "abandon his position" with Intesa. Reading these statements in the light most favorable to plaintiff, as we must at this early stage in the litigation, it is not clear whether a reasonable accommodation would have been possible, but the letter does not *foreclose* the possibility that an accommodation reasonable to both plaintiff and Intesa could ultimately have been reached (*see Phillips*, 66 AD3d at 176). Thus, Intesa's evidence does not conclusively refute the allegations in the complaint or provide Intesa a defense as a matter of law, particularly one to account for its failure to consider plaintiff's accommodation request (*see id.*; 9 NYCRR 466.11 [j] [4]).

By characterizing the letter as demanding "indefinite leave" (majority mem at 884), the majority resolves the letter's ambiguities in favor of Intesa, rather than plaintiff. This runs counter to our usual review of a CPLR 3211 motion (*see Leon*, 84 NY2d at 87), and lessens Intesa's burden to provide documentary evidence that *conclusively* refutes plaintiff's allegations (*see id.*; *Goshen*, 98 NY2d at 326).

I see no reason to embrace the majority's one-sided view when the letter is not susceptible to one unambiguous reading. Although the letter states that plaintiff "remains unable to return to work in any capacity," it does not state that plaintiff is seeking indefinite leave or otherwise indicate that he would *never* be able to return to work. The letter instead explains that, because plaintiff is still sick, his return to work date is presently "indeterminate." The letter also makes clear that plaintiff does not wish to "abandon his position" with Intesa, an assertion which, at a minimum, calls into question the majority's notion

that plaintiff never intended to return to work. Moreover, given that the letter inquired into plaintiff's continued eligibility to receive his salary under Intesa's policy, it seems likely that, as later alleged in the complaint, plaintiff was requesting a temporary rather than a permanent leave of absence.

The majority holds that, under the State HRL, indefinite leave is not a reasonable accommodation as a matter of law. I disagree. A request for indefinite leave does not categorically excuse an employer from its "duty to move forward to consider [that] accommodation" (9 NYCRR 466.11 [j] [4]). Thus, even if plaintiff's letter could be construed as requesting indefinite leave, Intesa was still required to consider that request rather than simply terminate plaintiff without further discussion (*see id.*; *Phillips*, 66 AD3d at 176; *Pimentel*, 29 AD3d at 149).

In sum, I concur with the majority's disposition of the second cause of action related to the City HRL, but for the reasons stated, I would reinstate the first cause of action related to the State HRL.

Judges GRAFFEO, READ, SMITH and PIGOTT concur; Judge ABDUS-SALAAM dissents in part in an opinion in which Chief Judge LIPPMAN and Judge RIVERA concur.

Order, insofar as appealed from, modified, without costs, by reinstating the second cause of action of the complaint and, as so modified, affirmed, in a memorandum.

In the Matter of the Claim of SOPHIE ACKERMANN, Appellant.
NEW YORK CITY DEPARTMENT OF CITYWIDE ADMINISTRATIVE
SERVICES, Respondent; COMMISSIONER OF LABOR, Respon-
dent.

Submitted June 17, 2013; decided October 10, 2013

Reported below, 2013 NY Slip Op 64078(U).

Motion for reargument of motion for leave to appeal denied [*see* 21 NY3d 929 (2013)]. Motion for poor person relief dismissed as academic.

ALEXANDER BREYTMAN, Appellant, v OLINVILLE REALTY, LLC,
Respondent.

Submitted April 29, 2013; decided October 10, 2013

Reported below, 2013 NY Slip Op 66169(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

ALEXANDER BREYTMAN, Appellant, v OLINVILLE REALTY, LLC, Respondent.

Submitted July 22, 2013; decided October 10, 2013

Reported below, 99 AD3d 651.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

In the Matter of the Claim of CAROLYN ANNE COLEMAN, Respondent, v COMPASS GROUP USA, INC./CHARTWELLS, Appellant. WORKERS' COMPENSATION BOARD, Respondent.

Submitted July 8, 2013; decided October 10, 2013

Reported below, 105 AD3d 129.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

ANDREW CORRIGAN, Appellant, v STELLAR MANAGEMENT, LLC, et al., Respondents.

Submitted July 29, 2013; decided October 10, 2013

Reported below, 99 AD3d 632; 2013 NY Slip Op 67003(U).

Motion for reargument of motion for leave to appeal denied [*see* 21 NY3d 985 (2013)]. Motion for poor person relief dismissed as academic.

COUNTY OF ERIE, Respondent, v M/A-COM, INC., et al., Defendants, and KEVIN J. COMERFORD, Appellant.

Submitted July 22, 2013; decided October 10, 2013

Reported below, 104 AD3d 1233.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

GARY CRUZ et al., Individually and on Behalf of All Others Similarly Situated, Appellants, v TD BANK, N.A., Respondent.

GERALDO F. MARTINEZ et al., Individually and on Behalf of All Others Similarly Situated, Appellants, v CAPITAL ONE BANK, N.A., Respondent.

Submitted September 16, 2013; decided October 10, 2013

See 711 F3d 261.

Motion by AARP et al. for leave to file a brief amici curiae on consideration of the certified questions herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and nine copies filed within seven days.

GARY CRUZ et al., Individually and on Behalf of All Others Similarly Situated, Appellants, v TD BANK, N.A., Respondent.

GERALDO F. MARTINEZ et al., Individually and on Behalf of All Others Similarly Situated, Appellants, v CAPITAL ONE BANK, N.A., Respondent.

Submitted September 23, 2013; decided October 10, 2013

See 711 F3d 261.

Motion by New York Bankers Association for leave to file a brief amicus curiae on consideration of the certified questions herein granted and the proposed brief is accepted as filed.

In the Matter of HAROLD HAHN, Appellant, v DONALD A. WILLIAMS, as County Judge of Ulster County, Respondent.

Decided October 10, 2013

Reported below, 107 AD3d 1346.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

NIESHA HAYNES, Appellant, v KALEIDA HEALTH et al., Respondents.

Submitted July 29, 2013; decided October 10, 2013

Reported below, 104 AD3d 1210.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

HERBERT KOLBE et al., Appellants, v CHRISTINE J. TIBBETTS, as Superintendent of Schools of Newfane Central School District, et al., Respondents.

Submitted October 7, 2013; decided October 10, 2013

Reported below, 101 AD3d 1623.

Motion by New York State Public Employees Federation, AFL-CIO for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served and nine copies filed within seven days.

EDWARD P. MANGANO et al., Appellants, v SHELDON SILVER et al., Defendants, and STATE OF NEW YORK et al., Respondents.

Decided October 10, 2013

Reported below, 107 AD3d 956.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

DALE E. MCKAY, Respondent, v CHERRI MCKAY, Appellant.

Submitted July 29, 2013; decided October 10, 2013

Reported below, 105 AD3d 1296.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v IVAN CALAFF, Appellant.

Submitted September 23, 2013; decided October 10, 2013

Reported below, 103 AD3d 500.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 74 Trinity Place, 11th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

Judge ABDUS-SALAAM taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v PAUL CORTEZ, Appellant.

Submitted October 7, 2013; decided October 10, 2013

Reported below, 85 AD3d 409.

Motion by National Association of Criminal Defense Lawyers et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and nine copies filed within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RODHAMES-ANTONIO RODRIGUEZ, Appellant.

Submitted October 7, 2013; decided October 10, 2013

Reported below, 2013 NY Slip Op 60053(U).

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TIRSO SALCEDO, Appellant.

Submitted July 15, 2013; decided October 10, 2013

On the Court's own motion, appeal dismissed, without costs, upon the ground that no civil appeal lies from the order of

Supreme Court entered in this criminal proceeding (*see* NY Const, art VI, § 3 [b]; CPLR 5601; CPL 450.90). Motion for poor person relief dismissed as academic.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JULIAN SILVA, Appellant.

Submitted September 23, 2013; decided October 10, 2013

Reported below, 99 AD3d 522.

Motion for assignment of counsel granted and John R. Lewis, Esq., 36 Hemlock Drive, Sleepy Hollow, New York 10591 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CLIDE WILSON, Appellant.

Submitted September 23, 2013; decided October 10, 2013

Reported below, 100 AD3d 1045.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DIANE WORD, Appellant.

Decided October 10, 2013

Reported below, 43 AD3d 773.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no civil appeal lies from the order entered in this criminal action (*see* NY Const, art VI, § 3 [b]; CPLR 5601; CPL 450.90).

THE PEOPLE OF THE STATE OF NEW YORK ex rel. JOHN F. RYAN, on Behalf of RICHARD SHAVER, Respondent, v KEVIN CHEVERKO et al., Appellants.

Submitted September 16, 2013; decided October 10, 2013

Reported below, 102 AD3d 990.

Motion by New York State Sheriffs' Association, Inc. for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and nine copies filed within seven days.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. ANSELMO SOTO, JR., Appellant, v PAUL M. GONYEA, Respondent.

Decided October 10, 2013

On the Court's own motion, appeal dismissed, without costs, upon the ground that no appeal lies from the order of an individual Justice of the Appellate Division (*see* NY Const, art VI, § 3 [b]; CPLR 5601). Motion for poor person relief dismissed as academic.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. ANSELMO SOTO, JR., Appellant, v PAUL M. GONYEA, Respondent.

Submitted September 9, 2013; decided October 10, 2013

Motion for leave to appeal dismissed upon the ground that it does not lie from the order of an individual Justice of the Appellate Division (*see* NY Const, art VI, § 3 [b]; CPLR 5602).

In the Matter of STATE OF NEW YORK, Respondent, v DONALD DD., Appellant.

Submitted October 7, 2013; decided October 10, 2013

Reported below, 107 AD3d 1062.

Motion for poor person relief granted.

LUISA V. TORRES, Appellant, v LOUZOUN ENTERPRISES, INC., Doing Business as QUEENSBORO TOYOTA, Respondent.

Decided October 10, 2013

Reported below, 105 AD3d 945.

Appeal, insofar as taken from that part of the Appellate Division order that affirmed Supreme Court's order dismissing the complaint, dismissed, without costs, by the Court of Appeals,

sua sponte, upon the ground that no substantial constitutional question is directly involved; appeal, insofar as taken from that part of the Appellate Division order that affirmed Supreme Court's order denying appellant's motion to amend the complaint, dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that such portion of the order does not finally determine the action within the meaning of the Constitution.

TOWN OF OYSTER BAY, Appellant, v LIZZA INDUSTRIES, INC., Respondent. (And Other Actions.)

Submitted October 7, 2013; decided October 10, 2013

Reported below, 94 AD3d 1094.

Motion by Eastern Contractors Association, Inc. for leave to file a brief amicus curiae on the appeals herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and nine copies filed within seven days.

[999 NE2d 504, 977 NYS2d 141]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v OMAR SHABAZZ, Appellant.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DONALD PERRINGTON, Appellant.

Argued September 4, 2013; decided October 15, 2013

SUMMARY

APPEALS, by permission of the Chief Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered November 15, 2011. The Appellate Division affirmed judgments of the Supreme Court, New York County (Carol Berkman, J., at pre-trial hearing; Maxwell Wiley, J., at trial), which had convicted each defendant, upon a jury verdict, of criminal possession of a weapon in the second degree.

People v Shabazz, 89 AD3d 529, reversed.

People v Perrington, 89 AD3d 529, reversed.

HEADNOTE**Crimes — Evidence — Declaration against Interest — Reliability of Statement**

In the prosecution of defendants for criminal possession of a handgun the police observed protruding from a handbag near the rear seat of the vehicle in which defendants and a separately tried female codefendant were passengers, Supreme Court erred in failing to allow a former attorney of one of the defendants to testify, as a declaration against penal interest, about a conversation in which the female codefendant acknowledged ownership of the gun, notwithstanding that at her trial the female codefendant testified that the gun was not hers. Knowledge that a declaration is against penal interests must be assessed at the time it was made, and later recantations generally affect the weight and credibility that a factfinder should ascribe to the statement. Applying that legal standard, there was adequate evidence to establish admissibility under the particular facts of the case: the handgun was found in a handbag located in the rear of the automobile directly adjacent to the female codefendant; she was the only woman in the vehicle; and the circumstances under which the utterance was declared made it clear that the statement was against her interests. There was also sufficient proof that the woman was not available to testify. Moreover, the exclusion of the statement could not be deemed harmless because the People's case was not overwhelming.

APPEARANCES OF COUNSEL

Robert S. Dean, Center for Appellate Litigation, New York City (Barbara Zolot of counsel), for appellant in the first above-entitled action.

David K. Bertan, Bronx, for appellant in the second above-entitled action.

Cyrus R. Vance, Jr., District Attorney, New York City (Susan Gliner and Britta Gilmore of counsel), for respondent in the first and second above-entitled actions.

OPINION OF THE COURT**MEMORANDUM.**

The order of the Appellate Division should be reversed and a new trial ordered.

Defendants and a female codefendant were passengers in an automobile that was stopped by the police. All the occupants were charged with second-degree weapon possession after the officers observed a loaded handgun protruding from a handbag near the rear seat of the vehicle where the woman had been sitting.

During the course of pretrial proceedings, the female codefendant had a conversation with Perrington's lawyer in which she stated that the gun belonged to her. At her separate trial, however, the woman testified that the firearm was not hers and she was acquitted of weapon possession.

Defendants were tried jointly and they requested that Perrington's (now-former) attorney be allowed to testify about the female codefendant's acknowledgment of gun ownership under the declaration against penal interest exception to the hearsay rule. Supreme Court held that the statement was inadmissible because the woman's unavailability had not been proven and the statement lacked reliability. Defendants were subsequently convicted of second-degree weapon possession. The Appellate Division affirmed (89 AD3d 529 [1st Dept 2011]) and a Judge of this Court granted leave to appeal (19 NY3d 1000, 1001 [2012]).

We now reverse. The declaration against penal interest exception to the hearsay rule "recognizes the general reliability of such statements . . . because normally people do not make statements damaging to themselves unless they are true" (*People v Brensic*, 70 NY2d 9, 14 [1987]; see e.g. *People v Maerling*, 46 NY2d 289, 297 [1978]). The exception has four components: (1) the declarant must be unavailable to testify by reason of death, absence from the jurisdiction or refusal to testify on constitutional grounds; (2) the declarant must be aware at the time the statement is made that it is contrary to penal interest; (3) the declarant must have competent knowledge of the underlying facts; and (4) there must be sufficient proof independent of the utterance to assure its reliability (see e.g. *People v Brensic*, 70 NY2d at 15; *People v Settles*, 46 NY2d 154, 167 [1978]). The fourth factor is the "most important" aspect of the exception (*People v Thomas*, 68 NY2d 194, 200 [1986]). Assuming that the other elements are satisfied, such statements can be admissible if there is "a reasonable possibility that the statement might be true" (*People v Settles*, 46 NY2d at 169-170).

We conclude that the courts below erred by focusing on the inconsistency between the female codefendant's trial testimony and her pretrial statement to Perrington's lawyer. Knowledge that a declaration is against penal interests must be assessed "at the time" it was made (*People v Osorio*, 75 NY2d 80, 86 [1989]), and later recantations generally affect the weight and credibility that a factfinder should ascribe to the statement. Applying this legal standard, there was adequate evidence to establish admissibility under the particular facts of this case: the handgun was found in a handbag located in the rear of the automobile directly adjacent to the female codefendant; she was the only woman in the vehicle; and the circumstances under which the utterance was declared make it clear that the statement

was against her interests. Contrary to the dissent's contention, there was also sufficient proof that the woman was not available to testify. Finally, the exclusion of the statement cannot be deemed harmless because the People's case was not overwhelming. Defendants are therefore entitled to a new trial.

PIGOTT, J. (dissenting). The trial court and the Appellate Division (89 AD3d 529 [1st Dept 2011]) concluded that defendants failed to establish the female codefendant's unavailability or confirm the reliability of her statement with competent independent evidence. These are the first and fourth elements of the declaration against penal interest exception (*People v Settles*, 46 NY2d 154, 167 [1978]). The majority memorandum omits any analysis concerning defendants' failure to meet the first element of that test, which, in my view, is dispositive. Therefore, I respectfully dissent.

Originally, the female codefendant was to be tried with the defendants in this case. Once her lawyer advised the court that she would testify adversely to the defendants, her case was severed. At her trial, which was held before the trial of these defendants, the female codefendant testified that the gun was *not* hers. She was acquitted of the sole weapons possession count.

At their joint trial, defendants sought to introduce, through Perrington's former counsel, the female codefendant's statement that the gun belonged to her. The court stated that the "big hurdle" was the female codefendant's unavailability and that she was "the best person" from whom the statement could be elicited. The court told defense counsel that if they wanted the female codefendant to testify, they should "reach out to her and have her come in," or at least make a showing that they tried to locate her. But defense counsel failed to make any showing that the female codefendant was unavailable. In fact, when asked by the court if the defense wanted the female codefendant to testify that the gun was hers, counsel responded, "No, I don't. She will testify the other way, because she's already testified to that." Plainly, defense counsel did not want the female codefendant to testify, and would have rather had the statement come in through defendant Perrington's former counsel. The trial court eventually concluded that it "can't help but think that there is some advantage to the defense here by having her unavailable."

The majority memorandum makes the conclusory statement that "there was also sufficient proof" of the female codefendant's

unavailability (majority mem at 899), but that is not the standard by which judicial determinations concerning the admissibility of declarations against penal interest are reviewed. The trial court here considered the arguments made by the defense concerning their “efforts” to secure the female codefendant’s presence and concluded, *in the proper exercise of its discretion*, that the defense did not meet its burden of establishing her unavailability (*see People v Brensic*, 70 NY2d 9, 15 [1987] [providing that the party offering the declaration against penal interest must satisfy *all* elements]; *see also People v Branham*, 59 AD3d 272, 273 [1st Dept 2009], *lv denied* 12 NY3d 814 [2009]). On this record, it could hardly be said that the trial court abused its discretion when it denied the admission of the statement on the ground that the defense failed to establish the female codefendant’s unavailability. In my view, it was unnecessary for the majority to address the reliability element of the declaration against penal interest exception, and I would affirm the order of the Appellate Division.

Chief Judge LIPPMAN and Judges GRAFFEO, READ and RIVERA concur; Judge PIGOTT dissents and votes to affirm in an opinion in which Judge SMITH concurs; Judge ABDUS-SALAAM taking no part.

In each case: Order reversed and a new trial ordered, in a memorandum.

[999 NE2d 507, 977 NYS2d 144]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CARLOS SANTIAGO, JR., Appellant.

Argued September 10, 2013; decided October 15, 2013

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered June 8, 2012. The Appellate Division modified, on the law and as a matter of discretion in the interest of justice, a judgment of the Monroe County Court (Thomas R. Morse, J.), which had convicted defendant, upon a jury verdict, of sexual abuse in the first degree (two counts) and unlawful imprisonment in the second degree. The modification consisted of reversing that part of the judgment convicting defendant of sexual abuse in the first degree

under the fourth count of the indictment and dismissing that count of the indictment. The Appellate Division affirmed the judgment as modified.

People v Santiago, 96 AD3d 1495, modified.

HEADNOTES

Crimes — Appeal — Preservation of Issue for Review — Exception to Preservation Requirement — Illegal Sentence

1. Defendant's challenge to his adjudication as a second felony offender on the ground that his out-of-state conviction could not serve as a predicate felony conviction because he was 15 years old when convicted and could not have been prosecuted in New York was subject to appellate review, notwithstanding the Appellate Division's finding that defendant failed to preserve his challenge at trial, under the narrow exception to the preservation rule permitting appellate review when a sentence's illegality is readily discernible from the trial record. There was no question as to defendant's date of birth and the date of his conviction for the out-of-state crime, both of which appeared in the pre-sentencing report reviewed by both parties and the sentencing court. Moreover, at the sentencing hearing defense counsel called attention to the fact that defendant was 15 years old when he was convicted for the predicate crime.

Crimes — Sentence — Second Felony Offender — Out-of-State Predicate Crime Not New York Felony Owing to Youth of Defendant

2. Defendant's out-of-state murder conviction, when he was 15 years old, was not a predicate felony conviction supporting his adjudication as a second felony offender because he could not have been prosecuted for the New York felony equivalent of second-degree manslaughter in New York at that age. Penal Law § 30.00 (1) specifies that a person must be at least 16 to be criminally responsible for his conduct. Penal Law § 30.00 (2) lists crimes that are exceptions to this age requirement, but second-degree manslaughter, the New York crime assumed as the equivalent to the out-of-state crime of which defendant was convicted, is not among them. Therefore, defendant's out-of-state conviction was not a predicate felony conviction within the meaning of Penal Law § 70.06 (1) (b) (i) because he could not even have been prosecuted for second-degree manslaughter in New York at the age of 15. The key feature, for purposes of sentence enhancement, is the infancy statute's categorical nature. For those offenses that do not appear in Penal Law § 30.00's list of exceptions, neither the trial court nor the People have discretion to prosecute an infant defendant; it is simply impermissible. Accordingly, the prior foreign prosecution of the infant defendant ran afoul of the sentencing enhancement statute's requirement that the prior conviction must be for "an offense for which a sentence to a term of imprisonment in excess of one year . . . was authorized and is authorized in this state" (Penal Law § 70.06 [1] [b] [i]).

APPEARANCES OF COUNSEL

Timothy P. Donaher, Public Defender, Rochester (*Drew R. DuBrin* of counsel), for appellant.

Sandra Doorley, District Attorney, Rochester (*Geoffrey Kaeuper* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be modified by vacating the second felony offender adjudication and remitting to County Court for resentencing and, as so modified, affirmed.

On May 23, 2008, defendant Carlos Santiago, Jr. was convicted by a jury of two counts of first-degree sexual abuse (Penal Law § 130.65 [1]) and one count of second-degree unlawful imprisonment (Penal Law § 135.05). At the sentencing hearing held on June 30, 2008, the People requested that defendant be sentenced as a second felony offender because of his felony conviction in Pennsylvania in January of 1993 for third-degree murder (*see* Penal Law § 70.06 [1] [b] [i]; 18 Pa Cons Stat Ann § 2502 [c]). Pennsylvania law defines third-degree murder as all kinds of murder other than murder in the first degree and murder in the second degree (*see* 18 Pa Cons Stat Ann § 2502 [c]); and defines first-degree and second-degree murder, in turn, as “an intentional killing,” and a killing “committed while defendant was engaged as a principal or an accomplice in the perpetration of a felony” (18 Pa Cons Stat Ann § 2502 [a], [b]).

Defense counsel objected first that there was no “nexus” between the Pennsylvania felony and the State of New York; second, that defendant was 15 at the time of the Pennsylvania conviction, and “[h]ad he been in New York, he would have been entitled, I believe, to a [youthful offender status], which, of course, he didn’t get in Pennsylvania.” The prosecutor responded simply that “a youthful offender adjudication [was] not mandatory, especially given the nature of the previous conviction.” Observing that the legislature has directed that prior foreign felony convictions are to be considered as predicate felonies for enhanced sentencing, County Court adjudicated defendant a second felony offender. The judge sentenced him to two consecutive prison terms of seven years for the sexual abuse convictions, and one prison term of one year for the unlawful imprisonment conviction, to be followed by 15 years of post-release supervision.

On appeal, defendant argued that the Pennsylvania conviction could not serve as a predicate felony conviction because he was 15 years old when convicted, and, by virtue of Penal Law § 30.00, a 15 year old cannot be prosecuted for second-degree manslaughter or any other New York offense encompassed by

the Pennsylvania crime of third-degree murder.* The Appellate Division concluded that “[i]nasmuch as defendant failed to contend before the sentencing court that the Pennsylvania conviction would not constitute a conviction in New York based on his age at the time of the crimes, he failed to preserve his contention for [appellate] review,” and declined to reach it in the interest of justice (96 AD3d 1495, 1497 [4th Dept 2012]). The Court did, however, modify the judgment as a matter of discretion and in the interest of justice by reversing one of defendant’s two sexual abuse convictions and, as so modified, affirmed. A Judge of this Court subsequently granted defendant leave to appeal (19 NY3d 1105 [2012]).

[1] As an initial matter, we conclude that this case falls within the narrow exception to our preservation rule permitting appellate review when a sentence’s illegality is readily discernible from the trial record (*see People v Nieves*, 2 NY3d 310, 315-316 [2004]). In *People v Samms* (95 NY2d 52, 55-56 [2000]), we explicitly invoked this exception to review a challenge to an enhanced sentence. There, the defendant was sentenced for the felony serving as a predicate *after* he committed the crimes underlying the conviction for which he was sentenced as a second violent felony offender. As the statute plainly requires the opposite chronological sequence, the defendant’s enhanced sentence was unauthorized. Neither the defendant, the People, nor the trial court had noticed the problem, although the relevant dates were in the record and undisputed. Importantly, we remarked that in such a circumstance, there was no need to resort to outside facts, documentation or foreign statutes, and thus the record was sufficient for the exception to apply. Likewise here, there was no question as to defendant’s date of birth and the date of his conviction for the Pennsylvania crime, both of which appeared in the presentencing report reviewed by both parties and County Court. And at the sentencing hearing

* The parties agree that the statutory elements of Pennsylvania’s crime of third-degree murder are equivalent to those of the New York felony offense of second-degree manslaughter (*see People v Gonzalez*, 61 NY2d 586, 589 [1984] [describing the method for determining whether a prior out-of-state conviction is a predicate felony conviction within the meaning of New York’s sentencing statutes]). Accordingly, we assume this to be the case for purposes of this appeal, and express no opinion as to whether, in fact, the elements of Pennsylvania’s crime of third-degree murder match those of the New York felony of second-degree manslaughter.

defense counsel called attention to the fact that defendant was 15 years old when he was convicted in Pennsylvania. Accordingly, defendant's claim fits within the exception to preservation described in *Nieves* and *Samms*.

[2] Penal Law § 30.00 (1) specifies that a person must be at least 16 years old to be criminally responsible for his conduct. Penal Law § 30.00 (2) lists crimes that are exceptions to this age requirement, but second-degree manslaughter is not among them. So assuming as we must for purposes of this appeal that third-degree murder in Pennsylvania is equivalent to second-degree manslaughter in New York, defendant's Pennsylvania conviction was not a predicate felony conviction within the meaning of Penal Law § 70.06 (1) (b) (i) *because he could not even have been prosecuted for second-degree manslaughter in New York at the age of 15*.

The key feature, for purposes of sentence enhancement, is the infancy statute's categorical nature. For those offenses that do not appear in Penal Law § 30.00's list of exceptions, neither the trial court nor the People have discretion to prosecute an infant defendant; it is simply impermissible. This distinguishes infancy from affirmative defenses such as insanity, duress or self-defense in which the defendant must make a showing, as well as youthful offender status where the trial court must make a discretionary determination about a defendant's status at adjudication (*see* CPL 720.10 [3]). In short, a prior foreign prosecution of an infant defendant runs afoul of the sentencing enhancement statute's requirement that the prior conviction must be for "an offense for which a sentence to a term of imprisonment in excess of one year . . . was authorized and is authorized in this state" (Penal Law § 70.06 [1] [b] [i]).

Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, FIGOTT, RIVERA and ABDUS-SALAAM concur.

Order modified by vacating the second felony offender adjudication and remitting to Monroe County Court for resentencing and, as so modified, affirmed, in a memorandum.

[998 NE2d 801, 976 NYS2d 1]

NANDKUMAR RAMKUMAR, Appellant, v GRAND STYLE TRANSPORTATION ENTERPRISES INC. et al., Respondents. GRAND STYLE TRANSPORTATION ENTERPRISES INC. et al., Third-Party Plaintiffs-Respondents, v GEORGINA D. CASTILLO, Third-Party Defendant-Respondent.

Argued September 12, 2013; decided October 15, 2013

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered April 10, 2012. The Appellate Division, with two Justices dissenting, affirmed so much of an order of the Supreme Court, Bronx County (Kenneth L. Thompson, Jr., J.), as had granted defendants' cross motions for summary judgment dismissing the complaint on the ground that plaintiff did not sustain a serious injury within the meaning of Insurance Law § 5102 (d).

Ramkumar v Grand Style Transp. Enters. Inc., 94 AD3d 484, reversed.

HEADNOTE

Insurance — No-Fault Automobile Insurance — Serious Injury — Reasonable Explanation for Cessation of Treatment

In a personal injury action arising out of an automobile accident, the record raised a triable issue of fact as to whether plaintiff had offered "some reasonable explanation" for the cessation of physical therapy treatment for his injury when he responded to a deposition question concerning when he was last treated by stating, "they cut me off like five months." There is no requirement that a plaintiff either offer documentary evidence to support his sworn statement that his no-fault benefits were cut off, or indicate that he could not afford to pay for his own treatment. Plaintiff came forward with the bare minimum required to raise an issue regarding "some reasonable explanation" for the cessation of physical therapy. Additionally, the qualitative assessment of plaintiff's condition rendered by the physician who performed arthroscopic surgery on plaintiff's knee was that plaintiff's meniscal tear injury was causally related to his car accident, and that the meniscus had permanently lost its stability with onset of scar tissue, instability, loss of range of motion, and pain, which plaintiff would have for the rest of his life.

APPEARANCES OF COUNSEL

Law Office of Judah Z. Cohen, PLLC, Woodmere (*Judah Z. Cohen* of counsel), for appellant.

Burke, Gordon & Conway, White Plains (*Ashley E. Sproat* of counsel), for Bisnath Bissessar and another, respondents.

Mauro Lilling Naparty LLP, Woodbury (*Matthew W. Naparty* and *Timothy J. O'Shaughnessy* of counsel), for Grand Style Transportation Enterprises Inc. and another, respondents.

Michael Jaffe, New York City, for New York State Trial Lawyers Association, amicus curiae.

McGaw, Alventosa & Zajac, Jericho (*Andrew Zajac*, *Dawn C. DeSimone*, *Seamus G. Flaherty* and *Jonathan T. Uejio* of counsel), and *James M. Begley*, New York City, for Defense Association of New York, Inc., amicus curiae.

Marc D. Craw, Albany, for New York Insurance Association, Inc., amicus curiae.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed, with costs, and the complaint reinstated.

The record raises a triable issue of fact as to whether plaintiff has offered “some reasonable explanation” for the cessation of physical therapy treatment for his injury (*Pommells v Perez*, 4 NY3d 566, 574 [2005]). Plaintiff was asked at his deposition when he was last treated, and he replied that “they cut me off like five months.” The Appellate Division held that a “bare assertion that insurance coverage for medically required treatment was exhausted is unavailing without any documentary evidence of such or, at least, an indication as to whether an injured claimant can afford to pay for the treatment out of his or her own funds” (94 AD3d 484, 485 [2012]).

We stated in *Pommells* that a plaintiff claiming “serious injury” within the meaning of the No-Fault Law “must offer some reasonable explanation” for terminating treatment (4 NY3d at 574). We did not require any particular proof regarding that explanation, although we recognized that there is “abuse of the No-Fault Law in failing to separate ‘serious injury’ cases, which may proceed to court, from the mountains of other auto accident claims, which may not” (*Pommells*, 4 NY3d at 571; see *Perl v Meher*, 18 NY3d 208, 214 [2011]).

The Appellate Division’s requirement that plaintiff either offer documentary evidence to support his sworn statement that his no-fault benefits were cut off, or indicate that he could not afford to pay for his own treatment, is an unwarranted expansion of *Pommells*. Plaintiff testified at his deposition that “they” (which a reasonable juror could take to mean his no-fault insurer) cut him off, and that he did not have medical insurance at the time of the accident. While it would have been preferable for plaintiff to submit an affidavit in opposition to summary judgment explaining why the no-fault insurer terminated his

benefits and that he did not have medical insurance to pay for further treatment, plaintiff has come forward with the bare minimum required to raise an issue regarding “some reasonable explanation” for the cessation of physical therapy. Additionally, the “*qualitative* assessment of . . . plaintiff’s condition” (*Toure v Avis Rent A Car Sys.*, 98 NY2d 345, 350-351 [2002]) rendered by the physician who performed arthroscopic surgery on plaintiff’s knee was that plaintiff’s meniscal tear injury was causally related to the car accident, and that the meniscus has permanently lost its stability with onset of scar tissue, instability, loss of range of motion, and pain, which plaintiff will have for the rest of his life.

On this record, summary judgment should not have been granted.

SMITH, J. (dissenting). “[T]he legislative intent underlying the No-Fault Law was to weed out frivolous claims and limit recovery to significant injuries” (*Dufel v Green*, 84 NY2d 795, 798 [1995]). Since the statute was enacted, false claims of “serious injury” have done much to undermine the legislative goal. A number of courts, including ours, have pointed out that the no-fault system is riddled with abuse (*see Matter of Medical Socy. of State of N.Y. v Serio*, 100 NY2d 854, 861 [2003] [“Between 1992 and 2001, reports of suspected automobile insurance fraud increased by 275%, the bulk of the increase occurring in no-fault insurance fraud”]; *Pommells v Perez*, 4 NY3d 566, 571 [2005] [“Abuse . . . abounds”]; *Perl v Meher*, 18 NY3d 208, 214 [2011] [“No-fault abuse still abounds today”]; *Fair Price Med. Supply Corp. v Travelers Indem. Co.*, 9 Misc 3d 76, 78 [App Term, 2d Dept, 2d & 11th Jud Dists 2005] [“the steep increase in fraudulent no-fault benefits claims”], *affd* 42 AD3d 277 [2d Dept 2007], *affd* 10 NY3d 556 [2008]; *id.*, 9 Misc 3d at 83 [Golia, J., dissenting] [“fraudulent claims are an ever increasing issue”]; *Metroscan Imaging P.C. v GEICO Ins. Co.*, 8 Misc 3d 829, 831-832 [Civ Ct, Queens County 2005] [“unfortunately well documented . . . deluge of fraudulent claims”]).

In an attempt to keep this problem under some sort of control, we have been less indulgent in the no-fault area than in many others in assessing the quality of proof needed to defeat a summary judgment motion where, as here, defendants have made a *prima facie* showing that a claim lacks merit. Thus, a plaintiff’s own description of his or her symptoms is not enough; “we have required objective proof of a plaintiff’s injury” (*Toure v Avis Rent A Car Sys.*, 98 NY2d 345, 350 [2002]). Indeed, even a

doctor's opinion is not enough unless it is supported "by an objective basis" (*id.* at 351). We have approved of the approach of courts who treat serious injury claims with "skepticism," and have said that "failure to grant summary judgment . . . where the evidence justifies dismissal, burdens court dockets and impedes the resolution of legitimate claims" (*Pommells*, 4 NY3d at 571-572).

It is true that even the most demanding approach cannot assure the summary dismissal of every baseless claim. If plaintiffs and their witnesses are willing to say under oath whatever they have to say to get past summary judgment, they will succeed in doing so, and then "the role of skeptic is properly reserved for the finder of fact, or for a court that . . . has factual review power" (*Perl*, 18 NY3d at 215). But we nevertheless can and should enforce stringent standards, to assure at least that the summary judgment threshold is not too easy to overcome.

In *Pommells*, we adopted a rule designed to make unjustifiable recoveries more difficult in so-called "gap in treatment" cases. The rule is that "a plaintiff who terminates therapeutic measures following the accident, while claiming 'serious injury,' must offer some reasonable explanation for having done so" (4 NY3d at 574). Today the majority dilutes this rule, finding that plaintiff's ambiguous and self-serving statement at his deposition—"they cut me off like five months"—is a sufficient "reasonable explanation." We should demand more than this.

If there is indeed a reasonable explanation for plaintiff's cessation of physical therapy, he should have had no trouble in offering much better proof of it. He could have submitted an affidavit in opposition to summary judgment, identifying his no-fault carrier, attaching a copy of the written communication, or describing the oral one, in which the carrier cut him off, and saying what, if any, reason the carrier gave. For all that appears in this record, the carrier might have refused to continue paying for therapy because it did not think plaintiff had an injury serious enough to justify it. Plaintiff could also have said in an affidavit, if he could truthfully do so, that he did not have other insurance or other resources that would cover the cost of treatment.

In declining to impose these simple requirements—all of which a plaintiff with a real explanation for a gap in treatment should find easy to meet—the majority lowers the barriers that courts have erected against baseless no-fault claims. I therefore dissent.

Chief Judge LIPPMAN and Judges GRAFFEO, PIGOTT, RIVERA and ABDUS-SALAAM concur; Judge SMITH dissents in an opinion in which Judge READ concurs.

Order reversed, with costs, and the complaint reinstated, in a memorandum.

ACA FINANCIAL GUARANTY CORP., Appellant, v GOLDMAN, SACHS & Co., Respondent, et al., Defendants.

Decided October 15, 2013

Reported below, 106 AD3d 494.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

INEZ BIELECKI, Appellant, v RICHARD BIELECKI, Respondent.

Submitted August 12, 2013; decided October 15, 2013

Reported below, 106 AD3d 1454.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

THEODORE BOHN, Appellant, v 176 W. 87TH ST. OWNERS CORP. et al., Respondents, et al., Defendants. (And Other Actions.)

Submitted July 15, 2013; decided October 15, 2013

Reported below, 106 AD3d 598.

Motion, insofar as it seeks leave to appeal as against Steinhart Management, Inc., dismissed upon the ground that as to that party the order sought to be appealed from does not finally determine the action within the meaning of the Constitution; motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order affirming Supreme Court's denial of appellant's disqualification motion and affirming Supreme Court's grant of nonparty respondent Robert Cantor's motion to quash a subpoena, dismissed upon the ground that such portion of the order does not finally determine the action within

the meaning of the Constitution; motion for leave to appeal otherwise denied.

Judge RIVERA taking no part.

In the Matter of RICKEY CLARK, Appellant, v PHILIP HEATH, Respondent.

Submitted August 5, 2013; decided October 15, 2013

Reported below, 2013 NY Slip Op 74403(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of LAVAR DAVIS, Appellant, v ALBERT PRACK, as Acting Director of Special Housing and Inmate Disciplinary Programs, Respondent.

Submitted June 10, 2013; decided October 15, 2013

Reported below, 100 AD3d 1177; 2013 NY Slip Op 71916(U).

Motion, insofar as it seeks leave to appeal from the Appellate Division judgment, dismissed as untimely (*see* CPLR 5513 [b]; *Eaton v State of New York*, 76 NY2d 824 [1990]); motion, insofar as it seeks leave to appeal from the Appellate Division order denying reargument and reconsideration, dismissed upon the ground that such order does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of SAM ESPOSITO, Appellant, v RAYMOND KELLY, as Police Commissioner of the City of New York, et al., Respondents.

Submitted August 19, 2013; decided October 15, 2013

Reported below, 2011 NY Slip Op 76041(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution and is not an order of the type provided for in CPLR 5602 (a) (2).

In the Matter of SHAWN KHOURI, Appellant, v WILLIAM LEE, as Superintendent of Green Haven Correctional Facility, Respondent.

Submitted August 5, 2013; decided October 15, 2013

Reported below, 2013 NY Slip Op 76346(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of EDWARD KOEHL, Appellant, v BRIAN FISCHER, as Commissioner of Correctional Services, Respondent.

Submitted August 12, 2013; decided October 15, 2013

Reported below, 2013 NY Slip Op 76179(U).

On the Court's own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

In the Matter of MARCUS CC., Appellant, v ERICA BB., Respondent. (Proceeding No. 1.)

In the Matter of MARIA DD., Respondent, v MARCUS CC., Appellant, et al., Respondent. (Proceeding No. 2.)

Decided October 15, 2013

Reported below, 107 AD3d 1243.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the two-Justice dissent at the Appellate Division is not on a question of law (CPLR 5601 [a]).

In the Matter of SUARNA MEHULIC, Appellant, v STATE BOARD FOR PROFESSIONAL MEDICAL CONDUCT, Respondent.

Decided October 15, 2013

Reported below, 107 AD3d 1066.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that it is untimely (*see* CPLR 5513 [a]).

In the Matter of KENNETH MYERS, Appellant, v BRIAN FISCHER, as Commissioner of Corrections and Community Supervision, et al., Respondents.

Decided October 15, 2013

Reported below, 107 AD3d 1189.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of EMMANUEL PATTERSON, Appellant, v ANDREA W. EVANS, Chairwoman, New York State Division of Parole, et al., Respondents.

Submitted August 19, 2013; decided October 15, 2013

Reported below, 107 AD3d 1647; 106 AD3d 1456.

Motion, insofar as it seeks leave to appeal from the Appellate Division order denying reargument or leave to appeal to the Court of Appeals, dismissed upon the ground that such order does not finally determine the proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied. Motion for poor person relief dismissed as academic.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JAMES R. PINE, Appellant.

Decided October 15, 2013

Reported below, 2013 NY Slip Op 80123(U).

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no civil appeal lies from the order entered in this criminal proceeding (*see* NY Const, art VI, § 3 [b]; CPLR 5601; CPL 450.90).

JOSEFINA PHILLIPS, Appellant, v CITY OF NEW YORK, Respondent.

Submitted August 12, 2013; decided October 15, 2013

Reported below, 107 AD3d 774.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order that affirmed Supreme Court's dismissal of the complaint, denied; motion for leave to appeal otherwise dismissed upon the ground that the remaining part of the Appellate Division order does not finally determine the action within the meaning of the Constitution.

In the Matter of RUTH MARIE POLLACK, Appellant, v MATTHEW G. KIERNAN, Clerk of the Court, et al., Respondents.

Submitted June 17, 2013; decided October 15, 2013

Reported below, 105 AD3d 518.

Motion, insofar as it seeks leave to appeal from the April 2013 Appellate Division order dismissing the proceeding, denied; motion, insofar as it seeks leave to appeal from the remaining five orders, dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain it (*see* NY Const, art VI, § 3; CPLR 5602). Motion for ancillary relief dismissed as academic.

Chief Judge LIPPMAN and Judge ABDUS-SALAAM taking no part.

In the Matter of VICTOR SOWELL, Appellant, v BRIAN FISCHER, as Commissioner of Corrections and Community Supervision, Respondent.

Decided October 15, 2013

Reported below, 108 AD3d 962.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

CONSTANTINE SPATHIS, Respondent, v ALINA DULIMOF-SPATHIS, Appellant.

Submitted July 15, 2013; decided October 15, 2013

Reported below, 103 AD3d 599.

Motion, insofar as it seeks leave to appeal from that part of the Appellate Division order that affirmed the April 2012

Supreme Court order, dismissed upon the ground that such portion of the Appellate Division order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied. Motion for poor person relief dismissed as academic.

Judge ABDUS-SALAAM taking no part.

In the Matter of CHARLES WATSON, Appellant, v NEW YORK STATE DEPARTMENT OF CORRECTIONS AND COMMUNITY SUPERVISION, Respondent.

Submitted August 26, 2013; decided October 15, 2013

Reported below, 108 AD3d 817.

Motion for leave to appeal dismissed upon the ground that the order appealed from does not finally determine the action/proceeding within the meaning of the Constitution.

[999 NE2d 1144, 977 NYS2d 699]

AYODELE SANDIFORD, Respondent, v CITY OF NEW YORK DEPARTMENT OF EDUCATION et al., Appellants, et al., Defendants.

Argued September 10, 2013; decided October 17, 2013

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered April 24, 2012. The Appellate Division modified, on the law, so much of an order of the Supreme Court, New York County (Cynthia S. Kern, J.; op 26 Misc 3d 1223[A], 2010 NY Slip Op 50240[U] [2010]), as had granted defendants' motion for summary judgment insofar as it sought dismissal of plaintiff's retaliation claim under the New York City and the New York State Human Rights Laws, and denied the motion insofar as it sought dismissal of her discrimination claims. The modification consisted of denying the motion as to plaintiff's retaliation claim. The Appellate Division affirmed the order as modified. The following question was certified by the Appellate Division: "Was the order of this Court, which modified the order of the Supreme Court properly made?"

Sandiford v City of New York Dept. of Educ., 94 AD3d 593, affirmed.

HEADNOTE

Civil Rights — Discrimination Based on Sexual Orientation — Summary Judgment

In an action asserting discrimination and retaliation claims under the New York City and New York State Human Rights Laws (Administrative Code of City of NY §§ 8-101, 8-107 [1], [7], [13] [a], [b]; Executive Law § 296 [1] [a], [e]) arising out of plaintiff school aide's termination for misconduct by the school's principal, plaintiff introduced evidence sufficient to withstand defendants' motion for summary judgment. Triable issues of fact existed as to whether the principal's stated reason for terminating plaintiff was merely a pretext for discrimination, and whether, absent a discriminatory motive, the referral of plaintiff to the Office of Special Investigations of defendant Department of Education (DOE) and the principal's subsequent decision to terminate plaintiff would have occurred. While evidence only that the principal made stray discriminatory comments without any basis for inferring a connection to the termination would be insufficient to defeat defendants' motion, plaintiff offered evidence of, among other things: defendant principal's repeated homophobic remarks directed at plaintiff; his decision to report to the DOE allegations that plaintiff had engaged in misconduct while working at an after-school program that he did not supervise; his close relationship with the alleged victims of the misconduct; his independent decision to terminate plaintiff's employment; and the after-school program supervisor's opinion that plaintiff had not engaged in any misconduct worthy of reporting to the DOE.

APPEARANCES OF COUNSEL

Michael A. Cardozo, Corporation Counsel, New York City (*Susan Greenberg, Mordecai Newman, Leonard Koerner* and *Larry A. Sonnenshein* of counsel), for appellants.

Meenan & Associates, LLC, New York City (*Colleen M. Meenan* and *Shelley-Ann Quilty* of counsel), for respondent.

Ritz Clark & Ben-Asher LLP, New York City (*Miriam F. Clark* of counsel), for National Employment Lawyers Association/New York, amicus curiae.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs, and the certified question answered in the affirmative.

Plaintiff has introduced evidence sufficient to withstand defendants' motion for summary judgment dismissing her discrimination and retaliation claims under provisions of the New York City and New York State Human Rights Laws (Administrative Code of City of NY §§ 8-101, 8-107 [1], [7], [13] [a], [b]; Executive Law § 296 [1] [a], [e]) arising out of her

termination for misconduct as a school aide by the principal of PS 181 in Brooklyn.¹

Triable issues of fact exist as to whether the principal's stated reason for terminating plaintiff was "merely a pretext for discrimination" (see *Forrest v Jewish Guild for the Blind*, 3 NY3d 295, 305 [2004]),² and whether, absent a discriminatory motive, the referral of plaintiff to the Office of Special Investigations and the principal's subsequent decision to terminate plaintiff would have occurred (see *Michaelis v State of New York*, 258 AD2d 693, 694 [3d Dept 1999], *lv denied* 93 NY2d 806 [1999]; *Raskin v Wyatt Co.*, 125 F3d 55, 60 [2d Cir 1997]). Defendants are of course correct that evidence only that the principal made stray discriminatory comments without any basis for inferring a connection to the termination would be insufficient to defeat defendants' motion (see *Forrest*, 3 NY3d at 308 [comments made years before the plaintiff's termination failed to raise a triable issue of fact in light of the clear evidence of plaintiff's misconduct]). But that is not the case here. Plaintiff has offered evidence of, among other things: defendant principal's repeated homophobic remarks directed at plaintiff; his decision to report to the Department of Education (DOE) allegations that plaintiff had engaged in misconduct while working at an after-school program that he did not supervise; his close relationship with the alleged victims of the misconduct; his independent decision to terminate plaintiff's employment; and the after-school program supervisor's opinion that plaintiff had not engaged in any misconduct worthy of reporting to the DOE. This is sufficient to deny defendants' motion for summary dismissal.

There are triable issues of fact also with respect to assertions that the principal retaliated against plaintiff for complaining to

1. Plaintiff grieved her termination under her union's collective bargaining agreement. In a grievance decision dated over one year after her termination, the Chancellor of the Department of Education ordered her reinstated with back pay less two weeks and a letter to her file warning her not to engage in misconduct.

2. Because there are triable issues of fact as to plaintiff's discrimination claim under the State Human Rights Law, to which the *McDonnell Douglas Corp. v Green* burden shifting framework applies (411 US 792, 802-804 [1973]), it is unnecessary to address whether the Local Civil Rights Restoration Act of 2005 modified that framework and eased a plaintiff's burden in the context of a New York City Human Rights Law discrimination claim (see *Bennett v Health Mgt. Sys., Inc.*, 92 AD3d 29, 34-44 [1st Dept 2011], *lv denied* 18 NY3d 811 [2012]; and see *Furfero v St. John's Univ.*, 94 AD3d 695, 697 [2d Dept 2012]).

the DOE about his treatment of her (*see Forrest*, 3 NY3d at 312-313).

Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, PIGOTT, RIVERA and ABDUS-SALAAM concur.

Order affirmed, with costs, and certified question answered in the affirmative, in a memorandum.

[999 NE2d 1148, 977 NYS2d 703]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v REYES RODRIGUEZ, Appellant.

Argued September 12, 2013; decided October 17, 2013

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered February 23, 2012. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Bonnie G. Wittner, J.), which had convicted defendant, upon a jury verdict, of robbery in the first degree and conspiracy in the second and fourth degrees.

People v Rodriguez, 92 AD3d 586, reversed.

HEADNOTE

Crimes — Corroboration of Accomplice Testimony — Insufficiency of Corroborating Evidence under Prior Standard

In a prosecution for robbery and conspiracy in which the principal witnesses against defendant were accomplices, the corroborative evidence introduced by the People pursuant to CPL 60.22 was insufficient. Although the corroborative evidence would have been sufficient under *People v Reome* (15 NY3d 188 [2010]), at the trial of the case, which took place before the *Reome* decision, the jury was instructed, without objection from the People, that “the corroborative evidence must be truly independent of and may not draw its weight and probative value from the accomplice’s testimony.” The People thus accepted the more demanding test for corroborative evidence set forth in *People v Hudson* (51 NY2d 233 [1980]). The evidence that was “independent” of the accomplice testimony in the *Hudson* sense proved, at most, that defendant had driven a minivan that was the same color as a car that was used to commit some of the crimes charged. That by itself did not tend “to connect the defendant with the commission” of the crimes (CPL 60.22 [1]).

APPEARANCES OF COUNSEL

Law Office of Arnold J. Levine, New York City (*Arnold J. Levine* of counsel), for appellant.

Cyrus R. Vance, Jr., District Attorney, New York City (*Christopher P. Marinelli* and *Alan Gadlin* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed, and the indictment dismissed.

Defendant was convicted on one count of robbery in the first degree and two counts of conspiracy. The principal witnesses against him were accomplices, and their testimony required corroboration under CPL 60.22. The People introduced corroborative evidence that would have been sufficient under *People v Reome* (15 NY3d 188 [2010]). However, at the trial of the case (which took place before the *Reome* decision), the jury was instructed, without objection from the People, that “the corroborative evidence must be truly independent of and may not draw its weight and probative value from the accomplice’s testimony.” The People thus accepted the more demanding test for corroborative evidence set forth in *People v Hudson* (51 NY2d 233 [1980]) (see *People v Malagon*, 50 NY2d 954, 956 [1980]; *People v Bell*, 48 NY2d 913, 915 [1979]). *Reome* overruled *Hudson*, but that does not help the People here.

Under the *Hudson* standard, the corroborating evidence was insufficient. The evidence that was “independent” of the accomplice testimony in the *Hudson* sense proved, at most, that defendant had driven a minivan that was the same color as a car that was used to commit some of the crimes charged. This by itself did not tend “to connect the defendant with the commission” of the crimes (CPL 60.22 [1]).

Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, FIGOTT and RIVERA concur; Judge ABDUS-SALAAM taking no part.

Order reversed and indictment dismissed, in a memorandum.

[999 NE2d 535, 977 NYS2d 172]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DONNY P. BEATY, Appellant.

Argued September 4, 2013; decided October 17, 2013

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme

Court in the Fourth Judicial Department, entered November 10, 2011. The Appellate Division affirmed a judgment of the Supreme Court, Monroe County (Francis A. Affronti, J.), which had convicted defendant, upon a jury verdict, of rape in the first degree, burglary in the first degree, assault in the second degree, petit larceny and burglary in the second degree.

People v Beaty, 89 AD3d 1414, affirmed.

HEADNOTE

Crimes — Instructions — Intoxication Charge — Failure to Corroborate Claim of Intoxication

In a prosecution for first degree rape, burglary and other crimes, the trial court correctly denied defendant's request for an intoxication charge since the evidence was insufficient to allow a reasonable juror to harbor a doubt concerning the element of intent on the basis of intoxication. While a defendant may offer evidence of intoxication whenever relevant to negate an element of a charged crime, the defendant must present evidence tending to corroborate his claim. Defendant's bare assertions concerning his intoxication were, by themselves, insufficient. Nor did his statement to police and the victim's testimony that she smelled alcohol on his breath corroborate defendant's claim. While he may have consumed alcohol prior to the events leading up to the crimes alleged, the evidence established that defendant's conduct was purposeful. He cut a hole in a screen to gain entry to the victim's residence, instructed the victim to be quiet, threw a blanket over her head, and stole her cell phone so she could not call the police.

APPEARANCES OF COUNSEL

Timothy P. Donaher, Public Defender, Rochester (*Janet C. Somes* of counsel), for appellant.

Sandra Doorley, District Attorney, Rochester (*Geoffrey Kaeuper* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

Following a jury trial, defendant was convicted of, among other crimes, rape in the first degree (Penal Law § 130.35 [1]) and burglary in the first degree (Penal Law § 140.30 [2]), arising from an incident that occurred on March 10, 2007. On that date, the victim returned home from a night out, charged her cell phone, and fell asleep on her couch. Three hours later, she was awoken by someone saying “shhhh” in her ear. The victim sat up and observed a man—later identified as defendant—lying on the couch beside her. The victim smelled alcohol on his breath. She screamed at him to leave. Defendant began choking her and a struggle ensued. They fell to the floor and defendant

raped her. He then threw a blanket over the victim's head and fled. The victim looked for her cell phone so she could call the police, but it was missing.

The victim then ran to her parents' house and her mother called the police. An officer responding to the victim's apartment observed two vertical cuts in the porch screen approximately eight inches apart, along with "smudges" consistent with someone having placed their hands against the window. The victim underwent a sexual assault examination later that morning.

Ten days later, an investigator, while questioning defendant about an earlier home invasion that had occurred on the same street, asked defendant about the rape. The investigator eventually obtained a warrant to search defendant's apartment, and recovered from a drop-ceiling tile in defendant's bedroom a cell phone that the victim identified as hers.

After having been shown the cell phone, defendant gave investigators a written, signed statement. In the statement, he claimed that

"[f]or the last two years, I've realized that I have a problem with alcohol. If I drink too much, I am taken over by a spirit that takes control of my body and my thoughts. It's something that I can't control. It only happens when I drink alcohol. I don't remember the exact night, but one night earlier this month I was out drinking all over. I remember going to Lux bar on South Avenue and other places. I got drunk. The next thing I remember is knocking on the front window of the house across the street from my house."

Defendant did not admit to raping the victim, but, instead, stated that he entered the house through a window and fell asleep on the couch, only to be awoken by a woman screaming at him, prompting him to flee. That morning, he found a cell phone in his clothing but could not remember how he had come to possess it, and he hid it in the ceiling.

The trial court denied defendant's request for an intoxication charge. The jury convicted defendant as charged. The Appellate Division affirmed, holding, as relevant to this appeal, that because the only record evidence of defendant's intoxication was his self-serving statements and the victim's testimony that she smelled alcohol on defendant's breath, he failed to establish his entitlement to an intoxication charge (89 AD3d 1414, 1417

[4th Dept 2011]). A Judge of this Court granted defendant leave to appeal.

Although intoxication is not a *defense* to a criminal offense, a defendant may offer evidence of intoxication whenever relevant to negate an *element* of the charged crime (*see* Penal Law § 15.25). An intoxication charge should be issued when, viewing the evidence in a light most favorable to defendant (*see People v Farnsworth*, 65 NY2d 734, 735 [1985]), “there is sufficient evidence of intoxication in the record for a reasonable person to entertain a doubt as to [an] element . . . on that basis” (*People v Perry*, 61 NY2d 849, 850 [1984]). In order to meet this “relatively low threshold,” defendant must present evidence

“tending to corroborate his claim of intoxication, such as the number of drinks, the period of time during which they were consumed, the lapse of time between consumption and the event at issue, whether he consumed alcohol on an empty stomach, whether his drinks were high in alcoholic content, and the specific impact of the alcohol upon his behavior or mental state” (*People v Gaines*, 83 NY2d 925, 927 [1994]).

Here, the evidence was insufficient to allow a reasonable juror to harbor a doubt concerning the element of intent on the basis of intoxication. Defendant’s bare assertions concerning his intoxication were, by themselves, insufficient (*see People v Sirico*, 17 NY3d 744, 745 [2011]). Nor did his statement to police and the victim’s testimony that she smelled alcohol on his breath corroborate defendant’s claim. While he may, indeed, have consumed alcohol prior to the events leading up to the crimes alleged, the evidence established that defendant’s conduct was purposeful. He cut a hole in a screen to gain entry, instructed the victim to be quiet, threw a blanket over her head, and stole her cell phone so she could not call the police. Given this evidence, the court correctly ruled an intoxication charge was not warranted.

Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, PIGOTT, RIVERA and ABDUS-SALAAM concur.

Order affirmed, in a memorandum.

[999 NE2d 1146, 977 NYS2d 701]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ROBERT KORDISH, Appellant.

Decided October 17, 2013

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered August 30, 2012. The Appellate Division granted a motion to dismiss an appeal from a judgment of the Supreme Court, Queens County (Seymour Rotker, J.), which had convicted defendant, in absentia, after a nonjury trial, of criminal sale of a controlled substance in the third degree, and dismissed the appeal.

People v Kordish, 2012 NY Slip Op 83087(U), reversed.

HEADNOTE

Crimes — Right to Counsel — Representation on Appeal — Dismissal of First-Tier Appeal

The Appellate Division erroneously failed to assign counsel to represent defendant before dismissing his first-tier appeal as of right based on his failure to timely perfect it notwithstanding the Appellate Division's rule mandating automatic dismissal of an untimely perfected appeal (*see* 22 NYCRR 670.8 [f]). Where an indigent defendant seeks appellate review that involves some consideration of the merits and involves claims that have not yet been presented by appellate counsel and passed upon by an appellate court, the appellate court must assign counsel to the defendant. The Appellate Division's decision to dismiss the appeal remained a discretionary determination on the merits of a threshold issue on defendant's first-tier appeal, rather than an automatic bar to appeal (*see* CPL 460.70 [2] [c]; CPL 470.60 [1]). Here, an appellate court had not yet passed on, nor had counsel presented, defendant's appellate claims with respect to dismissal or any other matter, thus leaving defendant ill equipped to represent himself. The Appellate Division was required to assign defendant an attorney upon a showing of indigence in order to enable him to oppose the court's motion to dismiss his first-tier appeal as of right, and the court's failure to appoint counsel to represent defendant without considering his indigency or the merits of dismissal warranted reversal and reinstatement of defendant's appeal.

APPEARANCES OF COUNSEL

Schlather, Stumbar, Parks & Salk, LLP, Ithaca (*Diane V. Bruns* of counsel), for appellant.

Richard A. Brown, District Attorney, Kew Gardens (*John M. Castellano* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed and

the matter remitted to that court for further proceedings in accordance with this memorandum.

Where, as in New York, a state provides for an appeal as of right from a criminal conviction, the United States Constitution compels the state to provide an indigent defendant with an attorney to represent the defendant on appeal (see *Evitts v Lucey*, 469 US 387, 393-394 [1985]; *Douglas v California*, 372 US 353, 356-357 [1963]). Furthermore, where “an indigent defendant seeks appellate review that (1) involves some consideration of the ‘merits,’ and (2) involves claims that have not yet ‘been presented by [appellate counsel] and passed upon by an appellate court,’ ” thereby rendering the defendant ill equipped to represent himself, the appellate court must assign counsel to the defendant at state expense (*Taveras v Smith*, 463 F3d 141, 147, 150-152 [2d Cir 2006], quoting *Douglas*, 372 US at 356; see also *Halbert v Michigan*, 545 US 605, 611-617 [2005]). As recognized by the Second Circuit in *Taveras* (*supra*) under New York law, whether the indigent defendant’s first-tier appeal should be dismissed as a matter of discretion on grounds of fugitive disentitlement constitutes a “threshold issue to be decided in the disposition of a former fugitive’s *first-tier appeal as of right*,” and thus the Appellate Division cannot exercise its discretion to dismiss the appeal without providing the defendant with a lawyer (463 F3d at 150-151 [internal quotation marks omitted]).

In this case, the Appellate Division erroneously failed to assign counsel to represent defendant before dismissing his first-tier appeal as of right based on his failure to timely perfect it. Notwithstanding the Appellate Division’s rule mandating automatic dismissal of an untimely perfected appeal (see 22 NYCRR 670.8 [f]), its decision to dismiss the appeal here remained a discretionary determination on the merits of a threshold issue on defendant’s first-tier appeal, rather than an automatic bar to appeal (see CPL 460.70 [2] [c]; 470.60 [1]; *People v Evans*, 69 NY2d 997, 998-999 [1987], *rev’d* 132 Misc 2d 615 [Sullivan County Ct 1986]). And an appellate court had not yet passed on, nor had counsel presented, defendant’s appellate claims with respect to dismissal or any other matter, thus leaving defendant ill equipped to represent himself. Because the factors cited in *Douglas*, *Halbert* and *Taveras* are present in the instant case, the Appellate Division was required to assign defendant an attorney upon a showing of indigence in order to enable him to oppose the court’s motion to dismiss his first-tier

appeal as of right, and the court's failure to appoint counsel to represent defendant without considering his indigency or the merits of dismissal warrants reversal and reinstatement of defendant's appeal. Upon remittal to the Appellate Division, that court should decide whether defendant is indigent pursuant to CPLR 1101. If defendant establishes his indigence, the court must assign counsel to litigate the dismissal motion, and the court should determine, in its discretion, whether dismissal is appropriate.

Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, PIGOTT, RIVERA and ABDUS-SALAAM concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed and case remitted to the Appellate Division, Second Department, for further proceedings in accordance with the memorandum herein.

MARIA AUQUI, as Guardian of the Property of JOSE VERDUGO, et al., Respondents, v SEVEN THIRTY ONE LIMITED PARTNERSHIP et al., Appellants.

Submitted October 15, 2013; decided October 17, 2013

Reported below, 83 AD3d 407.

Motion by Defense Association of New York, Inc. for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed.

MARIA AUQUI, as Guardian of the Property of JOSE VERDUGO, et al., Respondents, v SEVEN THIRTY ONE LIMITED PARTNERSHIP et al., Appellants.

Submitted October 15, 2013; decided October 17, 2013

Reported below, 83 AD3d 407.

Motion by Federation of Defense and Corporate Counsel for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed.

MARIA AUQUI, as Guardian of the Property of JOSE VERDUGO, et al., Respondents, v SEVEN THIRTY ONE LIMITED PARTNERSHIP et al., Appellants.

Submitted October 15, 2013; decided October 17, 2013

Reported below, 83 AD3d 407.

Motion by New York State AFL-CIO et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served and nine copies filed within seven days.

MARIA AUQUI, as Guardian of the Property of JOSE VERDUGO, et al., Respondents, v SEVEN THIRTY ONE LIMITED PARTNERSHIP et al., Appellants.

Submitted October 15, 2013; decided October 17, 2013

Reported below, 83 AD3d 407.

Motion by County of Suffolk for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served and nine copies filed within seven days.

MARIA AUQUI, as Guardian of the Property of JOSE VERDUGO, et al., Respondents, v SEVEN THIRTY ONE LIMITED PARTNERSHIP et al., Appellants.

Submitted October 15, 2013; decided October 17, 2013

Reported below, 83 AD3d 407.

Motion by New York State Bar Association for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

MARIA AUQUI, as Guardian of the Property of JOSE VERDUGO, et al., Respondents, v SEVEN THIRTY ONE LIMITED PARTNERSHIP et al., Appellants.

Submitted October 15, 2013; decided October 17, 2013

Reported below, 83 AD3d 407.

Motion by Workers' Injury Law & Advocacy Group for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and nine copies filed within seven days.

MARIA AUQUI, as Guardian of the Property of JOSE VERDUGO, et al., Respondents, v SEVEN THIRTY ONE LIMITED PARTNERSHIP et al., Appellants.

Submitted October 15, 2013; decided October 17, 2013

Reported below, 83 AD3d 407.

Motion by Real Estate Board of New York et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

BAYERISCHE LANDESBANK, Plaintiff/Counterclaim Defendant-Respondent, v 45 JOHN STREET LLC, Defendants/Counterclaim Plaintiffs-Appellants, et al., Defendants.

Submitted August 26, 2013; decided October 17, 2013

Reported below, 102 AD3d 587.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of DEBORAH BURNS et al., Appellants, v CARLOS CARBALLADA, in His Official Capacity as Commissioner of Neighborhood and Business Development of City of Rochester, et al., Respondents.

Submitted September 9, 2013; decided October 17, 2013

Reported below, 101 AD3d 1610.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied.

MARCIA L. CARONIA et al., Appellants, v PHILIP MORRIS USA, INC., Respondent.

Submitted October 15, 2013; decided October 17, 2013

See 715 F3d 417.

Motion by Product Liability Advisory Council, Inc. for leave to file a brief amicus curiae on consideration of the certified questions herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

MARCIA L. CARONIA et al., Appellants, v PHILIP MORRIS USA, INC., Respondent.

Submitted October 15, 2013; decided October 17, 2013

See 715 F3d 417.

Motion by American Chemistry Council et al. for leave to appear amici curiae on consideration of the certified questions herein granted only to the extent that the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

MARCIA L. CARONIA et al., Appellants, v PHILIP MORRIS USA, INC., Respondent.

Submitted October 15, 2013; decided October 17, 2013

See 715 F3d 417.

Motion by Business Council of New York State, Inc., et al. for leave to appear amici curiae on consideration of the certified questions herein granted only to the extent that the proposed brief is accepted as filed.

MARCIA L. CARONIA et al., Appellants, v PHILIP MORRIS USA, INC., Respondent.

Submitted October 15, 2013; decided October 17, 2013

See 715 F3d 417.

Motion by American Legacy Foundation et al. for leave to file a brief amicus curiae on consideration of the certified questions

herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and nine copies filed within seven days.

In the Matter of HAROLD GEORGE et al., Appellants, v NEW YORK STATE DEPARTMENT OF CORRECTIONS AND COMMUNITY SUPERVISION, Respondent.

Submitted August 26, 2013; decided October 17, 2013

Reported below, 107 AD3d 1370.

Motion for leave to appeal dismissed upon the ground that the issues presented have become moot.

DONNELL JEFFERSON, Appellant, v JOSHUA STUBBE, Respondent.

Submitted August 19, 2013; decided October 17, 2013

Reported below, 107 AD3d 1424.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied.

HERBERT KOLBE et al., Appellants, v CHRISTINE J. TIBBETTS, as Superintendent of Schools of Newfane Central School District, et al., Respondents.

Submitted October 15, 2013; decided October 17, 2013

Reported below, 101 AD3d 1623.

Motion by Civil Service Employees Association, Inc., Local 1000, AFSCME, AFL-CIO for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served and nine copies filed within seven days.

HERBERT KOLBE et al., Appellants, v CHRISTINE J. TIBBETTS, as Superintendent of Schools of Newfane Central School District, et al., Respondents.

Submitted October 15, 2013; decided October 17, 2013

Reported below, 101 AD3d 1623.

Motion by New York State School Boards Association for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and nine copies filed within seven days.

In the Matter of JOSE LANFRANCO, Appellant, v BRIAN FISCHER,
as Commissioner of Corrections and Community Supervi-
sion, Respondent.

Submitted September 3, 2013; decided October 17, 2013

Reported below, 105 AD3d 1235.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]; *Eaton v State of New York*, 76 NY2d 824 [1990]). Motion for poor person relief dismissed as academic.

DEIRDRE LOY, Respondent, v LOUIS L. LOY, Appellant.

Submitted September 9, 2013; decided October 17, 2013

Reported below, 108 AD3d 1201.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

EUGENE MARGERUM et al., Appellants-Respondents, v CITY OF
BUFFALO et al., Respondents-Appellants.

Submitted September 9, 2013; decided October 17, 2013

Reported below, 108 AD3d 1021.

Motion by National Association of Hispanic Firefighters for leave to file a brief amicus curiae on the motion by defendants for leave to appeal herein granted and the brief is accepted as filed.

EUGENE MARGERUM et al., Appellants-Respondents, v CITY OF
BUFFALO et al., Respondents-Appellants.

Submitted September 9, 2013; decided October 17, 2013

Reported below, 108 AD3d 1021.

Motion by Lawyers' Committee for Civil Rights Under Law, insofar as it seeks to file a brief amicus curiae on the motion by defendants for leave to appeal herein, granted and the proposed brief is accepted as filed; motion, insofar as it seeks leave for movant to appear amicus curiae on the appeal herein, denied as premature (*see* Rules of Ct of Appeals [22 NYCRR] § 500.23 [a] [3]).

EUGENE MARGERUM et al., Appellants-Respondents, v CITY OF BUFFALO et al., Respondents-Appellants.

Submitted September 16, 2013; decided October 17, 2013

Reported below, 108 AD3d 1021.

Motion by International Municipal Lawyers Association et al., insofar as it seeks to file a brief amici curiae on the motion by defendants for leave to appeal herein, granted and the proposed brief is accepted as filed; motion, insofar as it seeks leave for movants to appear amici curiae on the appeal herein, denied as premature (*see* Rules of Ct of Appeals [22 NYCRR] § 500.23 [a] [3]).

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v DWIGHT R. DeLEE, Respondent.

Submitted October 15, 2013; decided October 17, 2013

Reported below, 108 AD3d 1145.

Motion by Lambda Legal Defense and Education Fund, Inc., et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ANTHONY ODDONE, Appellant.

Submitted October 15, 2013; decided October 17, 2013

Reported below, 89 AD3d 868.

Motion by Innocence Project, Inc. for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOHNNY SHORTER, Appellant.

Submitted October 15, 2013; decided October 17, 2013

Reported below, 106 AD3d 1115.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

TOWN OF OYSTER BAY, Appellant, v LIZZA INDUSTRIES, INC., Respondent. (And Other Actions.)

Submitted October 15, 2013; decided October 17, 2013

Reported below, 94 AD3d 1094.

Motion by DRI-The Voice of the Defense Bar for leave to file a brief amicus curiae on the appeals herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

WILLIAM J. JENACK ESTATE APPRAISERS AND AUCTIONEERS, INC., Appellant, v ALBERT RABIZADEH, Respondent.

Submitted October 15, 2013; decided October 17, 2013

Reported below, 99 AD3d 270.

Motion by Sotheby's, Inc., et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

[999 NE2d 1149, 977 NYS2d 704]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOCELYN CLERMONT, Appellant.

Argued September 11, 2013; decided October 22, 2013

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Second Judicial Department, from

an order of that Court, entered May 30, 2012. The Appellate Division (1) affirmed a judgment of the Supreme Court, Queens County (Kenneth C. Holder, J.), which had convicted defendant, upon a jury verdict, of criminal possession of a weapon in the second degree and criminal possession of a weapon in the third degree (two counts), and (2) remitted the matter to Supreme Court for the issuance of an amended presentence report, and a sentence and commitment sheet.

People v Clermont, 95 AD3d 1349, modified.

HEADNOTE

Crimes — Right to Counsel — Effective Representation — Deficient Representation at Suppression Hearing

In a prosecution charging defendant with possession of a weapon, the matter was remitted to Supreme Court for further proceedings on defendant's suppression application where defense counsel's representation in relation to the application as a whole was deficient in so many respects that defendant was not afforded meaningful representation at that critical stage of the prosecution. Counsel failed to marshal the facts at the hearing, made no legal argument and made no attempt to correct the apparent factual error in the court's decision. The errors could not be explained as part of a strategic design, given that defense counsel had previously asked to be relieved, informing the court that he was unable to provide competent representation to defendant. The suppression issue was close under the complex *De Bour* jurisprudence and, had suppression been granted, the indictment would have been dismissed. Given the litany of counsel's errors, the fairness of the proceeding was substantially undermined. Relief was therefore appropriate under the meaningful representation standard, which does not invariably require a strict showing of prejudice.

APPEARANCES OF COUNSEL

Lynn W.L. Fahey, Appellate Advocates, New York City (*Allegra Glashausser* of counsel), for appellant.

Richard A. Brown, District Attorney, Kew Gardens (*Suzanne H. Sullivan* and *John M. Castellano* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be modified by remitting to Supreme Court for further proceedings in accordance with this memorandum and, as so modified, affirmed. In the event defendant prevails on the suppression issue, the conviction should be vacated and the indictment dismissed; alternatively, if the People prevail, the judgment should be amended to reflect that result.

Defendant was charged with weapon possession offenses after he was found in possession of a gun as a consequence of a street

encounter with the police. Three days before the suppression hearing, his assigned counsel made an application to be relieved as counsel, stating that his associate had quit, he was overwhelmed with work and could not competently represent defendant. Counsel restated these concerns on the record before the hearing commenced and the court stated that the motion would be granted after counsel completed the hearing. Thereafter, the hearing ensued, the court denied suppression, new counsel was appointed and the case proceeded to trial where defendant was convicted of criminal possession of a weapon in the second and third degrees.

On appeal, defendant sought reversal of his conviction based on the ineffective assistance of his first attorney. The Appellate Division affirmed the judgment in a divided decision (95 AD3d 1349 [2d Dept 2012]). The majority concluded that counsel's representation had not fallen below the constitutional standard but the dissent disagreed, reasoning that multiple errors by the attorney in relation to defendant's suppression application warranted remittal of the case to Supreme Court. The Appellate Division dissenter granted defendant leave to appeal to this Court (19 NY3d 1030 [2012]).

We agree with the dissent that defendant is entitled to relief. In his written motion requesting a hearing, counsel misstated the facts relating to the arrest, indicating that defendant had been involved in a motor vehicle stop rather than a street encounter with police. At the suppression hearing, the attorney did not marshal the facts for the court and made no legal argument. This, coupled with his failure to make appropriate argument in his motion papers or to submit a post-hearing memorandum, meant that the defense never supplied the hearing court with any legal rationale for granting suppression. Moreover, after the court issued a decision describing the sequence of events in a manner that differed significantly from the testimony of the police officer (the only witness at the hearing) and was adverse to the defense, defendant's attorney made no motion to reargue or otherwise correct the court's apparent factual error. Counsel never ascertained whether the court decided the motion based on the hearing proof or a misunderstanding of the officer's uncontradicted testimony.

And this is not a case where any of these errors can be explained as part of a strategic design (assuming one could be imagined), given that defense counsel asked to be relieved, informing the court that he was unable to provide competent

representation to defendant. Thus, although the attorney secured a hearing, his representation in relation to the application as a whole was deficient in so many respects—both before, during and after the proceeding—that defendant was not afforded meaningful representation at a critical stage of this prosecution.

The People contend that, even assuming counsel was deficient, the conviction should be affirmed because there is record support for the order denying suppression and defendant has failed to establish prejudice. We are unpersuaded. In this case it is not necessary for us to discuss the merits of the suppression issue to decide the ineffective assistance claim, other than to note that, on appeal, the parties have presented substantial arguments for and against suppression and the issue is close under our complex *De Bour* jurisprudence. The suppression motion could have been dispositive of the entire proceeding given that defendant was charged solely with weapon possession offenses stemming from his encounter with police and, had suppression been granted, the indictment would have been dismissed. In light of the litany of errors made by defense counsel, including the failure to offer legal argument concerning suppression or to attempt to correct the significant factual anomaly in the decision, our confidence in the fairness of the proceeding is substantially undermined. Relief is therefore appropriate under our meaningful representation standard, which does not invariably require a strict showing of prejudice (*People v Stultz*, 2 NY3d 277, 284 [2004]). We conditionally modify the judgment by remitting this matter to Supreme Court for further proceedings on the suppression application, to include legal argument by counsel for both parties and, if defendant so elects, reopening of the hearing.

RIVERA, J. (dissenting). I do not consider this issue “close under our complex *De Bour* jurisprudence” (majority mem at 934). Based on the record before us, the detective’s testimony makes clear that, as a matter of law, suppression is warranted. To say that Supreme Court could have concluded otherwise and found requisite reasonable suspicion is to say that Supreme Court could have committed reversible error by reaching a legal conclusion for which there is no record support. I would grant that branch of defendant’s motion to suppress physical evidence and dismiss the indictment. Accordingly, I dissent.

Defendant was arrested and charged with criminal possession of a weapon. Prior to defendant’s trial, counsel moved as part of

an omnibus motion to suppress the weapon, a gun seized shortly after defendant's arrest. However, in that branch of defendant's omnibus motion that sought suppression of physical evidence, counsel recited a wholly different factual scenario from the events actually leading up to defendant's arrest and the seizure of the gun. Counsel incorrectly stated that police officers approached defendant while he was seated in an automobile, and that after they forcibly removed him from the vehicle, a gun fell out onto the ground. This was a complete fiction. The correct facts were that the officers had observed defendant walking on the street, arrested him after a chase on foot, and seized the gun from a private yard near where he was arrested. Additionally, because counsel's legal argument was based on these incorrect facts, he also failed to tailor the legal standards to the specifics of defendant's case. Although counsel's motion papers stated that he was "unaware of many of the relevant facts necessary to [his] preparation of the defense," and requested permission to submit a post-hearing memorandum, "so that [he] might more effectively represent the interests of [defendant]," he never filed such memorandum.

Counsel thereafter sought to extricate himself from the case, apparently because he was unable to provide competent representation as a consequence of staffing issues in his office. Three days prior to the hearing on the suppression motion, defense counsel moved to be relieved from representing the defendant. He informed the court that due to his associate's unexpected resignation, he had an overwhelming amount of work, much of which involved matters that conflicted with his state cases. He stated that he did not have "sufficient time and/or resources to competently represent" all of his clients.

Counsel renewed his motion to withdraw on the morning of the hearing, stating that his practice was predominately in immigration law, and that he was scheduled for another criminal trial that very same day. The court did not rule on the motion, but instead asked counsel if he could proceed with the "hearing today and get the case to a trial posture." Counsel agreed to proceed, but informed the court that he would make his motion to be relieved at the end of the suppression hearing.

The People's sole witness at the suppression hearing was the arresting detective, a 10-year veteran of the New York City Police Department, currently assigned to the Queens Gang Squad, where he had worked for approximately six years. He testified that on the night of defendant's arrest, at about 9:15 p.m., he

was driving an unmarked police car on a routine patrol of an area in Queens, known to the police as a “gang location.” The detective was on patrol with his partner when he observed defendant and another man walking down the street. He saw defendant make what the detective described as “constant adjustments to his right waistband area.” He then stopped the car, got out, displayed his shield and identified himself to the defendant. Defendant turned and ran away, and the detective ran after him down a driveway and through a backyard area. During the chase, the detective saw defendant take a gun from his waistband area and throw it to the ground. The detective caught defendant, arrested him and retrieved the gun from the yard where it had been tossed.

Upon cross-examination, defense counsel’s only questions regarding the events leading up to the officer’s foot chase of the defendant focused on why the officers were patrolling the neighborhood and whether defendant was alone. Counsel did not call any witnesses, did not make an opening or closing statement, and in response to the court’s inquiry as to whether he wished to be heard, counsel stated that he would rely on the record.

The court immediately issued an oral decision denying suppression of the gun, and informed counsel there would be a written decision forthcoming. The court then relieved defense counsel and asked him to appear at the next court date the following month, to transfer the case to new assigned counsel.

In its subsequent written order, the court made key incongruous statements and findings. The court’s findings of fact correctly stated that defendant threw the gun to the ground while he was running from the detective. However, in its conclusions of law, the court stated that the detective’s foot chase was justified because he had observed defendant throw the gun *prior* to the chase. This error was never corrected.

Defendant appeals from the Appellate Division order, and contends counsel’s failure to present an unassailable argument, challenging the lawfulness of the detective’s actions resulting in the foot chase and seizure of the gun, constitutes ineffective assistance of counsel. Defendant argues that because the police lacked reasonable suspicion to chase him, the gun would have been suppressed, and there would have been insufficient evidence to convict him of the sole charges of which he was found guilty, namely the weapons charges. I agree.

The right to the effective assistance of counsel is guaranteed by both the Federal and New York State Constitutions (*see* US

Const 6th Amend; NY Const, art I, § 6). Under the Federal Constitution, a defendant is entitled to representation that satisfies “an objective standard of reasonableness” (*Strickland v Washington*, 466 US 668, 688 [1984]). Under *Strickland*, a defendant claiming ineffective assistance of counsel “must show that there is a reasonable probability that, but for counsel’s unprofessional errors, the result of the proceeding would have been different” (*id.* at 694). Under our State’s Constitution, to prevail on the claim that he was denied effective assistance of counsel, defendant must demonstrate that his attorney failed to “provide meaningful representation . . . [and] must demonstrate the absence of strategic or other legitimate explanations for counsel’s allegedly deficient conduct” (*People v Caban*, 5 NY3d 143, 152 [2005] [internal quotation marks and citations omitted]). The state standard of meaningful representation does not require a defendant to fully satisfy the prejudice test of *Strickland*. Our State’s prejudice component focuses on the fairness of the process as a whole, rather than its particular impact on the outcome of the case (*id.* at 155-156). Counsel’s representation is “viewed in totality” (*People v Turner*, 5 NY3d 476, 480 [2005], citing *People v Baldi*, 54 NY2d 137, 147 [1981]). Under both the federal and state standards it is possible for a single error to constitute performance that “is so ‘egregious and prejudicial’ as to deprive a defendant of his constitutional right” (*Turner*, 5 NY3d at 480, citing *People v Caban*, 5 NY3d 143, 152 [2005], and *Murray v Carrier*, 477 US 478, 496 [1986]).

In *Turner* we held that the failure to raise a defense that is “clear-cut” and “completely dispositive,” in the absence of a reasonable explanation, “is hard to reconcile with a defendant’s constitutional right to the effective assistance of counsel” (5 NY3d at 481). The defense counsel in *Turner* failed to argue that prosecution for manslaughter as a lesser-included offense was barred by a five-year statute of limitations; we therefore concluded counsel was ineffective. Defendant here analogizes his case to *Turner*, claiming that his counsel failed to assert a dispositive argument that the police did not have justification to chase him, and that this argument would have ensured the suppression of the gun and the dismissal of the charges. I agree.

In order to justify police pursuit, the officers must have “reasonable suspicion that a crime has been, is being, or is about to be committed” (*People v Holmes*, 81 NY2d 1056, 1058 [1993]). Reasonable suspicion encompasses a “quantum of knowledge sufficient to induce an ordinarily prudent and cautious [person]

under the circumstances to believe criminal activity is at hand” (*People v Martinez*, 80 NY2d 444, 448 [1992] [citation omitted]). We have found that “[f]light, combined with other specific circumstances indicating that the suspect may be engaged in criminal activity, could provide the predicate necessary to justify pursuit” (*Holmes*, 81 NY2d at 1058). “Flight alone, however, or even in conjunction with equivocal circumstances that might justify a police request for information, is insufficient to justify pursuit” (*id.* [citations omitted]).

Nearly two decades ago, in a case on all fours with the present appeal, we held that flight in combination with a defendant grabbing at his waistband, “does not support a determination that the officers had reasonable suspicion to pursue defendant” (see *People v Sierra*, 83 NY2d 928, 930 [1994]). In *Sierra*, we found no reasonable suspicion to pursue a fleeing defendant where “the officers knew *only* that, after exiting from the back seat of a livery cab that had been stopped for defective brake lights, defendant grabbed at his waistband” (*id.* [emphasis added]).

Years later, we reiterated that flight must be accompanied by other suggestive conduct in order to support reasonable suspicion justifying a seizure (*People v Pines*, 99 NY2d 525, 527 [2002], citing *Martinez*, 80 NY2d at 447-448). In *Martinez*, we acknowledged that the “[d]efendant had a right to refuse to respond to a police inquiry and his flight when the officers approached could not, in and of itself, create a reasonable suspicion of criminal activity” (*id.* at 448 [citation omitted]). Only after aggregating other compelling circumstances—namely that defendant was observed “removing an instrument known to the police to be used in concealing drugs”—did we find reasonable suspicion (*id.*).

In *Pines*, police in an unmarked police vehicle followed defendant and his companion. Noticing the police, defendant continued down the street, but his gaze remained fixed upon the trailing police vehicle. When the police came closer, defendant “maneuvered in such a way as to keep his right side out of the view of the officers until, when the [police] drove up parallel to the two, defendant abruptly turned and began walking in the opposite direction abandoning his companion” (99 NY2d at 526). We held this suspicious behavior, coupled with “defendant plac[ing] his right arm against the side of his bubble jacket bunching it up by reaching underneath with his hand in a cupping motion, reminding the testifying officer of how he himself

would sometimes adjust a gun under a jacket,” was sufficient to support reasonable suspicion (*id.*).

Here, the detective testified at the suppression hearing that he observed defendant adjusting his waistband. By the detective’s own testimony, there was absolutely no indicia of a weapon or criminal activity. There was no cupping motion, bunched up jacket suggestive of a concealed weapon, no disconcerting facial movements, such as bulging eyes, or an attempt to hide by the defendant to conceal his movements from the police. This case is not analogous to *Pines*; there, police were faced with substantially more facts warranting “an ordinarily prudent and cautious [person] under the circumstances to believe criminal activity [was] at hand” (*Martinez*, 80 NY2d at 448 [citation omitted]).

The People seek to distinguish the defendant’s case from our prior case law, by arguing that defendant’s presence in an area known for gang activity, along with the waistband adjustments, justify the police conduct. However, we have previously rejected the argument that presence in a high crime vicinity alone justifies a police encounter (*see People v McIntosh*, 96 NY2d 521, 526-527 [2001] [“(t)he fact that an encounter occurred in a high crime vicinity, without more, has not passed *De Bour* and *Hollman* scrutiny”]). Our concern as to sweeping assumptions concerning individuals in particular neighborhoods is not new, or unfounded:

“Arrests are made of individuals, not of neighborhoods. When we single out the latter, more likely than not congested areas peopled in the main by those who are socially and economically deprived, we subject all its residents, the vast majority of whom are sure to be free of criminal taint, to an immeasurably greater risk of invasion than those who live elsewhere” (*People v McRay*, 51 NY2d 594, 606-607 [1980, Fuchsberg, J., concurring]).

Faced with what was a strong and compelling defense, counsel’s failure to properly challenge the detective’s lack of reasonable suspicion was not merely poor judgment or a harmless mistake. It was the error that mattered most because it allowed the People to proceed to trial with the single most important piece of evidence, the gun that was the basis for the weapons possession charges.

This case, like *Turner*, involves an error by counsel of such magnitude that on its own deprived defendant of his rights to a

level of constitutionally acceptable representation, and evinced an egregious breach of minimal professional standards. Such error, again, is very rare. In *People v McGee* (20 NY3d 513 [2013]), we found counsel was not ineffective where he failed to move to dismiss an indictment based on insufficient evidence. Distinguishing *Turner*, we found counsel was not ineffective for failing to raise the sufficiency argument because it could not be “fairly characterized as clear-cut and dispositive in defendant’s favor” (*id.* at 518, citing *People v Brunner*, 16 NY3d 820, 821 [2011], and *People v Borrell*, 12 NY3d 365, 369 [2009]). Similarly, in *Borrell*, defendant was convicted on two separate occasions, after jury verdict, and sentenced simultaneously to two consecutive terms in prison. Counsel had failed at sentencing to contest the legality of the sentences. Finding the argument’s merit had “far from clear prospects,” we held “[c]ounsel was not ineffective for failing to raise an issue of such uncertain efficacy” (12 NY3d at 369). In *Brunner*, defendant argued counsel failed to make a meritorious argument under CPL 30.30. We found “although defendant’s arguments . . . are substantial, there is nothing clear cut about . . . his claim[;] its success . . . depended on the resolution of several novel issues” (16 NY3d at 821).

On the face of the record, defendant’s argument was both clear-cut and dispositive in defendant’s favor (*cf. McGee*, 20 NY3d at 518; *Borrell*, 12 NY3d at 369; and *Brunner*, 16 NY3d at 821). The argument that the police lacked reasonable suspicion to pursue him would have, as a matter of law, resulted in the suppression of the gun (*see People v Wilkerson*, 64 NY2d 749, 750 [1984] [“if the evidence is discovered as a direct consequence of the unlawful police conduct, then it must be suppressed”]). There is simply no record support for a contrary finding. Moreover, there is no reasonable explanation for counsel’s failure to raise this argument.

The majority and I agree that counsel’s conduct was constitutionally deficient, and that defendant is entitled to relief. This is where our agreement ends because I believe that there is no legal support for denying the motion to suppress, and therefore the indictment must be dismissed. As I have explained, this is not the close call the majority believes it to be.

The majority’s decision to remit to allow new counsel to argue the merits of suppression on the existing record or, if the defendant so chooses, to reopen the hearing, is based on the assumption that the People’s case has merit. It simply does not.

However, having signaled that it does, it has strengthened the People's position, and as a consequence undermined the defendant's arguments. Selecting to proceed on the existing suppression record thus is a dangerous proposition for the defendant. Choosing alternatively to reopen the hearing is a course no less perilous for the defendant. As we stated in *People v Havelka*, “[a] remand with the benefit of hindsight derived from an appellate court opinion offers too facile a means for establishing probable cause after the event . . . Tailoring the evidence at the rehearing to fit the court's established requirements, whether done unconsciously or otherwise, would surely be a considerable danger” (45 NY2d 636, 643-644 [1978]). Essentially, this second “bite at the apple” allows the People to shore up their case.

The majority concludes that a person standing on the street, who makes the most innocent of movements—in this case adjusting a waistband—is subject to inquiry simply because that person is walking in a neighborhood known to the police for its gang activity. I cannot agree with the underlying assumption that persons stopped by police in such an area of the community are more likely to be engaged in criminal activity than those who walk or live in any other neighborhood. We have already rejected this assumption and today's decision ignores the wisdom of our prior case law. I dissent.

Judges GRAFFEO, READ, SMITH, PIGOTT and ABDUS-SALAAM concur; Judge RIVERA dissents in an opinion in which Chief Judge LIPPMAN concurs.

Order modified by remitting to Supreme Court, Queens County, for further proceedings in accordance with the memorandum herein and, as so modified, affirmed.

[1 NE3d 296, 978 NYS2d 95]

In the Matter of STATE OF NEW YORK, Respondent, v ENRIQUE D., Appellant.

Argued September 12, 2013; decided October 22, 2013

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered September 4, 2012. The Appellate Division affirmed an order of the Supreme Court, Bronx County (Cassandra M. Mullen, J.), entered in a proceeding pursuant to

Mental Hygiene Law article 10, which, upon a jury finding that appellant suffered from a mental abnormality and after a dispositional hearing, had determined that appellant was a dangerous sex offender requiring confinement, and committed him to a secure treatment facility.

Matter of State of New York v Enrique D., 98 AD3d 847, reversed.

HEADNOTE

Crimes — Sex Offenders — Civil Commitment or Supervision — Respondent's Right to Call Witnesses

In a civil management proceeding pursuant to Mental Hygiene Law article 10 where the State's expert diagnosed respondent with "paraphilia, not otherwise specified (NOS)—non-consent," Supreme Court abused its discretion by precluding respondent's proffered witness, his former girlfriend, from testifying as to whether respondent had ever offended against her. Mental Hygiene Law § 10.08 (g) provides that a respondent in an article 10 proceeding "may, as a matter of right, testify in his or her own behalf, call and examine other witnesses, and produce other evidence in his or her behalf." That provision does not limit a respondent to expert witnesses. The pertinent question is whether a witness—expert or lay—has material and relevant evidence to offer on the issues to be resolved. The witness's rejected testimony was relevant to the State expert's diagnosis that respondent was sexually aroused by forcing unwilling women to engage in sexual conduct and was unable to control his sex-offending behavior. The jury was asked to decide whether respondent suffered a condition, disease, or defect that predisposed him to commit sex offenses, and whether that condition caused him serious difficulty in controlling his sex offending conduct. With respect to the first prong, the proffered testimony would have called into question whether respondent had exhibited a long-standing fixation on non-consenting women; as to the second, her testimony was relevant to show whether he experienced difficulty controlling his sexual behavior.

APPEARANCES OF COUNSEL

Marvin Bernstein, *Mental Hygiene Legal Service*, New York City (*Sadie Zea Ishee* and *Diane Temkin* of counsel), for appellant.

Eric T. Schneiderman, *Attorney General*, New York City (*Valerie Figueredo*, *Steven C. Wu* and *Barbara D. Underwood* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed, without costs, and a new trial ordered.

Respondent Enrique D. has an extensive history of sex offenses. In July 2009, as Enrique D. neared release from prison,

where he had most recently been serving a sentence of 2 to 4 years for attempted sexual abuse in the first degree (Penal Law §§ 130.65, 110.00), petitioner State of New York commenced this civil management proceeding pursuant to Mental Hygiene Law article 10. At the ensuing jury trial to determine whether Enrique D. suffered from a mental abnormality, his attorney sought to call as a witness a former girlfriend, Naomi N. The attorney told the trial judge that Naomi N. would testify as to “whether [Enrique D.] ever offended against her, ever tried to offend against her, any boundaries that she had that he respected or didn’t respect.” He argued that this testimony was relevant “to the second element of the . . . mental abnormality [finding], which is [Enrique D.’s] ability to control himself.”

The trial judge denied the request, but stated that Enrique D.’s expert could testify about any information provided by Naomi N. which he relied upon in reaching his diagnosis and opinion. The judge added that she would reserve decision as to whether to allow Naomi N. herself to testify in addition to the expert. Later during the trial, Enrique D.’s attorney again asked the judge to allow Naomi N. to testify, and the judge again denied the request on the same basis—that anything relevant that Naomi N. might have to say could come in through Enrique D.’s expert.

The State’s expert diagnosed Enrique D. with “paraphilia, not otherwise specified (NOS)—non-consent,” meaning that he was sexually aroused by forcing unwilling women to engage in sexual conduct. The expert further testified that Enrique D. was unable to control his sex-offending behavior. Enrique D.’s expert, by contrast, did not diagnose him with paraphilia NOS, and added that the “non-consent” diagnosis was controversial within the psychiatric community; the expert did not refer to any information provided by Naomi N.

The jury returned a unanimous verdict finding that Enrique D. suffered from a mental abnormality as defined in Mental Hygiene Law § 10.03 (i). Following a dispositional hearing, Supreme Court adjudged Enrique D. a dangerous sex offender in need of confinement. On appeal, the Appellate Division affirmed (98 AD3d 847 [1st Dept 2012]), concluding that Supreme Court had not committed reversible error in rejecting Naomi N.’s testimony. In the Court’s view, the fact “that [Enrique D.] may not have sexually abused one former girlfriend—and there was evidence in the proceeding that he had at least 26 sexual partners—does not tend to disprove that his behavior manifested

a pattern of sexually abusing nonconsenting women” (*id.* at 848). We granted Enrique D. leave to appeal (20 NY3d 857 [2013]), and now reverse.

In the circumstances of this case, Supreme Court abused its discretion by precluding Naomi N. from testifying. Mental Hygiene Law § 10.08 (g) provides that a respondent in an article 10 proceeding “may, as a matter of right, testify in his or her own behalf, call and examine other witnesses, and produce other evidence in his or her behalf.” This provision manifestly does not limit a respondent to expert witnesses. The pertinent question is whether a witness—expert or lay—has material and relevant evidence to offer on the issues to be resolved.

Here, Naomi N.’s rejected testimony was relevant to the State expert’s diagnosis of paraphilia NOS—non-consent. The jury was asked to decide whether Enrique D. suffered a condition, disease, or defect that predisposed him to commit sex offenses, and whether that condition caused him serious difficulty in controlling his sex-offending conduct. With respect to the first prong, Naomi N.’s testimony would have called into question whether Enrique D. exhibited a long-standing fixation on non-consenting women; as to the second, her testimony was relevant to show whether he experienced difficulty controlling his sexual behavior.

Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, PIGOTT, RIVERA and ABDUS-SALAAM concur.

Order reversed, without costs, and a new trial ordered, in a memorandum.

[999 NE2d 174, 976 NYS2d 696]

ROBERT K. MONETTE et al., Appellants, v CHRISTINA L. TRUMMER et al., Defendants, and JIM BALL PONTIAC-BUICK-GMC, INC., Respondent.

Decided October 22, 2013

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered April 26, 2013. The Appellate Division, with two Justices dissenting, (1) reversed, on the law, an order of the Supreme Court, Cattaraugus County (Michael L. Nenno, J.), which had denied

the motion of defendant Jim Ball Pontiac-Buick-GMC, Inc. for summary judgment dismissing the complaint and all cross claims against it, (2) granted the motion, and (3) dismissed the complaint and all cross claims against that defendant.

Plaintiffs commenced this action seeking damages for injuries sustained by plaintiff when a parked vehicle in which he was seated was rear-ended by a vehicle owned by defendant Jesse L. Ball and operated by defendant Christina L. Trummer. Trummer had borrowed the vehicle from her boyfriend, defendant David Leederman, who in turn had been loaned the vehicle by defendant Jim Ball Pontiac-Buick-GMC, Inc., a car dealership, while defendant was servicing Leederman's pickup truck. Although the car dealership had agreed to loan Leederman a vehicle while it repaired his truck, those vehicles were all with other customers at that time. Defendant's chief financial officer asked Jesse Ball, an employee of defendant dealership and the daughter of the dealership's owner whether she would be willing to permit Leederman to use her vehicle while his truck was being serviced. She agreed, and Leederman signed a "rental agreement" with the dealership. Later that evening, Leederman allowed Trummer to drive Jesse Ball's vehicle to work, whereupon the subject accident took place. Plaintiffs asserted that the dealership was vicariously liable under Vehicle and Traffic Law § 388 as a co-owner of the vehicle involved in the accident.

The Appellate Division concluded, among other things, that the dealership established as a matter of law that it was not the owner of the vehicle involved in the accident, and that plaintiffs had failed to raise a triable issue of fact with respect to ownership of that vehicle, noting that Jesse Ball had leased the vehicle at issue from GMAC, and that although Jesse Ball was an employee of defendant, the vehicle was her personal vehicle, on which she made the lease payments and paid for the insurance, which was under a policy separate from that of the dealership's policy.

Monette v Trummer, 105 AD3d 1328, affirmed.

HEADNOTE

Motor Vehicles — Owner of Vehicle — Employer of Vehicle's Owner Who Loaned Vehicle to Another Not "Owner"

In a personal injury action commenced by a passenger of a vehicle that was rear-ended by a vehicle loaned by defendant dealership to a customer while his truck was being serviced, but owned by an employee of the dealership, the Appellate Division properly granted summary judgment dismissing the complaint since the dealership satisfied its initial burden of proving that it

was not an owner of the vehicle in question under Vehicle and Traffic Law § 128 and plaintiffs failed to raise a genuine issue of fact to support a contrary finding.

APPEARANCES OF COUNSEL

Dwyer, Black & Lyle, LLP, Olean (*Jeffrey A. Black* of counsel), for appellants.

Law Offices of Destin C. Santacrose, Buffalo (*Christopher R. Turner* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs.

On these facts, we agree with the Appellate Division majority that defendant dealer satisfied its initial burden of proving that it was not an owner of the vehicle in question under Vehicle and Traffic Law § 128. Plaintiffs failed to raise a genuine issue of fact to support a contrary finding.

Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, PIGOTT, RIVERA and ABDUS-SALAAM concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, with costs, in a memorandum.

KELLY L. ASHMORE, Respondent, v BENJAMIN ASHMORE, SR., Appellant.

Decided October 22, 2013

Reported below, 2013 NY Slip Op 80483(U).

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of CONCERNED HOME CARE PROVIDERS, INC., et al., Appellants, v STATE OF NEW YORK et al., Respondents.

Decided October 22, 2013

Reported below, 108 AD3d 151.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

EMIGRANT MORTGAGE COMPANY, INC., Appellant, v DOUGLAS WESTERVELT, JR., Respondent, et al., Defendants.

Submitted August 5, 2013; decided October 22, 2013

Reported below, 105 AD3d 896.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

WAJMA FARHADI, Respondent, v SHER AHMAD QURESHI, Appellant.

Submitted August 26, 2013; decided October 22, 2013

Reported below, 105 AD3d 990; 2013 NY Slip Op 77873(U).

Motion, insofar as it seeks leave to appeal from the September 2011 Supreme Court order, dismissed upon the ground that it does not lie (*see* NY Const, art VI, § 3; CPLR 5602); motion for leave to appeal otherwise dismissed upon the ground that the Appellate Division orders sought to be appealed from do not finally determine the action within the meaning of the Constitution.

In the Matter of CATHERINE FLANAGAN, Respondent, v STEPHEN FLANAGAN, Appellant.

Submitted September 3, 2013; decided October 22, 2013

Reported below, 109 AD3d 470.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of MARK FORD et al., Appellants, v NEW YORK STATE RACING AND WAGERING BOARD, Respondent.

Submitted September 9, 2013; decided October 22, 2013

Reported below, 107 AD3d 1071.

Motion for leave to appeal denied upon the ground that an appeal lies as of right.

In the Matter of STEPHANIE GONNARD, Respondent, v JAMES GUIDO, Appellant.

Decided October 22, 2013

Reported below, 108 AD3d 709.

Appeal, insofar as taken from that portion of the Appellate Division order affirming so much of Family Court's order as granted the petition and modified custody, dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved (*see* CPLR 5601 [b] [1]); appeal otherwise dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that it does not lie (*see* CPLR 5601; NY Const, art VI, § 3).

In the Matter of CATHERINE A. GORMAN, Appellant, v KATHLEEN M. RICE, Nassau County District Attorney, Respondent, et al., Respondent.

Submitted August 26, 2013; decided October 22, 2013

Reported below, 106 AD3d 1000.

Motion for leave to appeal denied as unnecessary. Motion for a stay granted.

LIDIA HUGHES, Respondent, v ANDRE HUGHES, Appellant.

Submitted September 16, 2013; decided October 22, 2013

Reported below, 79 AD3d 473.

Motion for leave to appeal denied. Motion for a stay dismissed as academic.

JACOBSON FAMILY INVESTMENT, INC., et al., Appellants, v NATIONAL UNION FIRE INSURANCE COMPANY OF PITTSBURGH, PA, et al., Respondents.

Submitted July 22, 2013; decided October 22, 2013

Reported below, 102 AD3d 223.

Motion, insofar as it seeks leave to appeal on behalf of MDG 1994 GRAT, LLC and BSJ Foundations, LLC, dismissed upon the ground that as to those parties the order sought to be appealed from does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

Judge ABDUS-SALAAM taking no part.

KEVIN KERVENG TUNG, P.C., Appellant, v JP MORGAN CHASE & Co. et al., Respondents.

Submitted September 9, 2013; decided October 22, 2013

Reported below, 105 AD3d 709.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

CONSTANTINE KORELIS, Appellant, v CONRIV REALTY CORP., Respondent.

Decided October 22, 2013

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that it does not lie (*see* CPLR 5601).

In the Matter of JUAN C. LARA, Respondent, v MICHELLE B. SULLIVAN, Appellant.

Submitted August 19, 2013; decided October 22, 2013

Reported below, 108 AD3d 1238.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order as affirmed that part of Family Court's order adjudging appellant in civil contempt for violating a prior custody order, dismissed upon the ground that such portion of the order does not finally determine the proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied. Motion for poor person relief dismissed as academic.

ROBERT D. MOORE et al., Appellants, v RICHARD S. JOHNSON et al., Respondents.

Submitted August 19, 2013; decided October 22, 2013

Reported below, 108 AD3d 1125.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

149 MADISON LLC, Respondent, v PAUL J. BOSCO, Appellant.

Submitted September 23, 2013; decided October 22, 2013

Reported below, 2013 NY Slip Op 80473(U).

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]).

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v HIRAM BEAVER, Appellant.

Submitted September 3, 2013; decided October 22, 2013

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain this motion for leave to appeal from the order of County Court entered in this proceeding commenced in Town Court (*see* NY Const, art VI, § 3 [b]; CPLR 5602).

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v EARL HAYES, Appellant.

Decided October 22, 2013

Reported below, 2013 NY Slip Op 82249(U).

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no civil appeal lies from the order of the Appellate Division entered in this criminal proceeding (*see* NY Const, art VI, § 3 [b]; CPLR 5601; CPL 450.90).

THE PEOPLE OF THE STATE OF NEW YORK ex rel. DAVID J. SAFRAN, Appellant, v ELIZABETH A. O'MEARA, as Superintendent of Gouverneur Correctional Facility, Respondent.

Decided October 22, 2013

Reported below, 2013 NY Slip Op 82283(U).

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

PINNACLE CHARTER SCHOOL et al., Appellants, v BOARD OF REGENTS OF THE UNIVERSITY OF THE STATE OF NEW YORK et al., Respondents.

Submitted September 3, 2013; decided October 22, 2013

Reported below, 108 AD3d 1024.

Motion for leave to appeal denied. Motion for a stay dismissed as academic.

PINNACLE CHARTER SCHOOL et al., Appellants, v BOARD OF REGENTS OF THE UNIVERSITY OF THE STATE OF NEW YORK et al., Respondents.

Submitted October 7, 2013; decided October 22, 2013

Reported below, 108 AD3d 1024.

Motion by Community Charter School to intervene denied.

CAROLYN MARY SCHENK, Appellant, v STATEN ISLAND UNIVERSITY HOSPITAL et al., Respondents, et al., Defendant.

Submitted August 26, 2013; decided October 22, 2013

Reported below, 108 AD3d 661.

On the Court's own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution. Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

RENEE SCIARA et al., Respondents, v SURGICAL ASSOCIATES OF WESTERN NEW YORK, P.C., et al., Appellants. USHA CHOPRA, M.D., Nonparty Appellant.

Submitted July 29, 2013; decided October 22, 2013

Reported below, 104 AD3d 1256.

Motion to dismiss defendants' appeal granted and the appeal dismissed, with \$400 costs and \$100 costs of motion, upon the ground that defendants are not parties aggrieved. Defendants remain respondents on the appeal by Usha Chopra, M.D., and may submit a brief and present argument on that appeal.

CHRISTOPHER SELLETTI, Defendant, v THOMAS F. LIOTTI, Appellant. JEFFREY LEVITT, Nonparty Appellant.

Submitted July 29, 2013; decided October 22, 2013

Reported below, 104 AD3d 835; 2013 NY Slip Op 76096(U).

Motion by Thomas F. Liotti, insofar as it seeks leave to appeal from the Appellate Division order denying reargument or leave to appeal, dismissed upon the ground that such order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied. Motion by Jeffrey Levitt for leave to appeal denied.

KELVIN THEN et al., Appellants, v NEW YORK CITY TRANSIT AUTHORITY, Respondent, et al., Defendant.

Submitted September 9, 2013; decided October 22, 2013

Reported below, 99 AD3d 986.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

ALEXANDRE VAN DAMME, Respondent, v NAHUM GELBER, Appellant, et al., Defendant. (And a Third-Party Action.)

Submitted September 3, 2013; decided October 22, 2013

Reported below, 104 AD3d 534.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

Judge ABDUS-SALAAM taking no part.

In the Matter of WILLIAM VEGA, Appellant, v BRIAN FISCHER, as
Commissioner of Corrections and Community Supervision,
et al., Respondents.

Submitted September 16, 2013; decided October 22, 2013

Reported below, 108 AD3d 955.

Motion for leave to appeal dismissed upon the ground that
the order sought to be appealed from does not finally determine
the proceeding within the meaning of the Constitution. Motion
for poor person relief dismissed as academic.

In the Matter of JOMO WILLIAMS, Appellant, v R.A.W. et al.,
Respondents.

Submitted September 16, 2013; decided October 22, 2013

Reported below, 107 AD3d 579.

Motion for a stay dismissed as academic.

**APPEALS DISMISSED PURSUANT TO RULES OF PRACTICE
OF COURT OF APPEALS OR ON CONSENT**

(October 1, 2013 through October 31, 2013)

People v Pinder	Sup Ct, Kings County, July 9, 2013	10/15/13
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APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(October 1, 2013 through October 31, 2013)

People v Allen	2d Dept: 107 AD3d 818 (Queens)	denied 10/7/13 (Abdus-Salaam, J.)
People v Ames	2d Dept: 108 AD3d 638 (Suffolk)	denied 10/29/13 (Grafteo, J.)
People v Arnold	4th Dept: 107 AD3d 1526 (Monroe)	denied 10/18/13 (Read, J.)
People v Bahamonte	App Div, 1st Dept: 2013 NY Slip Op 81593(U) (NY)	denied 10/29/13 (Grafteo, J.)
People v Barr (Joey)	4th Dept: 107 AD3d 1458 (Ontario)	denied 10/7/13 (Abdus-Salaam, J.)
People v Barr (Josephine)	4th Dept: 107 AD3d 1458 (Ontario)	denied 10/7/13 (Abdus-Salaam, J.)

People v Bartell	App Term, 1st Dept: 40 Misc 3d 135(A) (NY)	denied 10/25/13 (Smith, J.)
People v Bermudez	App Term, 1st Dept: 40 Misc 3d 133(A) (NY)	denied 10/28/13 (Pigott, J.)
People v Berry (Larry)	App Div, 2d Dept: 2013 NY Slip Op 81488(U) (Kings)	dismissed 10/7/13 (Abdus-Salaam, J.)
People v Berry (Larry)	App Div, 2d Dept: 2013 NY Slip Op 81489(U) (Kings)	dismissed 10/7/13 (Abdus-Salaam, J.)
People v Berry (Larry)	App Div, 2d Dept: 2013 NY Slip Op 81490(U) (Kings)	dismissed 10/7/13 (Abdus-Salaam, J.)
People v Binning	2d Dept: 108 AD3d 639 (Kings)	denied 10/29/13 (Grafteo, J.)
People v Bouchard	App Term, 2d Dept, 9th & 10th Jud Dists: 40 Misc 3d 142(A) (Westchester)	denied 10/31/13 (Smith, J.)
People v Brown (David)	2d Dept: 106 AD3d 755 (Queens)	denied 10/7/13 (Abdus-Salaam, J.)
People v Brown (Richard)	App Div, 1st Dept: 2013 NY Slip Op 84105(U) (NY)	denied 10/31/13 (Smith, J.)
People v Brown (Ryan)	2d Dept: 107 AD3d 819 (Orange)	denied 10/7/13 (Abdus-Salaam, J.)
People v Brown (Yahabebe)	1st Dept: 106 AD3d 641 (NY)	denied 10/7/13 (Abdus-Salaam, J.)
People v Browne	2d Dept: 107 AD3d 1013 (Kings)	denied 10/29/13 (Abdus-Salaam, J.)
People v Bryant	2d Dept: 109 AD3d 552 (Kings)	denied 10/29/13 (Grafteo, J.)
People v Bush	4th Dept: 107 AD3d 1581 (Erie)	denied 10/7/13 (Abdus-Salaam, J.)
People v Campbell	1st Dept: 107 AD3d 465 (Bronx)	denied 10/29/13 (Abdus-Salaam, J.)
People v Campos	2d Dept: 107 AD3d 733 (Kings)	denied 10/7/13 (Abdus-Salaam, J.)
People v Castillo	1st Dept: 106 AD3d 440 (Bronx)	denied 10/7/13 (Abdus-Salaam, J.)
People v Chatham	3d Dept: 86 AD3d 201 (Schenectady)	dismissed 10/24/13 (Smith, J.)
People v Chattley	4th Dept: 108 AD3d 1216 (Erie)	denied 10/23/13 (Pigott, J.)

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People v Cheeks	2d Dept: 107 AD3d 1013 (Queens)	denied 10/7/13 (Abdus-Salaam, J.)
People v Cheese	2d Dept: 109 AD3d 621 (Queens)	denied 10/25/13 (Smith, J.)
People v Curran	4th Dept: 103 AD3d 1126 (Monroe)	denied 10/30/13 (Lippman, Ch. J.)
People v D'Attore	App Div, 1st Dept: 2012 NY Slip Op 78990(U) (Bronx)	dismissed 10/25/13 (Abdus-Salaam, J.)
People v Dandridge	4th Dept: 107 AD3d 1464 (Erie)	denied 10/7/13 (Abdus-Salaam, J.)
People v Daniel	App Div, 2d Dept: 2013 NY Slip Op 71507(U) (Kings)	dismissed 10/7/13 (Abdus-Salaam, J.)
People v Delvecchio	1st Dept: 106 AD3d 624 (Bronx)	denied 10/7/13 (Abdus-Salaam, J.)
People v Dockery	2d Dept: 107 AD3d 913 (Nassau)	denied 10/7/13 (Abdus-Salaam, J.)
People v Douglas	2d Dept: 109 AD3d 484 (Suffolk)	denied 10/1/13 (Smith, J.)
People v Doyen	County Ct, 6/17/13 (Steuben)	denied 10/7/13 (Abdus-Salaam, J.)
People v Fatico	4th Dept: 108 AD3d 1214 (Niagara)	denied 10/15/13 (Lippman, Ch. J.)
People v Fiasconaro	2d Dept: 109 AD3d 667 (Suffolk)	denied 10/28/13 (Grafteo, J.)
People v Figueroa (Moises)	App Div, 1st Dept: 2013 NY Slip Op 81611(U) (NY)	dismissed 10/28/13 (Grafteo, J.)
People v Figueroa (Moses)	App Div, 1st Dept: 2013 NY Slip Op 81611(U) (NY)	dismissed 10/28/13 (Grafteo, J.)
People v Francis	App Div, 1st Dept: 2010 NY Slip Op 79747(U) (NY)	dismissed 10/28/13 (Grafteo, J.)
People v Fucito	2d Dept: 108 AD3d 777 (Queens)	denied 10/28/13 (Pigott, J.)
People v Gabak	4th Dept: 105 AD3d 1460 (Ontario)	denied 10/2/13 (Rivera, J.)
People v Gonzalez	App Div, 1st Dept: 2013 NY Slip Op 81571(U) (Bronx)	denied 10/29/13 (Grafteo, J.)
People v Gooden	3d Dept: 108 AD3d 876 (Broome)	denied 10/29/13 (Grafteo, J.)
People v Green	2d Dept: 108 AD3d 682 (Orange)	denied 10/24/13 (Smith, J.)
People v Greene	4th Dept: 108 AD3d 1219 (Oneida)	denied 10/16/13 (Lippman, Ch. J.)

People v Gruber	3d Dept: 108 AD3d 877 (Sullivan)	denied 10/22/13 (Lippman, Ch. J.)
People v Hall	4th Dept: 106 AD3d 1513 (Chautauqua)	denied 10/7/13 (Abdus-Salaam, J.)
People v Harrison	2d Dept: 109 AD3d 487 (Richmond)	denied 10/25/13 (Smith, J.)
People v Harvey	2d Dept: 106 AD3d 933 (Kings)	denied 10/7/13 (Abdus-Salaam, J.)
People v Howard	App Div, 1st Dept: 2010 NY Slip Op 79747(U) (NY)	dismissed 10/28/13 (Grafteo, J.)
People v Hurdle	2d Dept: 106 AD3d 1100 (Queens)	denied 10/18/13 (Read, J.)
People v Jie Mei Chen	2d Dept: 109 AD3d 488 (Queens)	denied 10/24/13 (Smith, J.)
People v Jones (Anthony)	2d Dept: 106 AD3d 1106 (Richmond)	denied 10/7/13 (Abdus-Salaam, J.)
People v Jones (Damon)	1st Dept: 105 AD3d 636 (NY)	denied 10/7/13 (Abdus-Salaam, J.)
People v Jones (Kenneth)	4th Dept: 107 AD3d 1611 (Erie)	denied reconsideration 10/29/13 (Grafteo, J.)
People v Jones (Shanon)	2d Dept: 106 AD3d 1106 (Nassau)	denied 10/17/13 (Lippman, Ch. J.)
People v Jones (Sidney)	3d Dept: 101 AD3d 1482 (Albany)	denied reconsideration 10/18/13 (Read, J.)
People v Kasse	App Term, 1st Dept: 40 Misc 3d 126(A) (NY)	granted 10/22/13 (Lippman, Ch. J.)
People v Kirksey	2d Dept: 107 AD3d 825 (Orange)	denied 10/7/13 (Abdus-Salaam, J.)
People v Klein	2d Dept: 108 AD3d 780 (Nassau)	denied 10/24/13 (Smith, J.)
People v Kulk	3d Dept: 103 AD3d 1038 (Franklin)	denied 10/28/13 (Lippman, Ch. J.)
People v Lemery	4th Dept: 107 AD3d 1593 (Oneida)	denied 10/7/13 (Abdus-Salaam, J.)
People v Lester (Alphonso)	App Div, 1st Dept: 2010 NY Slip Op 79747(U) (NY)	dismissed 10/28/13 (Grafteo, J.)
People v Lester (Tyrone)	App Div, 1st Dept: 2010 NY Slip Op 79747(U) (NY)	dismissed 10/28/13 (Grafteo, J.)

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People v Little T	3d Dept: 108 AD3d 872 (Ulster)	denied 10/7/13 (Abdus-Salaam, J.)
People v Livingston	App Div, 3d Dept: 2013 NY Slip Op 80085(U) (Washington)	denied 10/25/13 (Smith, J.)
People v Lukens	4th Dept: 107 AD3d 1406 (Oswego)	denied 10/7/13 (Abdus-Salaam, J.)
People v Macapia	App Term, 1st Dept: 39 Misc 3d 144(A) (NY)	denied 10/7/13 (Abdus-Salaam, J.)
People v Marshall	3d Dept: 108 AD3d 884 (Clinton)	denied 10/30/13 (Abdus-Salaam, J.)
People v Martinez	3d Dept: 106 AD3d 1379 (Essex)	denied 10/7/13 (Abdus-Salaam, J.)
People v Mateo-Cruz	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 40 Misc 3d 131(A) (Kings)	denied 10/2/13 (Rivera, J.)
People v Mattis	3d Dept: 108 AD3d 872 (Ulster)	denied 10/7/13 (Abdus-Salaam, J.)
People v McCoy	4th Dept: 107 AD3d 1454 (Monroe)	denied 10/29/13 (Grafteo, J.)
People v McFarlane	2d Dept: 106 AD3d 836 (Queens)	denied 10/7/13 (Abdus-Salaam, J.)
People v McNeill	4th Dept: 107 AD3d 1430 (Onondaga)	denied 10/29/13 (Grafteo, J.)
People v Michael	App Term, 2d Dept, 9th & 10th Jud Dists: 39 Misc 3d 138(A) (Nassau)	denied 10/7/13 (Abdus-Salaam, J.)
People v Michael Miran, Ph.D. Psychologist, P.C.	4th Dept: 107 AD3d 28 (Monroe)	denied reconsideration 10/23/13 (Pigott, J.)
People v Miller (Devon)	1st Dept: 100 AD3d 466 (Bronx)	denied 10/28/13 (Lippman, Ch. J.)
People v Miller (Michael)	2d Dept: 108 AD3d 573 (Kings)	denied 10/29/13 (Grafteo, J.)
People v Mills	App Div, 4th Dept: 2013 NY Slip Op 74545(U) (Genesee)	dismissed 10/7/13 (Abdus-Salaam, J.)
People v Miran (Esta)	4th Dept: 107 AD3d 41 (Monroe)	denied reconsideration 10/23/13 (Pigott, J.)
People v Miran (Michael)	4th Dept: 107 AD3d 43 (Monroe)	denied reconsideration 10/23/13 (Pigott, J.)

People v Mohamed	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 2013 NY Slip Op 74870(U) (Kings)	dismissed 10/7/13 (Abdus-Salaam, J.)
People v Nunez	2d Dept: 108 AD3d 683 (Rockland)	denied 10/16/13 (Lippman, Ch. J.)
People v On Sight Mobile Opticians	App Term, 2d Dept, 9th & 10th Jud Dists: 40 Misc 3d 95 (Suffolk)	granted 10/4/13 (Grafteo, J.)
People v Orminski	3d Dept: 108 AD3d 864 (Warren)	denied 10/3/13 (Smith, J.)
People v Ouedraogo	App Term, 1st Dept: 2013 NY Slip Op 50822(U) (NY)	denied 10/23/13 (Pigott, J.)
People v Pacherille	3d Dept: 106 AD3d 1136 (Otsego)	granted 10/3/13 (Grafteo, J.)
People v Parks	1st Dept: 104 AD3d 561 (NY)	denied 10/30/13 (Lippman, Ch. J.)
People v Pennington	4th Dept: 107 AD3d 1602 (Erie)	denied 10/7/13 (Abdus-Salaam, J.)
People v Persaud	2d Dept: 109 AD3d 626 (Queens)	denied 10/31/13 (Smith, J.)
People v Pope	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 39 Misc 3d 148(A) (Kings)	denied 10/7/13 (Abdus-Salaam, J.)
People v Remy	App Div, 2d Dept: 2013 NY Slip Op 79370(U) (Rockland)	dismissed 10/1/13 (Smith, J.)
People v Richardson (Amanda)	1st Dept: 102 AD3d 614 (Bronx)	denied 10/3/13 (Smith, J.)
People v Richardson (Timothy)	2d Dept: 106 AD3d 1028 (Westchester)	denied 10/7/13 (Abdus-Salaam, J.)
People v Rivera (Omar)	1st Dept: 107 AD3d 425 (Bronx)	denied 10/29/13 (Abdus-Salaam, J.)
People v Rivera (Walbert)	1st Dept: 108 AD3d 452 (Bronx)	denied 10/1/13 (Smith, J.)
People v Roache	App Div, 2d Dept: 2013 NY Slip Op 76131(U) (Orange)	dismissed 10/7/13 (Abdus-Salaam, J.)
People v Robinson	2d Dept: 109 AD3d 489 (Kings)	denied 10/25/13 (Smith, J.)
People v Rolland	App Div, 1st Dept: 2013 NY Slip Op 79144(U) (NY)	dismissed 10/31/13 (Smith, J.)
People v Royster	3d Dept: 107 AD3d 1298 (Albany)	denied 10/7/13 (Abdus-Salaam, J.)
People v Scott	4th Dept: 107 AD3d 1592 (Monroe)	denied 10/30/13 (Abdus-Salaam, J.)
People v Shelton	App Div, 3d Dept: 2013 NY Slip Op 80083(U) (Schenectady)	denied 10/22/13 (Lippman, Ch. J.)

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People v Simms	2d Dept: 107 AD3d 746 (Queens)	denied 10/7/13 (Abdus-Salaam, J.)
People v Smith (Charles)	App Div, 1st Dept: 2013 NY Slip Op 79142(U) (NY)	dismissed 10/1/13 (Pigott, J.)
People v Smith (Matthew)	App Div, 2d Dept: 2013 NY Slip Op 69914(U) (Orange)	denied reconsideration 10/28/13 (Pigott, J.)
People v Smith (Rameen)	2d Dept: 101 AD3d 761 (Richmond)	denied 10/29/13 (Grafteo, J.)
People v Smith (Remus)	App Div, 4th Dept, 5/13/13 (Onondaga)	dismissed 10/7/13 (Abdus-Salaam, J.)
People v Stanley	4th Dept: 108 AD3d 1129 (Onondaga)	denied 10/29/13 (Grafteo, J.)
People v Steen	4th Dept: 107 AD3d 1608 (Oswego)	denied 10/18/13 (Read, J.)
People v Stevenson	App Div, 2d Dept: 2013 NY Slip Op 86662(U) (Suffolk)	dismissed 10/24/13 (Rivera, J.)
People v Strollo	4th Dept: 107 AD3d 1464 (Genesee)	denied 10/7/13 (Abdus-Salaam, J.)
People v Strzelecki	2d Dept: 108 AD3d 644 (Suffolk)	denied 10/31/13 (Abdus-Salaam, J.)
People v Tackley	4th Dept: 107 AD3d 1595 (Monroe)	denied 10/2/13 (Rivera, J.)
People v Tam	App Div, 1st Dept: 2013 NY Slip Op 79111(U) (NY)	denied 10/23/13 (Pigott, J.)
People v Thompson	4th Dept: 107 AD3d 1609 (Erie)	denied 10/18/13 (Read, J.)
People v Tirado	4th Dept: 109 AD3d 688 (Erie)	denied 10/24/13 (Smith, J.)
People v Tytutin	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 39 Misc 3d 131(A) (Kings)	denied 10/2/13 (Rivera, J.)
People v Underdue	4th Dept: 108 AD3d 1169 (Onondaga)	denied 10/1/13 (Smith, J.)
People v Vetro	App Term, 2d Dept, 9th & 10th Jud Dists: 2013 NY Slip Op 79538(U) (Suffolk)	dismissed 10/7/13 (Abdus-Salaam, J.)
People v Ward	2d Dept: 106 AD3d 842 (Kings)	denied 10/18/13 (Read, J.)
People v Watkins	4th Dept: 107 AD3d 1416 (Wayne)	denied 10/7/13 (Abdus-Salaam, J.)
People v White	App Div, 1st Dept: 2013 NY Slip Op 76011(U) (NY)	denied reconsideration 10/29/13 (Grafteo, J.)

People v Willis	4th Dept: 105 AD3d 1397 (Genesee)	denied 10/7/13 (Abdus-Salaam, J.)
People v Winebrenner	4th Dept: 107 AD3d 1647 (Monroe)	denied 10/15/13 (Lippman, Ch. J.)
People v Wood	County Ct, 7/31/13 (Livingston)	denied 10/31/13 (Smith, J.)
People v Wright	4th Dept: 107 AD3d 1646 (Monroe)	denied 10/1/13 (Smith, J.)

[999 NE2d 1189, 977 NYS2d 744]

DLJ MORTGAGE CAPITAL, INC., Appellant, v THOMAS KONTOGIAN-
NIS et al., Defendants, and CHICAGO TITLE INSURANCE COM-
PANY, INC., et al., Respondents.

Decided November 14, 2013

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered January 15, 2013. The Appellate Division (1) reversed, on the law, so much of an order of the Supreme Court, New York County (Charles E. Ramos, J.), as had denied the motions of defendants Chicago Title Insurance Company, Inc. and United General Title Insurance Company, Inc. to dismiss the complaint as against them, and (2) granted the motions to dismiss. The following question was certified by the Appellate Division: “Was the order of this Court, which reversed the order of Supreme Court, properly made?”

In an action arising from plaintiff’s purchase of fraudulent mortgages, the Appellate Division concluded that plaintiff’s claims against the title insurance defendants for the acts of their agents, who allegedly were coconspirators in a mortgage fraud scheme, should have been dismissed. The Court noted that the complaint did not allege that the title insurers were aware that their agents had issued fraudulent certificates of title and commitments for title on the title insurers’ behalf for mortgages that plaintiff eventually purchased. Nor could liability attach under the doctrine of apparent authority, since there was no allegation of any misleading conduct on the part of the title insurers. Plaintiff purchased the mortgages from a third party, never dealt with the title insurer defendants directly,

and could not show justifiable reliance upon the alleged misrepresentations of the agent.

DLJ Mtge. Capital, Inc. v Kontogiannis, 102 AD3d 489, affirmed.

HEADNOTE

Fraud — Reliance — Purchase of Fraudulent Mortgages

In an action arising out of plaintiff's purchase of fraudulent mortgages, as a matter of law, plaintiff, as a third-party purchaser of mortgages on the secondary mortgage market, could not rely on pre-closing documents to establish that a proper conveyance and recording of the underlying property occurred or that title insurance for the property was issued.

APPEARANCES OF COUNSEL

Hahn & Hessen LLP, New York City (*John P. Amato*, *Robert J. Malatak* and *Annie Power* of counsel), for appellant.

Herrick, Feinstein LLP, New York City (*Arthur G. Jakoby* and *Adam J. Stein* of counsel), for Chicago Title Insurance Company, Inc., respondent.

DelBello Donnellan Weingarten Wise & Wiederkehr, LLP, White Plains (*Michael J. Schwarz* and *Lee S. Wiederkehr* of counsel), for United General Title Insurance Co., Inc., respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs, and the certified question answered in the affirmative. As a matter of law, DLJ, as a third-party purchaser of mortgages on the secondary mortgage market, cannot rely on pre-closing documents to establish that a proper conveyance and recording of the underlying property occurred or that title insurance for the property was issued (*see Citibank v Chicago Tit. Ins. Co.*, 214 AD2d 212, 219 [1st Dept 1995], *lv dismissed* 87 NY2d 896 [1995]). The Appellate Division correctly determined that any such reliance was unjustifiable.

Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, PIGOTT, RIVERA and ABDUS-SALAAM concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, with costs, and certified question answered in the affirmative, in a memorandum.

[1 NE3d 782, 978 NYS2d 708]

In the Matter of the Estate of RIVEN FLAMENBAUM, Deceased.
VORDERASIATISCHES MUSEUM et al., Respondents; HANNAH
K. FLAMENBAUM, as Executor of RIVEN FLAMENBAUM,
Deceased, Appellant.

Argued October 15, 2013; decided November 14, 2013

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the Second Judicial Department, from an order of that Court, entered May 30, 2012. The Appellate Division (1) reversed, on the law, an order of the Surrogate's Court, Nassau County (John B. Riordan, S.; op 27 Misc 3d 1090 [2010]), which, after a hearing, had denied the claim of respondent Vorderasiatisches Museum for the return of certain personal property in the possession of the estate of Riven Flamenbaum, (2) granted respondent's claim, and (3) remitted the matter to the Surrogate's Court for further proceedings including the entry of a decree, among other things, directing Hannah K. Flamenbaum, as executor of Riven Flamenbaum, deceased, to turn over the subject property to the Vorderasiatisches Museum. The following question was certified by the Appellate Division: "Was the decision and order of this Court dated May 30, 2012, properly made?"

Matter of Flamenbaum, 95 AD3d 1318, affirmed.

HEADNOTES

Equity — Laches — Recovery of Looted Artifact

1. In a probate proceeding in which respondent German museum was found to have established legal title or superior right of possession to an ancient archeological artifact that was discovered to be missing after World War II and resurfaced as part of a Holocaust survivor's estate almost 60 years later, the estate failed to establish that the museum's claim to recover the artifact should be barred by the affirmative defense of laches, which required a showing that the museum failed to exercise reasonable diligence to locate the tablet and that such failure prejudiced the estate. While the museum could have taken steps to locate the tablet, such as reporting it to the authorities or listing it on a stolen art registry, it did not do so for many other missing items, as it would have been difficult to report each individual object that was missing after the war. Furthermore, the estate provided no proof to support its claim that, had the museum taken such steps, the museum would have discovered, prior to the decedent's death, that he was in possession of the tablet. To place a burden of locating stolen artwork on the true owner and to foreclose the rights of that owner to recover its property if the burden is not met would encourage illicit trafficking in stolen art. Additionally, the estate failed to demonstrate prejudice, an essential element of laches. While the estate argued that it had suffered prejudice due to the museum's inaction, there was

evidence that at least one member of decedent's family was aware that the tablet belonged to the museum, and although the decedent's testimony may have shed light on how he came into possession of the tablet, there was no scenario whereby the decedent could have shown that he held title to the antiquity.

Replevin — Recovery of Chattel — Ancient Archeological Artifact — “Spoils of War” Theory Rejected

2. In a probate proceeding in which respondent German museum sought recovery of an ancient archeological artifact that was discovered to be missing after World War II and resurfaced as part of a Holocaust survivor's estate almost 60 years later, the “spoils of war” theory proffered by the estate—that the Russian government, when it invaded Germany, gained title to the museum's property as a spoil of war, and then transferred that title to the decedent—was rejected. The estate's theory rested entirely on conjecture, as the record was bereft of any proof that the Russian government ever had possession of the tablet. Even if there were such proof, any doctrine that would establish good title based upon the looting and removal of cultural objects during wartime by a conquering military force should be rejected. Allowing the estate to retain the artifact based on a spoils of war doctrine would be fundamentally unjust.

APPEARANCES OF COUNSEL

Jaspan Schlesinger LLP, Garden City (*Steven R. Schlesinger* and *Seth A. Presser* of counsel), for appellant.

Dunnington, Bartholow & Miller LLP, New York City (*Raymond J. Dowd*, *Luke A. McGrath* and *Robert F. Dannhauser* of counsel), and *Hamburger, Weinschenk & Fisher* (*John C. Fisher* of counsel) for Vorderasiatisches Museum, respondent.

Andrews Kurth, LLP, New York City (*Joseph A. Patella* of counsel) and *Andrews Kurth, LLP*, Washington, D.C. (*Thomas R. Kline* of counsel), and *Law Offices of Lucille A. Roussin* (*Lucille A. Roussin* of counsel) for Archaeological Institute of America and others, amici curiae.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs, and the certified question should be answered in the affirmative.

In this probate proceeding, the Vorderasiatisches Museum in Berlin, Germany (the Museum), seeks to recover a 3,000-year-old gold tablet from the estate of Riven Flamenbaum (the Estate). The tablet was first discovered prior to World War I by a team of German archeologists excavating at the foundation of the Ishtar temple in Ashur, Iraq. The tablet dates back to the reign of Assyrian King Tukulti-Ninurta I (1243-1207 BCE) and bears an inscription written in Assyro-Babylonian language and

Middle-Assyrian cuneiform script. The tablet was shipped to the Berlin Museum (now the Vorderasiatisches Museum) in 1926. The Museum's inventory book catalogs the arrival of the gold tablet and provides a description and a sketch. In 1939, the Museum was closed because of World War II, and objects from Ashur were put in storage. In 1945, at the end of the war, the gold tablet was missing.

The tablet resurfaced in 2003, when it was discovered among the possessions of the decedent, a resident of Nassau County and a Holocaust survivor. When Hannah K. Flamenbaum, the decedent's daughter and executor of the Estate, petitioned to judicially settle the final account, she listed a "coin collection" as an asset of the Estate. Israel Flamenbaum, the decedent's son and Hannah's brother, filed objections to the accounting, wherein he claimed that the value of the coin collection was understated "and includes one item identified as a 'gold wafer' which is believed to be an ancient Assyrian amulet and the property of a museum in Germany." Israel also notified the Museum about the tablet, and the Museum responded that the gold tablet is part of its Assyrian collection and had been missing since the end of World War II.

The Museum thereafter filed a notice of appearance and claim with the Surrogate's Court, Nassau County, to recover the tablet. The Surrogate held a hearing, at which the Museum's director, Dr. Beate Salje, was the sole witness to testify. Dr. Salje testified that the tablet, along with many other objects, disappeared from the Museum sometime near the end of World War II. Russian troops removed some objects at the end of the war, brought them to Russia, and then back to the Museum in 1957. Dr. Salje stated that she did not know if the tablet was taken by Russian troops, German troops, or people who came to the Museum to take refuge.

The Museum also submitted the report of Dr. Eckart Frahm, Assistant Professor of Assyriology at Yale University. As explained by Dr. Frahm, a 1983 article written by A.K. Grayson, entitled *Antiquities from Ashur: A Brief Description of Their Fate with Special Reference to the Royal Inscription*, published in the Annual Review of the Royal Inscriptions of Mesopotamia Project, stated that "Professor H.G. Güterbock [a professor at the Oriental Institute of the University of Chicago] in a private communication told [Grayson] of having seen a gold tablet . . . which was in the Berlin Museum before the war . . . in the hands of a dealer in New York in 1954." There is an entry in

the Museum's record that reads "[s]een by Güterbach 1954 in New York," and underneath it says "Grayson." This entry is undated, and nothing in the record indicates when the Museum first learned that the tablet was reportedly sighted in 1954.

After the hearing, Surrogate's Court determined that, although the Museum met its prima facie burden of proving legal title or superior right of possession to the tablet, its claim was barred by the doctrine of laches because the Museum had failed to either report the tablet's disappearance to the authorities or list the tablet on any international stolen art registries. This inaction, according to the court, prejudiced the Estate's ability to defend against the Museum's claim to the tablet.

The Appellate Division, among other things and as relevant here, reversed the Surrogate's Court order on the law, granted the Museum's claim for the return of the tablet, and remitted the matter to Surrogate's Court for further proceedings (*see Matter of Flamenbaum*, 95 AD3d 1318 [2d Dept 2012]). The Appellate Division concluded that the Estate had not established that the Museum failed to exercise reasonable diligence to locate the tablet, or that the Museum's inaction had prejudiced the Estate. That court granted the Estate's motion for leave to appeal pursuant to CPLR 5602 (b) (1) and certified the following question: "Was the decision and order of this Court dated May 30, 2012, properly made?" We now affirm and answer the certified question in the affirmative.

[1] We agree with the Appellate Division that the Estate failed to establish the affirmative defense of laches, which requires a showing "that the museum failed to exercise reasonable diligence to locate the tablet and that such failure prejudiced the [E]state" (95 AD3d at 1320, citing *Solomon R. Guggenheim Found. v Lubell*, 77 NY2d 311, 321 [1991]; *see also Sotheby's, Inc. v Shene*, 2009 WL 762697, 2009 US Dist LEXIS 23596 [SD NY, Mar. 23, 2009, Griesa, J., No. 04-Civ-10067 (TPG)]). While the Museum could have taken steps to locate the tablet, such as reporting it to the authorities or listing it on a stolen art registry, the Museum explained that it did not do so for many other missing items, as it would have been difficult to report each individual object that was missing after the war. Furthermore, the Estate provided no proof to support its claim that, had the Museum taken such steps, the Museum would have discovered, prior to the decedent's death, that he was in possession of the tablet (*compare Matter of Peters v Sotheby's Inc.*, 34 AD3d 29, 37-38 [1st Dept 2006], *lv denied* 8 NY3d 809 [2007] [laches

barred claim where owner had actual knowledge of the identity of the party in possession but did not demand return of the property]). As we observed in *Lubell*, in a related discussion of the defense of statute of limitations, “[t]o place the burden of locating stolen artwork on the true owner and to foreclose the rights of that owner to recover its property if the burden is not met would . . . encourage illicit trafficking in stolen art” (77 NY2d at 320).

Additionally, the Estate failed to demonstrate “the essential element of laches, namely prejudice” (*Matter of Barabash*, 31 NY2d 76, 82 [1972]). While the Estate argued that it had suffered prejudice due to the Museum’s inaction, there is evidence that at least one family member (decedent’s son) was aware that the tablet belonged to the Museum. And, although the decedent’s testimony may have shed light on how he came into possession of the tablet, we can perceive of no scenario whereby the decedent could have shown that he held title to this antiquity.

[2] The “spoils of war” theory proffered by the Estate—that the Russian government, when it invaded Germany, gained title to the Museum’s property as a spoil of war, and then transferred that title to the decedent—is rejected. The Estate’s theory rests entirely on conjecture, as the record is bereft of any proof that the Russian government ever had possession of the tablet. Even if there were such proof, we decline to adopt any doctrine that would establish good title based upon the looting and removal of cultural objects during wartime by a conquering military force (see *Menzel v List*, 49 Misc 2d 300, 305-308 [Sup Ct, NY County 1966], *mod as to damages* 28 AD2d 516 [1st Dept 1967], *revd as to modification* 24 NY2d 91 [1969]).* Allowing the Estate to retain the tablet based on a spoils of war doctrine would be fundamentally unjust.

* Notably, it was the official policy of the United States during World War II to forbid pillaging of cultural artifacts. The Rules of Land Warfare of the United States War Department provided that “[a]ll movable property belonging to the State directly susceptible of military use may be taken possession of as booty and utilized for the benefit of the invader’s government. Other movable property, not directly susceptible of military use, must be respected and cannot be appropriated” (Rules of Land Warfare rule 321, War Department of the United States, Basic Field Manual [FM 27-10 1940] at 82, quoted in *Menzel*, 49 Misc 2d at 306 n 1).

Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, PIGOTT, RIVERA and ABDUS-SALAAM concur.

Order affirmed, with costs, and certified question answered in the affirmative, in a memorandum.

MARIA AUQUI, as Guardian of the Property of JOSE VERDUGO, et al., Respondents, v SEVEN THIRTY ONE LIMITED PARTNERSHIP et al., Appellants.

Submitted October 21, 2013; decided November 14, 2013

Reported below, 83 AD3d 407.

Motion by Make the Road New York for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed.

MARIA AUQUI, as Guardian of the Property of JOSE VERDUGO, et al., Respondents, v SEVEN THIRTY ONE LIMITED PARTNERSHIP et al., Appellants.

Submitted October 21, 2013; decided November 14, 2013

Reported below, 83 AD3d 407.

Motion by The Black Institute for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed.

MARIA AUQUI, as Guardian of the Property of JOSE VERDUGO, et al., Respondents, v SEVEN THIRTY ONE LIMITED PARTNERSHIP et al., Appellants.

Submitted October 21, 2013; decided November 14, 2013

Reported below, 83 AD3d 407.

Motion by New York Communities for Change for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed.

MARIA AUQUI, as Guardian of the Property of JOSE VERDUGO, et al., Respondents, v SEVEN THIRTY ONE LIMITED PARTNERSHIP et al., Appellants.

Submitted October 21, 2013; decided November 14, 2013

Reported below, 83 AD3d 407.

Motion by The Center for Popular Democracy for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed.

MARIA AUQUI, as Guardian of the Property of JOSE VERDUGO, et al., Respondents, v SEVEN THIRTY ONE LIMITED PARTNERSHIP et al., Appellants.

Submitted October 28, 2013; decided November 14, 2013

Reported below, 83 AD3d 407.

Motion by New York State Trial Lawyers Association for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed.

JFK HOLDING COMPANY LLC et al., Respondents, v CITY OF NEW YORK et al., Defendants, and THE SALVATION ARMY, Appellant.

Submitted February 11, 2013; decided November 14, 2013

Reported below, 98 AD3d 273.

Motion to strike Point III of the brief for respondents denied.
Judge RIVERA taking no part.

In the Matter of DANIEL KASCKAROW, Appellant, v BOARD OF EXAMINERS OF SEX OFFENDERS OF STATE OF NEW YORK, Respondent.

Submitted October 28, 2013; decided November 14, 2013

Reported below, 106 AD3d 915.

Motion for poor person relief granted.

CHARLES R. LIVECCHI, Appellant, v JOHN NACCA, Respondent.

Submitted August 12, 2013; decided November 14, 2013

Reported below, 2013 NY Slip Op 70726(U).

Motion for reargument of motion for leave to appeal denied
[see 21 NY3d 1000 (2013)].

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v THOMAS
HORTON, Appellant.

Submitted November 12, 2013; decided November 14, 2013

Motion for assignment of counsel granted and Tyson Blue,
Esq., 4064 County Line Road, Macedon, New York 14502 as-
signed as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v AN-
THONY ODDONE, Appellant.

Submitted November 4, 2013; decided November 14, 2013

Reported below, 89 AD3d 868.

Motion by New York City Bar Association for leave to file a
brief amicus curiae on the appeal herein granted and the
proposed brief is accepted as filed. Two copies of the brief must
be served and an original and nine copies filed within seven
days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ADRIAN
P. THOMAS, Appellant.

Submitted October 21, 2013; decided November 14, 2013

Reported below, 93 AD3d 1019.

Motion by Legal Aid Society for leave to file a brief amicus cu-
riae on the appeal herein granted and the proposed brief is ac-
cepted as filed. Two copies of the brief must be served and an
original and nine copies filed within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CHARLES
WILTSHIRE, Appellant.

Submitted November 4, 2013; decided November 14, 2013

Reported below, 96 AD3d 1227.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

LARRY POUNCY, Appellant, v JASON L. SOLOTAROFF et al., Respondents.

Submitted July 22, 2013; decided November 14, 2013

Reported below, 100 AD3d 410.

Motion for reargument of motion for leave to appeal denied [see 21 NY3d 857 (2013)].

Judge ABDUS-SALAAM taking no part.

JOSEPH W. POWERS, Appellant, v 31 E 31 LLC et al., Respondents.

Submitted November 12, 2013; decided November 14, 2013

Reported below, 105 AD3d 657.

Motion by New York State Trial Lawyers Association for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed.

[1 NE3d 790, 978 NYS2d 716]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JULIO VELEZ, Appellant.

Argued October 16, 2013; decided November 19, 2013

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered November 9, 2010. The Appellate Division affirmed a judgment of the Westchester County Court (Robert A. Neary, J., at pretrial proceedings; Gerald E. Loehr, J., at trial and sentence), which had convicted defendant, upon a jury verdict, of burglary in the second degree, criminal mischief in the third degree, and petit larceny.

People v Velez, 78 AD3d 867, affirmed.

HEADNOTE

Crimes — Right to Speedy Trial — Prosecutorial Delay — Good Cause

Defendant was not entitled to dismissal of an indictment based on a 43-month prosecutorial delay since the delay did not deprive defendant of his due process right to prompt prosecution. The charges against defendant were filed within the statute of limitations period and no special circumstances existed impairing his right to a fair trial. Moreover, the People had established good cause for the delay where part of the delay resulted from the police department's lack of a latent fingerprint examiner to match the prints from the crime scene, and where the District Attorney's office learned that defendant was already serving a life sentence on another crime. To conserve and efficiently use resources, the District Attorney's office decided not to bring the charges at issue until defendant's life sentence on his other conviction was in jeopardy upon a partially successful appeal.

APPEARANCES OF COUNSEL

Mark Diamond, New York City, for appellant.

Janet DiFiore, District Attorney, White Plains (*Steven A. Bender* and *Richard Longworth Hecht* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

Defendant was indicted in May 2007, for a burglary that occurred in October 2003. He sought dismissal of the indictment based on the 43-month pre-accusatory delay. The People attributed this delay to two circumstances. First, there was a delay of some 14 months owing to the fact that the police department lacked a latent fingerprint examiner to match the prints from the crime scene. Second, once the fingerprints were matched and defendant was identified as a suspect, the District Attorney's office learned that defendant was already serving a life sentence on another crime. Thus, to conserve and efficiently use resources, the District Attorney's office decided not to bring charges for the burglary. After defendant's life sentence on the other conviction was in jeopardy upon a partially successful appeal, the District Attorney sought and obtained the burglary indictment.

County Court, upon applying the five factors delineated by this Court in *People v Taranovich* (37 NY2d 442 [1975]), denied defendant's motion to dismiss the indictment due to the delay. The Appellate Division affirmed (78 AD3d 867 [2d Dept 2010]). A Judge of this Court granted defendant leave to appeal (19 NY3d 969 [2012]).

We agree with the lower court's conclusion that the prosecutorial delay did not deprive defendant of his due process right to prompt prosecution. As it pertains to the extent of the delay, the charges against defendant were filed within the statute of limitations period and no special circumstances exist impairing his right to a fair trial (*see People v Fuller*, 57 NY2d 152 [1982]). Further, the record supports the determination that the People established good cause for the delay (*see People v Decker*, 13 NY3d 12, 16 [2009]).

Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, PIGOTT, RIVERA and ABDUS-SALAAM concur.

Order affirmed, in a memorandum.

[1 NE3d 785, 978 NYS2d 711]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v FELIX HERNANDEZ, Appellant.

Argued September 11, 2013; decided November 19, 2013

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered August 21, 2012. The Appellate Division affirmed (1) an amended judgment of the Supreme Court, New York County (Edward J. McLaughlin, J.), which had convicted defendant, upon his plea of guilty, of sexual abuse in the first degree, and (2) an order of that court which had denied defendant's CPL 440.10 motion to vacate the judgment.

People v Hernandez, 98 AD3d 449, affirmed.

HEADNOTE

Crimes — Right to Counsel — Effective Representation — Failure to Advise Defendant of Deportation Consequences of Guilty Plea

In a criminal action in which defendant sought to vacate his guilty plea on the ground that the attorney who had represented him at the plea proceeding had been ineffective for failing to inform him that deportation would be mandatory upon his guilty plea, the decisions of the courts below denying defendant's motion to vacate the conviction were beyond further review in the Court of Appeals. There was record support for the lower courts' determination that defendant failed to show a reasonable probability that, if counsel had informed him that he was certain to be deported as a result of his guilty plea, he would not have pleaded guilty and would have gone to trial. *Padilla v Kentucky* (559 US 356 [2010]), which held that defense counsel must advise a defendant regarding the risk of deportation prior to his or her guilty plea, did

not delineate a new standard for prejudice under *Strickland v Washington* (466 US 668 [1984]), as the *Padilla* court repeatedly cited cases setting forth the traditional “reasonable probability” test for prejudice. Furthermore, any language in the *Padilla* opinion altering the prejudice standard would be dicta because the Supreme Court decided that case based solely on the performance prong of the *Strickland* framework without conducting a prejudice analysis and expressly left the resolution of the prejudice issue to the state court on remand. Thus, *Padilla* did not dilute defendant’s burden to demonstrate a reasonable probability that he would not have pleaded guilty but for counsel’s poor advice.

APPEARANCES OF COUNSEL

Steven Banks, The Legal Aid Society, New York City (Bonnie C. Brennan of counsel), for appellant.

Cyrus R. Vance, Jr., District Attorney, New York City (Hope Korenstein and Patrick J. Hynes of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

Based on defendant’s alleged attempt to rape his sister-in-law, defendant, a lawful permanent resident of the United States originally from the Dominican Republic, was charged with one count of attempted rape in the first degree, two counts of sexual abuse in the first degree and one count of attempted sexual abuse in the first degree. During a suppression hearing, defendant pleaded guilty to sexual abuse in the first degree (*see* Penal Law § 130.65 [1]) in full satisfaction of the indictment. In exchange for his plea, the court sentenced defendant to a determinate prison term of five years to be followed by five years of postrelease supervision.

After sentencing, federal immigration authorities sought to deport defendant based on his conviction in this case. At a removal hearing, a federal immigration judge ordered defendant’s removal from the country. Thereafter, defendant, represented by new counsel, filed a motion to vacate his conviction pursuant to CPL 440.10, asserting that the attorney who had represented him at the plea proceeding had been ineffective for failing to inform him that deportation would be mandatory upon his guilty plea. Supreme Court held a hearing on defendant’s motion, and defendant, his former attorney and defendant’s son testified at that proceeding.

At the end of the hearing, the court denied defendant’s post-judgment motion. The court determined that defendant had been confronted with highly compelling reasons to plead guilty

because, at the time of his plea, he had learned that the People possessed strong evidence of his guilt, his ties to his family in the United States were strained, and he faced a lengthy prison sentence if convicted after trial. In the court's view, even if defendant had known that he would be deported, he almost certainly would have pleaded guilty to avoid prolonged incarceration upon a conviction after trial, which would still have been followed by deportation. In addition, the court rejected defendant's testimony that he was innocent and had a close relationship with his family, finding those assertions incredible. Thus, the court concluded, although defendant had shown that his attorney's performance had not met reasonable professional standards of competence, defendant had not established the existence of a reasonable probability that, but for counsel's inadequate advice, he would not have pleaded guilty.

Defendant appealed, and a divided panel of the Appellate Division affirmed defendant's judgment of conviction and sentence and the order denying defendant's motion to vacate his plea (*see* 98 AD3d 449, 449-458 [1st Dept 2012]). In two separate concurring opinions, three Justices determined that the hearing court's factual and credibility findings were supported by the record, and that "defendant did not establish that he was prejudiced by his counsel's inadequate advice on the deportation consequences of his guilty plea" because "defendant did not demonstrate a 'reasonable probability that, but for counsel's errors, he would not have pleaded guilty and would have insisted on going to trial' " (*id.* at 450 [Sweeny, J., concurring], quoting *Hill v Lockhart*, 474 US 52, 59 [1985]; *see also id.* at 450-451 [Manzanet-Daniels, J., concurring]).

Two Justices dissented and voted to reverse because, in their view, defendant had established the requisite prejudice. In particular, the dissenters opined, defendant's testimony showed that he had pleaded guilty in order to "minimize his separation from his six children" (*id.* at 457 [Freedman, J., dissenting]). The dissenters further asserted that the hearing court's findings of fact and credibility determinations were unsupported by the record (*id.*). A Justice of the Appellate Division granted defendant leave to appeal to this Court, and we affirm.

Under the State and Federal Constitutions, a defendant has the right to the effective assistance of counsel (*see* US Const 6th Amend; NY Const, art I, § 6; *People v Baldi*, 54 NY2d 137, 146 [1981]). Under the Federal Constitution, defense counsel is ineffective when his or her performance "f[a]ll[s] below an objective

standard of reasonableness” under “prevailing professional norms” (*Strickland v Washington*, 466 US 668, 687-688 [1984]). Even if counsel’s performance is deficient, however, the defendant’s conviction will not be reversed unless “there is a reasonable probability that, but for counsel’s unprofessional errors, the result of the proceeding would have been different” (*id.* at 694-695). In the plea context, the defendant “must show that there is a reasonable probability that, but for counsel’s errors, he would not have pleaded guilty and would have insisted on going to trial” (*Hill v Lockhart*, 474 US 52, 59 [1985]; *see Roe v Flores-Ortega*, 528 US 470, 478 [2000]). Whether the defendant can show such a “reasonable probability” will often turn, as it does here, on credibility determinations which, if they have support in the record, we cannot review (*see id.*; *see generally People v McRay*, 51 NY2d 594, 601 [1980]).

In *Padilla v Kentucky* (559 US 356, 363-371 [2010]), the United States Supreme Court applied the *Strickland* framework to a defense attorney’s advice, or lack thereof, regarding the immigration consequences of a guilty plea, reasoning that modern immigration law made the possibility of deportation so central to a non-citizen defendant’s decision to plead guilty that defense counsel had to inform the defendant about it prior to his or her guilty plea (*see Padilla*, 559 US at 363-371; *see also People v Haffiz*, 19 NY3d 883, 884 [2012]). Specifically, the Court held that counsel “must advise her client regarding the risk of deportation,” but the Court also cautioned that counsel’s duty “is more limited” where the “deportation consequences of a particular plea are unclear or uncertain” (*Padilla*, 559 US at 367-369).

Additionally, the Court observed, “Whether Padilla is entitled to relief on his claim will depend on whether he can satisfy *Strickland*’s second prong, prejudice, a matter we leave to the Kentucky courts to consider in the first instance” (*id.* at 369). The Court reiterated that *Strickland*’s prejudice prong hinged on “whether ‘there is a reasonable probability that, but for counsel’s unprofessional errors, the result of the proceeding would have been different’ ” (*id.* at 366, quoting *Strickland*, 466 US at 694). In describing the prejudice prong, the Court repeatedly cited *Hill v Lockhart* and *Roe v Flores-Ortega* (*see Padilla*, 559 US at 369-373), both of which described the “reasonable probability” standard of prejudice in the plea context (*see Hill*, 474 US at 59; *see Flores-Ortega*, 528 US at 485). The Court further stated that the dissenting Justices’ fear of a flood

of new litigation resulting from the Court's decision was unfounded because "to obtain relief on this type of claim, a petitioner must convince the court that a decision to reject the plea bargain would have been rational under the circumstances" (*Padilla*, 559 US at 372).

Here, defendant seizes on the language quoted above to claim that *Padilla* announced a new "rationality" test for prejudice under the *Strickland* framework, and he argues that the hearing court violated his federal constitutional rights by failing to apply that standard. But, *Padilla* did not delineate a new standard for prejudice under *Strickland*. The *Padilla* Court repeatedly cited cases setting forth the traditional "reasonable probability" test for prejudice, and the Court's comment about "rational[ity] under the circumstances" (*Padilla*, 559 US at 372) appears to be a simple rephrasing of the existing rule described in *Strickland*, *Hill* and their progeny. Furthermore, any language in the *Padilla* opinion altering the prejudice standard would be dicta because the Supreme Court decided that case based solely on the performance prong of the *Strickland* framework without conducting a prejudice analysis; in fact, the Court expressly left the resolution of the prejudice issue to the Kentucky Supreme Court on remand (see *Padilla*, 559 US at 369). Significantly, too, after *Padilla*, the Supreme Court has continued to apply the "reasonable probability" test for prejudice to ineffective assistance claims in the plea context (see *Missouri v Frye*, 566 US —, —, 132 S Ct 1399, 1410 [2012]; *Lafler v Cooper*, 566 US —, —, 132 S Ct 1376, 1384-1385 [2012]). Thus, *Padilla* has not diluted defendant's burden to demonstrate a reasonable probability that he would not have pleaded guilty but for counsel's poor advice.

Moreover, upon reviewing the record, we conclude that there is support for the lower courts' determination that defendant failed to show a reasonable probability that, if counsel had informed him that he was certain to be deported as a result of his guilty plea, he would not have pleaded guilty and would have gone to trial (see *Padilla*, 559 US at 366, 372; *Strickland*, 466 US at 694-695; *People v McDonald*, 1 NY3d 109, 114 [2003]; compare *Pilla v United States*, 668 F3d 368, 372-373 [6th Cir 2012], with *United States v Akinsade*, 686 F3d 248, 250-256 [4th Cir 2012]). Thus, the decisions below are beyond our further review and must be affirmed (see generally *Strickland*, 466

US at 698; *McRay*, 51 NY2d at 601).*

Accordingly, the order of the Appellate Division should be affirmed.

PIGOTT, J. (dissenting). A defendant seeking to show ineffective assistance of counsel, under the United States Constitution, with respect to his guilty plea, must demonstrate “a *reasonable probability* that, but for counsel’s errors, he would not have pleaded guilty and would have insisted on going to trial” (*Premo v Moore*, 562 US —, —, 131 S Ct 733, 743 [2011] [emphasis added], quoting *Hill v Lockhart*, 474 US 52, 59 [1985]). While the majority correctly notes that *Padilla v Kentucky* (559 US 356 [2010]) does not set out a new standard for prejudice (*see id.* at 366), *Padilla* clearly recognizes the importance of considering whether “a decision to reject the plea bargain would have been rational” (*id.* at 372), when determining whether such a “reasonable probability” was shown. The reasonable probability standard is inextricably linked with an assessment of rationality because it may be assumed that there is no reasonable probability that a defendant will make an irrational choice.

If a defendant who is not a United States citizen “has significant ties to his or her country of origin, or has only resided in the United States for a relatively brief period of time, or has no family here, a decision to proceed to trial in lieu of a favorable plea agreement may be irrational in the face of overwhelming evidence of guilt and a potentially lengthy prison sentence” (*People v Picca*, 97 AD3d 170, 183-184 [2d Dept 2012]). Hernandez, by contrast, has lived in the United States since 1994, has been a legal permanent resident here since 1997, and was the primary caretaker of his six children, all of whom live in the United States, as does his sister. Moreover, the evidence of his guilt was far from overwhelming. As Justice Freedman noted in her dissent at the Appellate Division,

“Celeste Hernandez, the complainant, was the People’s main witness, and the outcome of the case would largely have depended on the jury’s evaluation

* Because defendant’s failure to show prejudice under *Strickland* suffices to dispose of his appeal, we decline to consider whether, as the People contend, the courts below erroneously found counsel’s advice to be constitutionally deficient under the performance prong of the *Strickland* analysis. Likewise, we do not express any opinion on defendant’s assertion that the People are prevented from challenging the lower courts’ assessment of counsel’s performance by our decisions in *People v Concepcion* (17 NY3d 192 [2011]) and *People v LaFontaine* (92 NY2d 470, 474 [1998]).

of the complainant's and defendant's credibility. Virginia Hernandez, defendant's wife, was listed on the People's witness list, but she did not observe the incident leading to the charges. Defendant's eight-year-old daughter, who was sleeping on the couch next to Celeste during the incident, was also listed as a witness, but the substance of her testimony was uncertain, as was the weight that a jury would accord to it. There was no corroborating physical evidence" (98 AD3d 449, 457 [1st Dept 2012, Freedman, J., dissenting]).

In my view, and for all the reasons set out in the well-reasoned Appellate Division dissent (*see id.* at 451-458), there is no record support for the lower courts' rejection of defendant's claim that he would have gone to trial and not pleaded guilty had he been warned of the deportation consequences of his plea.

I would vacate Hernandez's guilty plea. Accordingly, I dissent.

Judges GRAFFEO, READ, SMITH, RIVERA and ABDUS-SALAAM concur; Judge PIGOTT dissents in an opinion in which Chief Judge LIPPMAN concurs.

Order affirmed, in a memorandum.

In the Matter of DONALD MACK BENNETT, Appellant, v JEFF McKOY, Superintendent, et al., Respondents.

Submitted October 7, 2013; decided November 19, 2013

Reported below, 2013 NY Slip Op 71111(U).

Motion for reconsideration of this Court's September 3, 2013 dismissal order denied [*see* 21 NY3d 1048 (2013)]. Motion for poor person relief dismissed as academic.

CADLEROCK, L.L.C., Respondent, v JAN Z. RENNER, Appellant.

Submitted September 30, 2013; decided November 19, 2013

Reported below, 105 AD3d 475.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

JOHN FAYOLLE, Appellant, v EAST WEST MANHATTAN PORTFOLIO
L.P. et al., Respondents.

Decided November 19, 2013

Reported below, 108 AD3d 476.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no appeal lies as of right from the Appellate Division order on the basis of a one-Justice dissent absent the direct involvement of a substantial constitutional question (CPLR 5601 [a], [b]).

SHAWN GREEN, Appellant, v STATE OF NEW YORK, Respondent.

Submitted October 7, 2013; decided November 19, 2013

Reported below, 2013 NY Slip Op 82279(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of SHAWN I. LAINFIESTA, Appellant, v STATE OF
NEW YORK, Respondent.

Decided November 19, 2013

Reported below, 2013 NY Slip Op 78278(U).

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

ROBERT C. LAITY, Appellant, v STATE OF NEW YORK, Respondent.

Submitted October 7, 2013; decided November 19, 2013

Reported below, 2013 NY Slip Op 71087(U).

Motion for leave to appeal dismissed upon the ground that it does not lie (*see* CPLR 5602).

In the Matter of EDWIN LOPEZ, Respondent, v ANDREA EVANS,
Appellant.

Submitted September 23, 2013; decided November 19, 2013

Reported below, 104 AD3d 105.

Motion to expand the record on appeal granted on consent.

In the Matter of DAWUD RAHMAN, Appellant, v BRIAN FISCHER,
Commissioner, New York State Department of Corrections
and Community Supervision, Respondent.

Submitted October 15, 2013; decided November 19, 2013

Reported below, 103 AD3d 1087.

Motion for leave to appeal dismissed as untimely (*see* CPLR
5513).

ROBERT L. SCHULZ, Appellant, et al., Plaintiffs, v STATE OF NEW
YORK EXECUTIVE et al., Respondents.

Submitted September 30, 2013; decided November 19, 2013

Reported below, 108 AD3d 856.

Motion for reargument of motion for leave to appeal denied
[*see* 21 NY3d 1051 (2013)].

In the Matter of CHRISTOPHER SEPULVEDA, Appellant, v WILLIAM
A. LEE, Respondent.

Submitted October 15, 2013; decided November 19, 2013

Reported below, 2013 NY Slip Op 83323(U).

Motion for leave to appeal dismissed upon the ground that
the order sought to be appealed from does not finally determine
the proceeding within the meaning of the Constitution.

TADCO CONSTRUCTION CORP., Appellant, v DORMITORY AUTHOR-
ITY OF THE STATE OF NEW YORK, Respondent.

Submitted September 16, 2013; decided November 19, 2013

Reported below, 93 AD3d 619.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

[2 NE3d 921, 979 NYS2d 553]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MARTIN
HEIDGEN, Appellant.

Argued October 8, 2013; decided November 21, 2013

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered September 13, 2011. The Appellate Division affirmed a judgment of the Supreme Court, Nassau County (Steven M. Jaeger, J.), which had convicted defendant, upon his plea of guilty, of tampering with physical evidence.

People v Heidgen, 87 AD3d 1035, affirmed.

HEADNOTE

Crimes — Appeal — Preservation of Issue for Review—*Alford* Plea

In a prosecution for tampering with physical evidence, defendant's argument that his *Alford* plea should not have been accepted because the record did not contain strong evidence of his actual guilt was unpreserved for review in the Court of Appeals as he had moved neither to withdraw his plea nor to vacate the judgment of conviction.

APPEARANCES OF COUNSEL

Jillian S. Harrington, New York City, for appellant.

Kathleen M. Rice, District Attorney, Mineola (*Maureen McCormick*, *Tammy J. Smiley* and *Judith R. Sternberg* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

Defendant's argument that his *Alford* plea should not have been accepted because the record does not contain strong evidence of his actual guilt is unpreserved for our review as he has moved neither to withdraw his plea nor to vacate the judgment

of conviction (*see People v Louree*, 8 NY3d 541, 545 [2007]; *People v Lopez*, 71 NY2d 662, 665-666 [1988]).

Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, PIGOTT, RIVERA and ABDUS-SALAAM concur.

Order affirmed, in a memorandum.

[3 NE3d 654, 980 NYS2d 317]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ROBERT L. WORDEN, Appellant.

Argued October 17, 2013; decided November 21, 2013

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered January 31, 2012. The Appellate Division affirmed a judgment of the Monroe County Court (Alex R. Renzi, J.), which had convicted defendant, upon his plea of guilty, of rape in the third degree.

People v Worden, 91 AD3d 1340, reversed.

HEADNOTES

Crimes — Plea of Guilty — Sufficiency of Allocution — Lack of Consent in Rape Prosecution

1. In a prosecution for third-degree rape under Penal Law § 130.25 (3), defendant's plea allocution was insufficient to support his conviction where the record of defendant's allocution revealed that the prosecution, defense counsel, and the trial court all misunderstood the definition of "lack of consent" under that provision. Section 130.25 (3), which proscribes "sexual intercourse with another person without such person's consent where such lack of consent is by reason of some factor other than incapacity to consent," addresses so-called "date rape" situations where there was consent to various acts leading up to the sexual act, but at the time of that act the victim clearly expressed a lack of consent. Despite the statute's plain terms, questions posed by the prosecutor during the brief colloquy indicated an intention to elicit from defendant that the complainant was unable to consent because she was incapacitated. Moreover, the court's single query during the factual allocution suggested that the court similarly misunderstood that key element of the crime. When defendant answered in the affirmative to the court's question as to whether the complainant "didn't give [defendant] consent because she took too much medication and she has a mental illness" he unequivocally negated an element of the crime to which he was pleading guilty. If the prosecutor, defense counsel and the court all suffered from the same misunderstanding of the statutorily defined relationship between incapacity and lack of consent, it would be unreasonable to conclude that defendant understood it.

Crimes — Appeal — Preservation of Issue for Review — Exception to Preservation Requirement — Factual Recitation during Plea Allocation Negating Essential Element of Crime

2. Defendant's plea allocation in his prosecution for third-degree rape constituted a rare case where a defendant's factual recitation negated an essential element of the crime pleaded to, and since the court accepted the plea without further inquiry, defendant was allowed to challenge the sufficiency of the allocation on direct appeal, notwithstanding his failure to raise it before the trial court. Questions posed by the prosecutor during the brief colloquy indicated an intention to elicit from defendant that the complainant was unable to consent because she was incapacitated. Moreover, the court's only further inquiry consisted of a single question that exacerbated the defect in the colloquy so that defendant's factual recitation negated the element of third-degree rape under Penal Law § 130.25 (3) requiring the victim to clearly express a lack of consent at the time of the sexual act. A defendant's factual recitation negating an essential element of the crime pleaded to triggers the trial court's duty to inquire further to ensure that defendant's guilty plea is knowing and voluntary. Here the court should have been aware of the insufficiency of the allocation. Under the circumstances, the salutary purpose of the preservation rule was not jeopardized.

APPEARANCES OF COUNSEL

Timothy P. Donaher, Public Defender, Rochester (Timothy S. Davis of counsel), for appellant.

Sandra Doorley, District Attorney, Rochester (Nicole M. Fantigrossi of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed, defendant's guilty plea vacated and the case remitted to Monroe County Court for further proceedings on the indictment.

Defendant was charged with two counts of rape in the third degree (*see* Penal Law § 130.25 [3]), arising from incidents of sexual intercourse with his former girlfriend. The complainant testified before the grand jury that defendant had twice initiated sexual intercourse with her while she was under the influence of psychotropic medication that put her into a deep sleep. The complainant further testified that during each incident she awoke and verbally demanded that the intercourse cease. Upon arrest, defendant provided a statement claiming that he and the complainant were in a relationship when the incidents occurred; that she had been awake—though “out of it and tired”—during the intercourse; and that she gave no indication that the sex was non-consensual. Defendant ultimately accepted an offer to plead guilty to one count of third-degree rape under Penal Law § 130.25 (3) in full satisfaction of the indictment. The Appellate

Division affirmed (91 AD3d 1340 [4th Dept 2012]), concluding that defendant's sufficiency challenge was unpreserved and that the preservation exception recognized in *People v Lopez* (71 NY2d 662 [1988]) did not apply.

[1] The dispositive issue is whether the plea's factual allocution was sufficient to support the conviction. We hold that it was not. While "trial courts are not required to engage in any particular litany during an allocution in order to obtain a valid guilty plea" (*People v Moissett*, 76 NY2d 909, 910 [1990]; see also *People v Goldstein*, 12 NY3d 295, 301 [2009]), "where a defendant's factual recitation negates an essential element of the crime pleaded to, the court may not accept the plea without making further inquiry to ensure that defendant understands the nature of the charge and that the plea is intelligently entered" (*Lopez*, 71 NY2d at 666, citing *People v Beasley*, 25 NY2d 483 [1969], and *People v Serrano*, 15 NY2d 304 [1965]).

The record of defendant's plea allocution reveals that the prosecution, defense counsel, and the trial court all misunderstood the definition of "lack of consent" under Penal Law § 130.25 (3).¹ A person is guilty thereunder only if "[h]e or she engages in sexual intercourse with another person without such person's consent *where such lack of consent is by reason of some factor other than incapacity to consent*" (Penal Law § 130.25 [3] [emphasis added]). Insofar as relevant here, the statute further explains that "lack of consent" under this provision of the Penal Law results from "circumstances under which . . . the victim clearly expressed that he or she did not consent to engage in [the sexual] act, and a reasonable person in the actor's situation would have understood such person's words and acts as an expression of lack of consent to such act under all the circumstances" (Penal Law § 130.05 [2] [d]).²

Penal Law § 130.25 (3) addresses "so-called date rape or acquaintance rape situations [where] there [might] be consent to various acts leading up to the sexual act, but at the time of the act, the victim clearly says no or otherwise expresses a lack of consent" (*People v Newton*, 8 NY3d 460, 463 [2007] [citation and internal quotation marks omitted]). Accordingly, the statutory

1. The allocution also lacked an express statement that defendant was pleading "guilty." While defendant does not rely on this omission as a ground for vacatur, we would note that eliciting such an express statement is obviously advisable in the course of securing a guilty plea.

2. While lack of consent under Penal Law § 130.25 (3) can also be established by proving forcible compulsion (see Penal Law § 130.05 [2] [d]), the People's case did not rely on that theory.

provision requires the victim to have “clearly expresse[d] an unwillingness to engage in the sexual act in such a way that a neutral observer would have understood that the victim was not consenting” (*id.* at 464).³

Despite the statute’s plain terms, questions posed by the prosecutor during the brief colloquy indicate an intention to elicit from defendant that the complainant was unable to consent because she was incapacitated. Moreover, the court’s single query during the factual allocution suggests that the court similarly misunderstood that key element of the crime. In an apparent attempt to establish a causal relationship between the complainant’s incapacity and her lack of consent, the court asked defendant, “[a]nd [the complainant] didn’t give you consent because she took too much medication and she has a mental illness, correct?” By answering in the affirmative, defendant unequivocally negated an element of the crime to which he was pleading guilty.

The record of the allocution here does not merely reflect a moment of unfortunate imprecision; rather, it is emblematic of a general misconception regarding the consent element. If the prosecutor, defense counsel and the court all suffered from the same misunderstanding of the statutorily defined relationship between incapacity and lack of consent, it would be unreasonable to conclude that defendant understood it.

[2] Finally, the unusual circumstances of this case bring it within the narrow exception to the preservation requirement recognized in *Lopez* (71 NY2d at 666). Defendant’s failure to preserve his factual sufficiency challenge is thus not fatal. This is a prototypical example of the “rare case” where a defendant’s “factual recitation negates an essential element of the crime pleaded to,” triggering the trial court’s “duty to inquire further to ensure that defendant’s guilty plea is knowing and voluntary” (*id.* [citations omitted]). *Lopez* held that “[w]here the court fails in this duty and accepts the plea without further inquiry, the defendant may challenge the sufficiency of the allocution on direct appeal,” notwithstanding his or her failure to raise it before the trial court (*id.* [citations omitted]; *see also People v Mox*, 20 NY3d 936, 938 [2012]).

Here, the factual recitation negated an element of third-degree rape under Penal Law § 130.25 (3). The court’s only further

3. *Newton* addressed the element of lack of consent in the context of third-degree sodomy (*see* Penal Law § 130.40). The analysis is equally relevant here, since the definition of “lack of consent” provided in Penal Law § 130.05 (2) (d) applies exclusively to Penal Law §§ 130.40 and 130.25 (3).

inquiry consisted of a single question that exacerbated the defect in the colloquy. This unusual scenario falls squarely within the *Lopez* exception in that the court should have been aware of the insufficiency of the allocution. On these facts, “the salutary purpose of the preservation rule” is not jeopardized (*see Lopez*, 71 NY2d at 666).

As defendant’s plea must be vacated, it is unnecessary for us to reach his remaining argument.

Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, FIGOTT, RIVERA and ABDUS-SALAAM concur.

Order reversed, defendant’s guilty plea vacated and case remitted to Monroe County Court for further proceedings on the indictment, in a memorandum.

[2 NE3d 921, 979 NYS2d 554]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v WILSON
FELICIANO, Appellant.

Decided November 21, 2013

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered December 27, 2012. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Brenda Soloff, J.), which had convicted defendant, upon his plea of guilty, of criminal sale of a controlled substance in the fifth degree.

In a narcotics prosecution, the Appellate Division determined that Supreme Court properly concluded that defendant failed to meet the conditions of his plea agreement.

People v Feliciano, 101 AD3d 617, affirmed.

HEADNOTE

Crimes — Appeal — Preservation of Issue for Review — Plea Agreement

In a prosecution for criminal sale of a controlled substance in the fifth degree, defendant’s contention that he completed the terms of his original plea agreement and was therefore entitled to dismissal of the indictment was not preserved for review in the Court of Appeals. Upon his discharge from a drug treatment program, defendant did not move for dismissal following the events that he now says constituted performance of the agreement.

APPEARANCES OF COUNSEL

Steven Banks, The Legal Aid Society, New York City (Laura Boyd of counsel), for appellant.

Cyrus R. Vance, Jr., District Attorney, New York City (Martin J. Foncello and Richard Nahas of counsel), for respondent.

OPINION OF THE COURT**MEMORANDUM.**

The order of the Appellate Division should be affirmed.

Defendant's contention that he completed the terms of his original plea agreement and was therefore entitled to dismissal of the indictment is not preserved for our review. Upon his discharge, defendant did not move for dismissal following the events that he now says constituted performance of the agreement.

Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, PIGOTT, RIVERA and ABDUS-SALAAM concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, in a memorandum.

In the Matter of BALDWIN UNION FREE SCHOOL DISTRICT et al.,
Respondents, v COUNTY OF NASSAU, Appellant. (Matter No.
1.)

BARBARA HAFNER et al., Respondents, v COUNTY OF NASSAU et
al., Appellants. (Matter No. 2.)

In the Matter of TOWN OF NORTH HEMPSTEAD et al., Respon-
dents, v COUNTY OF NASSAU, Appellant. (Matter No. 3.)

Submitted October 21, 2013; decided November 21, 2013

Reported below, 105 AD3d 113.

Motion to dismiss appeal denied.

BANK OF AMERICA, N.A., Respondent, v SAMUEL L. GOWRIE et al.,
Appellants, et al., Defendants.

Submitted October 7, 2013; decided November 21, 2013

Reported below, 106 AD3d 677.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of the Claim of LEKAN J. BOWEN, Appellant. COMMISSIONER OF LABOR, Respondent.

Submitted October 21, 2013; decided November 21, 2013

Reported below, 2013 NY Slip Op 64126(U).

Motion for reargument of motion for leave to appeal denied [see 21 NY3d 974 (2013)].

In the Matter of ANNA CIANO, Appellant, v MAXWELL J. WILEY et al., Respondents.

Submitted October 15, 2013; decided November 21, 2013

Reported below, 106 AD3d 568.

Motion for reargument of motion for leave to appeal denied [see 21 NY3d 1048 (2013)].

Judge ABDUS-SALAAM taking no part.

In the Matter of KEITH GADSEN, Appellant, v BRIAN FISCHER, Commissioner, New York State Department of Corrections and Community Supervision, et al., Respondents.

Submitted October 15, 2013; decided November 21, 2013

Reported below, 2013 NY Slip Op 82273(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of DOUGLAS LATTA, Appellant, v MAXWELL WILEY et al., Respondents.

Submitted October 15, 2013; decided November 21, 2013

Reported below, 106 AD3d 567.

Motion for reargument of motion for leave to appeal denied [see 21 NY3d 1050 (2013)].

Judge ABDUS-SALAAM taking no part.

NATURAL ORGANICS, INC., Respondent, v ONEBEACON AMERICA INSURANCE Co., Appellant.

Submitted September 3, 2013; decided November 21, 2013

Reported below, 102 AD3d 756.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution (*see Burke v Crosson*, 85 NY2d 10, 18 n 5 [1995]).

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v PATRICIA FRATANGELO, Appellant.

Submitted October 15, 2013; decided November 21, 2013

Motion to vacate this Court's September 27, 2013 preclusion order granted.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. SHIH-SIANG SHAWN LIAO, Appellant, v ANDREW M. CUOMO et al., Respondents.

Decided November 21, 2013

Reported below, 2013 NY Slip Op 82282(U).

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. RUDY ROA, Appellant, v WILLIAM LEE, Respondent.

Decided November 21, 2013

Reported below, 2013 NY Slip Op 81679(U).

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. MICHAEL AZIZ ZARIF SHABAZZ, Also Known as MICHAEL HURLEY, Appellant, v JEROME J. RICHARDS, Acting Judge of Franklin County Court, et al., Respondents.

Decided November 21, 2013

Reported below, 2012 NY Slip Op 66089(U).

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of TENANTS COMMITTEE OF 36 GRAMERCY PARK, Appellant, v NEW YORK STATE DIVISION OF HOUSING AND COMMUNITY RENEWAL et al., Respondents.

Submitted August 19, 2013; decided November 21, 2013

Reported below, 108 AD3d 413.

Motion for leave to appeal, purportedly on behalf of Tenants Committee of 36 Gramercy Park by Patricia Pillette, dismissed upon the ground that Patricia Pillette is not the authorized legal representative of Tenants Committee of 36 Gramercy Park (*see* CPLR 321 [a]).

[3 NE3d 1137, 980 NYS2d 889]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v HECTOR SANTIAGO, Appellant.

Argued October 17, 2013; decided November 26, 2013

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered January 17, 2012. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Edward J. McLaughlin, J.), which had convicted defendant, upon a jury verdict, of criminal possession of a controlled substance in the first degree.

People v Santiago, 91 AD3d 506, reversed.

HEADNOTE

Crimes — Instructions — Circumstantial Evidence Charge — Passenger's Constructive Possession of Controlled Substance Discovered in Automobile

In a prosecution for criminal possession of a controlled substance arising from the discovery of contraband hidden in a locked compartment under the

front passenger seat floor mat of a vehicle that was the subject of a drug surveillance operation, defendant, who had been sitting in the front passenger seat, was entitled to have a circumstantial evidence charge given to the jury. A defendant's request for a circumstantial evidence instruction must be allowed when proof of guilt rests exclusively on circumstantial evidence. Constructive possession can be proven directly or circumstantially, and the necessity of a circumstantial evidence charge should be resolved on a case-by-case basis. The proof connecting defendant to the drugs was wholly circumstantial. Defendant was not the owner or driver of the vehicle, nor was he the target of the surveillance operation, and there was no direct evidence that he was aware of the hidden compartment or that he exercised dominion and control over the concealed cocaine. Moreover, the error could not be deemed harmless.

APPEARANCES OF COUNSEL

Steven Banks, The Legal Aid Society, New York City (Svetlana M. Kornfeind of counsel), for appellant.

Cyrus R. Vance, Jr., District Attorney, New York City (Beth Fisch Cohen and Patrick J. Hynes of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed and a new trial ordered.

During a drug surveillance operation in Manhattan, police pulled over a minivan. There is no dispute that the stop and subsequent search were lawful. Codefendant Andy Alba was the owner and driver of the minivan, defendant Hector Santiago was in the front passenger seat and a third person—the surveillance target—was in the rear seat. A search of the vehicle uncovered a brick of cocaine hidden in a locked compartment under the front passenger floor mat. The officer discovered the “trap” only after he removed the mat and noticed that there was something “irregular” about the carpeting in that area. Defendant subsequently stipulated that the cocaine weighed more than eight ounces.

At trial, the court instructed the jury on constructive possession (Penal Law § 10.00 [8]) and the automobile presumption (Penal Law § 220.25 [1]), but denied defendant's request for a circumstantial evidence charge. The jury convicted defendant of criminal possession of a controlled substance in the first degree (Penal Law § 220.21 [1]), and the Appellate Division affirmed (91 AD3d 506 [1st Dept 2012]). A Judge of this Court granted defendant leave to appeal (19 NY3d 1000 [2012]), and we now reverse.

It is well established that a “defendant's request for a circumstantial evidence instruction must be allowed when proof

of guilt rests exclusively on circumstantial evidence” (*People v Roldan*, 88 NY2d 826, 827 [1996]). Constructive possession can be proven directly or circumstantially, and the necessity of a circumstantial evidence charge should be resolved on a case-by-case basis. In this case, the proof connecting defendant to the drugs was wholly circumstantial. Defendant was not the owner or driver of the vehicle, nor was he the target of the surveillance operation, and there was no direct evidence that he was aware of the hidden compartment or that he exercised dominion and control over the concealed cocaine (*see People v Brian*, 84 NY2d 887, 889 [1994]; *People v Griffin*, 9 AD3d 841, 843-844 [4th Dept 2004]; *compare People v Perez*, 259 AD2d 274, 274-275 [1st Dept 1999]).* Moreover, this is not a case in which the error can be deemed harmless.

Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, PIGOTT, RIVERA and ABDUS-SALAAM concur.

Order reversed and a new trial ordered, in a memorandum.

[2 NE3d 925, 979 NYS2d 557]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v QUENTIN A. SIMS, Appellant.

Decided November 26, 2013

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Fourth Judicial Department, from an order of that Court, entered May 3, 2013. The Appellate Division (1) reversed, on the law, an order of the Erie County Court (Michael F. Pietruszka, J.), which had granted those parts of an omnibus motion of defendant seeking to suppress certain physical evidence and oral statements, (2) denied those parts of defendant’s motion, and (3) remitted the matter for further proceedings on the indictment.

The Appellate Division found that the arresting officer did not violate defendant’s rights when he approached him and asked for identification. The Appellate Division further concluded that the evidence presented at the suppression hearing

* Contrary to the People’s assertion, proof by direct evidence of the nature and weight of the controlled substance does not render the circumstantial evidence charge unnecessary. The charge is required where, as here, the only proof that defendant committed the crime charged was circumstantial.

established that the arresting officer had reasonable suspicion to believe that defendant posed a threat to his safety at the time he grabbed defendant's hand.

People v Sims, 106 AD3d 1473, appeal dismissed.

HEADNOTE

Crimes — Appeal — Dismissal — Order Not on Law Alone

In a prosecution for criminal possession of a weapon, an appeal to the Court of Appeals from an order of the Appellate Division reversing an order granting defendant's motion to suppress physical evidence and oral statements was dismissed upon the ground that the reversal by the Appellate Division was not "on the law alone or upon the law and such facts which, but for the determination of law, would not have led to reversal" (CPL 450.90 [2] [a]).

APPEARANCES OF COUNSEL

Legal Aid Bureau of Buffalo, Inc., Buffalo (*Robert L. Kemp* of counsel), for appellant.

Frank A. Sedita, III, District Attorney, Buffalo (*Nicholas T. Texido* of counsel), for respondent.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), appeal dismissed upon the ground that the reversal by the Appellate Division was not "on the law alone or upon the law and such facts which, but for the determination of law, would not have led to reversal" (CPL 450.90 [2] [a]).

Concur: Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, PIGOTT, RIVERA and ABDUS-SALAAM.

In the Matter of BERNARD ELLIS, Respondent, v LISA BURKE, Appellant.

Submitted September 16, 2013; decided November 26, 2013

Reported below, 108 AD3d 764.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

NELLA MANKO, Appellant, v LENOX HILL HOSPITAL, Respondent.

Submitted September 3, 2013; decided November 26, 2013

Reported below, 2013 NY Slip Op 78988(U); 2013 NY Slip Op 68592(U); 2012 NY Slip Op 91174(U).

Motion, insofar as it seeks leave to appeal from the March 2013 Appellate Division order, denied; motion, insofar as it seeks leave to appeal from the November 2012 and July 2013 Appellate Division orders, dismissed upon the ground that those orders sought to be appealed from do not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

In the Matter of MARIAH A. and Another, Children Alleged to be Abandoned. HUGO A., Appellant; THE CHILDREN'S AID SOCIETY, Respondent.

Submitted October 21, 2013; decided November 26, 2013

Reported below, 109 AD3d 751.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

Judge ABDUS-SALAAM taking no part.

RUSSIAN AMERICAN FOUNDATION, INC., et al., Appellants, v DAILY NEWS, L.P., et al., Respondents.

Submitted November 4, 2013; decided November 26, 2013

Reported below, 109 AD3d 410.

Motion by Dr. Maria (Maki) Haberfeld et al. for leave to file a brief amici curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

In the Matter of JOSEPH SADOWSKI, Appellant, v JOHN J. GALLASSO, Respondent.

Submitted October 21, 2013; decided November 26, 2013

Reported below, 109 AD3d 997.

Motion for leave to appeal denied. Motion for a stay dismissed as academic.

In the Matter of ORVILLE WYNTER, Appellant, v JOHN KASE et al., Respondents.

Submitted October 7, 2013; decided November 26, 2013

Reported below, 102 AD3d 975.

Motion for reargument of motion for leave to appeal denied [see 21 NY3d 864 (2013)].

APPEALS WITHDRAWN AND DISCONTINUED

(November 1, 2013 through November 30, 2013)

Board of Educ. of the Mineola Union Free Sch. Dist., Matter of, v Mineola Teachers Assn.	2d Dept: 104 AD3d 939	11/12/13
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APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(November 1, 2013 through November 30, 2013)

People v Abreu	1st Dept: 109 AD3d 736 (NY)	denied 11/20/13 (Smith, J.)
People v Andrews	2d Dept: 108 AD3d 729 (Kings)	granted 11/6/13 (Rivera, J.)
People v Baker	2d Dept: 104 AD3d 783 (Westchester)	denied reconsideration 11/18/13 (Read, J.)
People v Ballenger	3d Dept: 106 AD3d 1375 (Broome)	denied 11/18/13 (Read, J.)
People v Bell	3d Dept: 108 AD3d 795 (Schenectady)	denied 11/18/13 (Read, J.)
People v Bentil	2d Dept: 107 AD3d 1011 (Westchester)	denied 11/6/13 (Pigott, J.)
People v Bowman	App Div, 1st Dept: 2013 NY Slip Op 80461(U) (NY)	dismissed 11/19/13 (Pigott, J.)
People v Burroughs	4th Dept: 108 AD3d 1103 (Erie)	denied 11/18/13 (Read, J.)
People v Burwell	1st Dept: 108 AD3d 429 (NY)	denied 11/18/13 (Read, J.)
People v Camarano	App Div, 1st Dept: 2013 NY Slip Op 80476(U) (NY)	dismissed 11/19/13 (Read, J.)
People v Carelock	App Div, 4th Dept: 2013 NY Slip Op 82895(U) (Monroe)	dismissed 11/21/13 (Lippman, Ch. J.)
People v Chao	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 39 Misc 3d 148(A) (Queens)	denied 11/19/13 (Read, J.)

People v Corona	2d Dept: 109 AD3d 838 (Queens)	denied 11/18/13 (Read, J.)
People v Cuevas	1st Dept: 106 AD3d 564 (Bronx)	denied 11/21/13 (Rivera, J.)
People v Diaz	1st Dept: 107 AD3d 401 (Bronx)	dismissed 11/19/13 (Pigott, J.)
People v Dobmeier	County Ct, 3/21/12 (Allegany)	denied reconsideration 11/18/13 (Read, J.)
People v Elliott	4th Dept: 107 AD3d 1466 (Lewis)	denied 11/18/13 (Read, J.)
People v Faulkner	1st Dept: 108 AD3d 408 (NY)	denied 11/19/13 (Read, J.)
People v Frye	2d Dept: 98 AD3d 748 (Queens)	denied 11/18/13 (Read, J.)
People v Garcia (Frank)	App Div, 4th Dept, 8/28/13 (Ontario)	dismissed 11/18/13 (Read, J.)
People v Garcia (Luis)	1st Dept: 110 AD3d 468 (NY)	denied 11/22/13 (Grafteo, J.)
People v Gauze	2d Dept: 108 AD3d 778 (Suffolk)	denied 11/18/13 (Read, J.)
People v Golston	App Div, 3d Dept: 2013 NY Slip Op 80086(U) (Schenectady)	denied 11/6/13 (Pigott, J.)
People v Gutierrez	2d Dept: 109 AD3d 486 (Kings)	denied 11/19/13 (Pigott, J.)
People v Harris (Elliott)	1st Dept: 103 AD3d 427 (NY)	denied reconsideration 11/22/13 (Grafteo, J.)
People v Harris (Renaica)	2d Dept: 109 AD3d 840 (Suffolk)	denied 11/26/13 (Pigott, J.)
People v Harvey (Jeune)	4th Dept: 105 AD3d 1429 (Monroe)	denied 11/27/13 (Rivera, J.)
People v Harvey (Jevne)	4th Dept: 105 AD3d 1429 (Monroe)	denied 11/27/13 (Rivera, J.)
People v Hill	App Div, 4th Dept, 8/30/13 (Onondaga)	dismissed 11/18/13 (Read, J.)
People v Hoppe (Joseph)	App Div, 3d Dept: 2013 NY Slip Op 82244(U) (Broome)	denied 11/19/13 (Pigott, J.)
People v Hoppe (Joseph)	App Div, 3d Dept: 2013 NY Slip Op 82244(U) (Broome)	dismissed 11/19/13 (Pigott, J.)
People v Howard	2d Dept: 109 AD3d 487 (Westchester)	denied 11/22/13 (Grafteo, J.)
People v Hurdle	2d Dept: 106 AD3d 1100 (Queens)	denied 11/18/13 (Read, J.)
People v Jackson (Christopher)	2d Dept: 101 AD3d 1153 (Orange)	denied 11/18/13 (Read, J.)

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People v Jackson (Robert)	4th Dept: 108 AD3d 1079 (Onondaga)	denied 11/18/13 (Read, J.)
People v Javier	2d Dept: 109 AD3d 1004 (Queens)	denied 11/20/13 (Grafteo, J.)
People v Jenkins	2d Dept: 103 AD3d 753 (Kings)	denied 11/21/13 (Rivera, J.)
People v Johnson (Akeem)	2d Dept: 106 AD3d 933 (Kings)	denied 11/27/13 (Rivera, J.)
People v Johnson (Atiba)	2d Dept: 109 AD3d 1004 (Kings)	denied 11/20/13 (Grafteo, J.)
People v Johnson (Stephon)	4th Dept: 109 AD3d 1191 (Onondaga)	denied 11/22/13 (Grafteo, J.)
People v Jones (Charles)	4th Dept: 108 AD3d 1213 (Erie)	denied 11/18/13 (Read, J.)
People v Jones (Damitria)	4th Dept: 108 AD3d 1206 (Erie)	denied 11/18/13 (Read, J.)
People v Jones (David)	County Ct, 9/5/13 (Albany)	denied 11/26/13 (Pigott, J.)
People v Kingston	1st Dept: 110 AD3d 466 (NY)	denied 11/20/13 (Grafteo, J.)
People v Koehl	App Div, 2d Dept: 2013 NY Slip Op 78196(U) (Richmond)	dismissed 11/21/13 (Lippman, Ch. J.)
People v Mack (Casey)	App Div, 2d Dept: 2013 NY Slip Op 82477(U) (Suffolk)	dismissed 11/21/13 (Pigott, J.)
People v Mack (Casey)	App Div, 2d Dept: 2013 NY Slip Op 82478(U) (Suffolk)	dismissed 11/21/13 (Pigott, J.)
People v Maldonado	App Div, 2d Dept: 2013 NY Slip Op 84555(U) (Suffolk)	dismissed 11/20/13 (Smith, J.)
People v Mannino	2d Dept: 107 AD3d 1017 (Richmond)	denied 11/19/13 (Read, J.)
People v McCoy	1st Dept: 91 AD3d 537 (NY)	withdrawn 11/21/13 (Pigott, J.)
People v McIver	4th Dept: 107 AD3d 1591 (Erie)	denied 11/19/13 (Read, J.)
People v McLetchie	2d Dept: 109 AD3d 840 (Suffolk)	denied 11/20/13 (Smith, J.)
People v Mighty	2d Dept: 109 AD3d 841 (Queens)	denied 11/22/13 (Grafteo, J.)
People v Muirhead	2d Dept: 110 AD3d 833 (Kings)	denied 11/22/13 (Grafteo, J.)
People v Musser	3d Dept: 106 AD3d 1334 (Warren)	denied 11/21/13 (Lippman, Ch. J.)
People v Nelson	1st Dept: 110 AD3d 433 (NY)	denied 11/21/13 (Lippman, Ch. J.)
People v Nieves	App Div, 2d Dept: 2013 NY Slip Op 83003(U) (Kings)	dismissed 11/20/13 (Smith, J.)

People v Nugent	2d Dept: 109 AD3d 625 (Rockland)	denied 11/21/13 (Lippman, Ch. J.)
People v Perez	1st Dept: 106 AD3d 425 (Bronx)	denied 11/19/13 (Read, J.)
People v Porter	1st Dept: 109 AD3d 737 (NY)	denied 11/22/13 (Grafteo, J.)
People v Robinson	App Div, 2d Dept: 2013 NY Slip Op 76897(U) (Kings)	dismissed 11/6/13 (Pigott, J.)
People v Rodriguez	App Div, 1st Dept, 8/14/13 (Bronx)	dismissed 11/26/13 (Abdus-Salaam, J.)
People v Schrock	4th Dept: 108 AD3d 1221 (Cattaraugus)	denied 11/19/13 (Read, J.)
People v Shoga	App Div, 3d Dept: 2013 NY Slip Op 76177(U) (Broome)	denied 11/6/13 (Pigott, J.)
People v Sims	2d Dept: 109 AD3d 1009 (Suffolk)	denied 11/20/13 (Grafteo, J.)
People v Snipes	1st Dept: 106 AD3d 581 (NY)	denied reconsideration 11/21/13 (Lippman, Ch. J.)
People v Stokes	2d Dept: 109 AD3d 1016 (Suffolk)	denied 11/20/13 (Grafteo, J.)
People v Thomas	4th Dept: 107 AD3d 1532 (Monroe)	denied 11/27/13 (Rivera, J.)
People v Torres	1st Dept: 108 AD3d 474 (NY)	denied 11/27/13 (Rivera, J.)
People v Tucker	2d Dept: 105 AD3d 1067 (Kings)	denied 11/27/13 (Rivera, J.)
People v Vasquez	1st Dept: 106 AD3d 564 (Bronx)	denied 11/21/13 (Rivera, J.)
People v Wiggins	2d Dept: 109 AD3d 943 (Orange)	denied 11/26/13 (Pigott, J.)
People v Williams (Eric)	2d Dept: 106 AD3d 759 (Orange)	denied 11/27/13 (Rivera, J.)
People v Williams (Zachery)	1st Dept: 106 AD3d 537 (NY)	denied 11/27/13 (Rivera, J.)
People v Wilson	3d Dept: 100 AD3d 1045 (Greene)	denied 11/22/13 (Grafteo, J.)
People v Young	1st Dept: 106 AD3d 578 (NY)	denied 11/19/13 (Read, J.)
People v Zappulla	2d Dept: 103 AD3d 759 (Kings)	denied 11/21/13 (Rivera, J.)

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL**Decisions of Appellate Division Justices***

(November 1, 2013 through November 30, 2013)

People v Gonzales	2d Dept: 111 AD3d 147 (Queens)	granted 11/25/13 (Angiolillo, J.)
People v Sepe	2d Dept: 111 AD3d 75 (Westchester)	granted 11/22/13 (Angiolillo, J.)

[2 NE3d 927, 979 NYS2d 559]

In the Matter of CATHRYN M. DOYLE.

Decided December 10, 2013

SUMMARY

CONSIDERATION, by the Court of Appeals, on its own motion, of whether Honorable Cathryn M. Doyle should be suspended from the office of Surrogate of Albany County, pending disposition of her request for review of a determination by the State Commission on Judicial Conduct.

HEADNOTE**Judges — Suspension from Office**

On the Court's own motion, it is determined that Honorable Cathryn M. Doyle is suspended, with pay, effective immediately, from the office of Surrogate of Albany County pending disposition of her request for review of a determination by the State Commission on Judicial Conduct.

APPEARANCES OF COUNSEL

William J. Dreyer, for Hon. Cathryn M. Doyle.

Robert H. Tembeckjian, for New York State Commission on Judicial Conduct.

OPINION OF THE COURT

On the Court's own motion, it is determined that Honorable Cathryn M. Doyle is suspended, with pay, effective immediately, from the office of Surrogate of Albany County, pending disposition of her request for review of a determination by the State Commission on Judicial Conduct.

Concur: Chief Judge LIPPMAN and Judges READ, SMITH, PIGOTT, RIVERA and ABDUS-SALAAM. Taking no part: Judge GRAFFEO.

* Includes only applications that were granted.

In the Matter of DAVID H. DALTON, II, Respondent, v AKRON
CENTRAL SCHOOLS, Appellant.

Decided December 10, 2013

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered June 14, 2013. The Appellate Division, with two Justices dissenting, affirmed an order of the Supreme Court, Erie County (Joseph R. Glownia, J.), which had granted claimant leave to serve a late notice of claim.

Claimant was allegedly injured when he stepped out of his vehicle and slipped on snow or ice in a parking lot of a school in respondent's school district. The Appellate Division concluded that the record established that claimant had met his burden of demonstrating that respondent had actual knowledge of the incident, including knowledge of claimant's injuries.

Dalton v Akron Cent. Schools, 107 AD3d 1517, affirmed.

HEADNOTE

Schools — Notice of Claim — Slip and Fall

In a personal injury action against respondent school district, the courts below did not abuse their discretion in granting claimant's application to file and serve a late notice of claim.

APPEARANCES OF COUNSEL

Congdon, Flaherty, O'Callaghan, Reid, Donlon, Travis & Fishlinger, Uniondale (*Gregory A. Cascino* of counsel), for appellant.

Lipsitz, Greene, Scime, Cambria, LLP, Buffalo (*John A. Collins* of counsel), for respondent.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, with costs. The courts below did not abuse their discretion in granting claimant's application to file and serve a late notice of claim (see *Williams v Nassau County Med. Ctr.*, 6 NY3d 531 [2006]).

Concur: Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, PIGOTT, RIVERA and ABDUS-SALAAM.

[3 NE3d 709, 980 NYS2d 372]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ROOSEVELT JENNINGS, Appellant.

Decided December 10, 2013

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Term of the Supreme Court in the Second Judicial Department, Second, Eleventh and Thirteenth Judicial Districts, entered December 27, 2011. The Appellate Term affirmed a judgment of the Criminal Court of the City of New York, Kings County (Gilbert C. Hong, J.), which had convicted defendant, after a nonjury trial, of attempted criminal possession of a controlled substance in the seventh degree.

Defendant was arrested after a police officer allegedly saw defendant drop a glass pipe containing crack cocaine residue on the ground.

People v Jennings, 34 Misc 3d 137(A), 2011 NY Slip Op 52407(U), affirmed.

HEADNOTE**Crimes — Controlled Substances — Burnt Residue of Crack Cocaine in Pipe — Sufficiency of Accusatory Instrument**

An accusatory instrument, charging defendant with attempted criminal possession of a controlled substance in the seventh degree, was facially sufficient to show defendant's knowledge of the presence of the controlled substance where the arresting officer alleged that she had observed defendant in possession of the glass pipe prior to defendant dropping it, and had based her conclusion that it might contain crack cocaine on her professional training, her experience from prior arrests, and her recognition of the pipe as an instrument for smoking crack. Furthermore, the record indicated that the residue was of a sufficient quantity and character as confirmed by the criminalist who testified that the drug was visible and also testified to removing a portion of the residue from the pipe with a tiny scoop for testing.

APPEARANCES OF COUNSEL

Steven Banks, The Legal Aid Society, New York City (*Natalie Rea* of counsel), for appellant.

Charles J. Hynes, District Attorney, Brooklyn (*Marie John-Drigo* of counsel), for respondent.

OPINION OF THE COURT**MEMORANDUM.**

The order of the Appellate Term should be affirmed.

On appeal, defendant argues that the accusatory instrument, which alleged attempted criminal possession of a controlled substance in the seventh degree, was facially insufficient to show his knowledge of the controlled substance's presence. However, knowledge of possession of a controlled substance "may be proven circumstantially," and "possession suffices to permit the inference that possessors know what they possess" (*People v Mizell*, 72 NY2d 651, 656 [1988]).

Although defendant characterizes the self-described "burnt residue" as de minimis (*cf. State v Baker*, 912 SW2d 541, 545 [Mo Ct App 1995]), the record indicates otherwise. Both the accusatory instrument and the laboratory report refer to the presence of cocaine "residue" within the glass pipe. Notwithstanding defendant's contentions, the residue was of a sufficient quantity and character as confirmed by the criminalist who testified to removing a portion of the residue from the pipe with a tiny scoop for testing. Also, Police Officer Harrison stated that the drug was visible.

Finally, the arresting officer alleged that she had observed defendant in possession of the glass pipe prior to defendant dropping it, and had based her conclusion that it might contain crack cocaine on her professional training, her experience from prior arrests, and her recognition of the pipe as an instrument for smoking crack. Thus, the accusatory instrument was sufficient (*see People v Kalin*, 12 NY3d 225, 229-230, 230-232 [2009]; *Mizell*, 72 NY2d at 656-657).

Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, PIGOTT, RIVERA and ABDUS-SALAAM concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, in a memorandum.

COOPERSTOWN HOLSTEIN CORPORATION, Appellant, v TOWN OF MIDDLEFIELD, Respondent.

Submitted December 2, 2013; decided December 10, 2013

Reported below, 106 AD3d 1170.

Motion by Town of Ulysses et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served and an original and nine copies filed within seven days.

BRENDA CORNELL, Respondent, v 360 WEST 51ST STREET REALTY, LLC, et al., Defendants, and 360 W. 51ST STREET CORP., Appellant.

Submitted November 18, 2013; decided December 10, 2013

Reported below, 95 AD3d 50.

Motion to enlarge the record on appeal denied.

Judge ABDUS-SALAAM taking no part.

BRENDA CORNELL, Respondent, v 360 WEST 51ST STREET REALTY, LLC, et al., Defendants, and 360 W. 51ST STREET CORP., Appellant.

Submitted December 2, 2013; decided December 10, 2013

Reported below, 95 AD3d 50.

Motion by Council of New York Cooperatives & Condominiums for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed.

Judge ABDUS-SALAAM taking no part.

In the Matter of EMPIRE CENTER FOR NEW YORK STATE POLICY, Appellant, v TEACHERS' RETIREMENT SYSTEM OF THE CITY OF NEW YORK, Respondent.

In the Matter of EMPIRE CENTER FOR NEW YORK STATE POLICY, Appellant, v NEW YORK STATE TEACHERS' RETIREMENT SYSTEM, Respondent.

Submitted November 25, 2013; decided December 10, 2013

Reported below, 103 AD3d 593, 1009.

Motion by New York State United Teachers for leave to file a brief amicus curiae on the appeals herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and an original and nine copies filed within seven days.

Judge ABDUS-SALAAM taking no part.

EXECUTIVE PLAZA, LLC, Appellant, v PEERLESS INSURANCE COMPANY, Respondent.

Submitted November 25, 2013; decided December 10, 2013

See 717 F3d 114.

Motion by United Policyholders for leave to file a brief amicus curiae on consideration of the certified question herein granted and the proposed brief is accepted as filed.

EXECUTIVE PLAZA, LLC, Appellant, v PEERLESS INSURANCE COMPANY, Respondent.

Submitted December 2, 2013; decided December 10, 2013

See 717 F3d 114.

Motion by New York Public Adjusters Association for leave to file a brief amicus curiae on consideration of the certified question herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and an original and nine copies filed within seven days.

K2 INVESTMENT GROUP, LLC, et al., Respondents-Appellants, v AMERICAN GUARANTEE & LIABILITY INSURANCE COMPANY, Appellant-Respondent.

Submitted November 25, 2013; decided December 10, 2013

Reported below, 91 AD3d 401.

Motion by United Policyholders for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed.

Judge ABDUS-SALAAM taking no part.

K2 INVESTMENT GROUP, LLC, et al., Respondents-Appellants, v AMERICAN GUARANTEE & LIABILITY INSURANCE COMPANY, Appellant-Respondent.

Submitted December 2, 2013; decided December 10, 2013

Reported below, 91 AD3d 401.

Motion by New York Insurance Association, Inc., et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and an original and nine copies filed within seven days.

Judge ABDUS-SALAAM taking no part.

K2 INVESTMENT GROUP, LLC, et al., Respondents-Appellants, v
AMERICAN GUARANTEE & LIABILITY INSURANCE COMPANY,
Appellant-Respondent.

Submitted December 2, 2013; decided December 10, 2013

Reported below, 91 AD3d 401.

Motion by Complex Insurance Claims Litigation Association et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and an original and nine copies filed within seven days.

Judge ABDUS-SALAAM taking no part.

In the Matter of NORSE ENERGY CORP. USA, Appellant, v TOWN
OF DRYDEN et al., Respondents. DRYDEN RESOURCES AWARE-
NESS COALITION, Proposed Intervenor.

Submitted December 2, 2013; decided December 10, 2013

Reported below, 108 AD3d 25.

Motion by Town of Ulysses et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served and an original and nine copies filed within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CHUR-
CHILL ANDREWS, Appellant.

Submitted December 2, 2013; decided December 10, 2013

Reported below, 108 AD3d 729.

Motion for assignment of counsel granted and Lynn W.L. Fahey, Esq., Appellate Advocates, 2 Rector Street, 10th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v IVAN
CALAFF, Appellant.

Submitted November 25, 2013; decided December 10, 2013

Reported below, 103 AD3d 500.

Motion to strike Point II of appellant's brief denied.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ALEXANDER DOCKERY, Also Known as JOHN HARRIS, Appellant.

Submitted November 4, 2013; decided December 10, 2013

Reported below, 2012 NY Slip Op 76557(U).

Motion to vacate this Court's October 18, 2013 preclusion order granted. Motion to strike portions of the respondent's appendix and the related references in the respondent's brief granted.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v SAMUEL McLEAN, Appellant.

Submitted November 25, 2013; decided December 10, 2013

Reported below, 109 AD3d 670.

Motion for assignment of counsel granted and Danielle Neroni Reilly, Esq., 668 Madison Ave., Albany, New York 12208 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ADRIAN P. THOMAS, Appellant.

Submitted December 2, 2013; decided December 10, 2013

Reported below, 93 AD3d 1019.

Motion by New York Law School Post-Conviction Innocence Clinic for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and an original and nine copies filed within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ADRIAN P. THOMAS, Appellant.

Submitted December 2, 2013; decided December 10, 2013

Reported below, 93 AD3d 1019.

Motion by American Psychological Association for leave to appear amicus curiae on the appeal herein granted only to the

extent that the proposed brief is accepted as filed. Two copies of the brief must be served and an original and nine copies filed within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ADRIAN P. THOMAS, Appellant.

Submitted December 2, 2013; decided December 10, 2013

Reported below, 93 AD3d 1019.

Motion by Innocence Network for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served and an original and nine copies filed within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ADRIAN P. THOMAS, Appellant.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v PAUL AVENI, Appellant.

Submitted December 2, 2013; decided December 10, 2013

Reported below, *People v Thomas*, 93 AD3d 1019; *People v Aveni*, 100 AD3d 228.

Motion by District Attorneys Association of the State of New York for leave to file a brief amicus curiae on the appeals herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and an original and nine copies filed within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ADRIAN P. THOMAS, Appellant.

Submitted December 2, 2013; decided December 10, 2013

Reported below, 93 AD3d 1019.

Motion by New York City Bar Association for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and an original and nine copies filed within seven days.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. ROBERT I. REED,
Appellant, v JEFFREY TEDFORD, as Superintendent of Ad-
irondack Correctional Facility, Respondent.

Submitted November 12, 2013; decided December 10, 2013

Reported below, 110 AD3d 1123.

On the Court's own motion, appeal dismissed, without costs,
upon the ground that no substantial constitutional question is
directly involved. Motion for leave to appeal denied.

QUADRANT STRUCTURED PRODUCTS CO., LTD., Individually and
Derivatively on Behalf of ATHILON CAPITAL CORP., Plaintiff
Below, Appellant, v VINCENT VERTIN et al., Respondents.

Decided December 10, 2013

See 2013 WL 5962813, 2013 Del LEXIS 570.

Certification of questions by the Supreme Court of the State
of Delaware, pursuant to section 500.27 of the Rules of Practice
of the Court of Appeals (22 NYCRR 500.27), accepted and the
issues presented are to be considered after briefing and argu-
ment.

Concur: Chief Judge LIPPMAN and Judges GRAFFEO, READ,
SMITH, PIGOTT, RIVERA and ABDUS-SALAAM.

In the Matter of TYRONE D., Appellant, v STATE OF NEW YORK et
al., Respondents.

Submitted December 2, 2013; decided December 10, 2013

Reported below, 106 AD3d 1488, 1490.

Motion for poor person relief granted.

UNION SQUARE PARK COMMUNITY COALITION, INC., et al., Appel-
lants, v NEW YORK CITY DEPARTMENT OF PARKS AND RECRE-
ATION et al., Respondents.

Submitted December 2, 2013; decided December 10, 2013

Reported below, 107 AD3d 525.

Motion by New York State Senator Liz Krueger et al. for leave
to file a brief amici curiae on the appeal herein granted and the

proposed brief is accepted as filed. Two copies of the brief must be served and an original and nine copies filed within seven days.

UNION SQUARE PARK COMMUNITY COALITION, INC., et al., Appellants, v NEW YORK CITY DEPARTMENT OF PARKS AND RECREATION et al., Respondents.

Submitted December 2, 2013; decided December 10, 2013

Reported below, 107 AD3d 525.

Motion by Union Square Partnership et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed.

UNION SQUARE PARK COMMUNITY COALITION, INC., et al., Appellants, v NEW YORK CITY DEPARTMENT OF PARKS AND RECREATION et al., Respondents.

Submitted December 2, 2013; decided December 10, 2013

Reported below, 107 AD3d 525.

Motion by New Yorkers for Parks for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed.

UNION SQUARE PARK COMMUNITY COALITION, INC., et al., Appellants, v NEW YORK CITY DEPARTMENT OF PARKS AND RECREATION et al., Respondents.

Submitted December 2, 2013; decided December 10, 2013

Reported below, 107 AD3d 525.

Motion by Raritan Baykeeper, Inc., et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and an original and nine copies filed within seven days.

[4 NE3d 356, 981 NYS2d 346]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ARIEL MYERS, Appellant.

Decided December 12, 2013

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Third Judicial Department, from an order of that Court, entered April 25, 2013. The Appellate Division affirmed a judgment of the Rensselaer County Court (Andrew G. Ceresia, J.), which had convicted defendant, upon a jury verdict, of assault in the first degree and criminal possession of a weapon in the second degree.

On September 13, 2009, a fight broke out and crowds gathered at about 1:30 a.m. and again at 3:30 a.m. outside the victim's home. During the second fracas, the victim exited his home with a camera and started taking photographs of those involved. Profanity-laced comments were directed at the victim telling him to stop taking photographs. A gun was then fired and a .25 caliber bullet struck the victim in the head, causing him to sustain permanent injuries. At his trial defendant challenged County Court's *Molineux* ruling in which it permitted testimony about defendant wielding a .25 caliber handgun about 2¹/₂ months before the subject shooting.

People v Myers, 105 AD3d 1250, reversed.

HEADNOTE

Crimes — Proof of Other Crimes — Establishing Defendant's Identity

In a prosecution arising from a shooting, the admission of evidence of an uncharged crime allegedly committed by defendant for the purpose of establishing defendant's identity constituted an abuse of discretion. Because the evidence of defendant's guilt was not overwhelming, the error was not harmless.

APPEARANCES OF COUNSEL

Eugene P. Grimmick, Troy, for appellant.

Richard J. McNally, Jr., District Attorney, Troy (*Roman Griffith* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed and a new trial ordered.

Under the facts of this case, the admission of evidence of an uncharged crime allegedly committed by defendant for the purpose of establishing defendant's identity constituted an abuse of discretion (*see People v Robinson*, 68 NY2d 541, 549-550 [1986]; *People v Molineux*, 168 NY 264, 293 [1901]). Because the evidence of defendant's guilt is not overwhelming, the error is not harmless.

Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, PIGOTT, RIVERA and ABDUS-SALAAM concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed and a new trial ordered, in a memorandum.

[4 NE3d 352, 981 NYS2d 342]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v WENDELL PAYTON, Appellant.

Argued November 14, 2013; decided December 12, 2013

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Second Judicial Department, from an order of that Court, entered November 14, 2012. The Appellate Division (1) affirmed a judgment of the Suffolk County Court (C. Randall Hinrichs, J.), which had convicted defendant, upon a jury verdict, of robbery in the second degree, and (2) affirmed so much of an order of that court as had denied, without a hearing, that branch of a motion by defendant to vacate the judgment of conviction pursuant to CPL 440.10.

People v Payton, 100 AD3d 786, modified.

HEADNOTE

Crimes — Right to Counsel — Potential Conflict of Interest

In a robbery prosecution in which it became known after the verdict that defense counsel had been the target of an unrelated criminal investigation while defendant's trial had been proceeding, an order of the Appellate Division which had, among other things, affirmed the denial of defendant's motion to vacate his conviction without a hearing, was modified by remitting the case to the trial court for a hearing on the motion. Because a trial judge owes a duty independent of counsel to protect an accused's right to effective assistance of counsel, once a trial court becomes aware of facts from which it

appears that conflicting interests arguably exist, the judge must conduct a record inquiry of any defendant whose representation is potentially conflict-ridden in order to ascertain whether he or she has an awareness of the potential risks involved in that course and has knowingly chosen it. The failure to conduct such a hearing requires reversal only if the conflict is an actual one; reversal is mandated for a potential conflict only if the defendant can establish that the conflict operated on the defense. Automatic reversal is not required anytime the defendant's attorney is under investigation or being prosecuted by the same district attorney's office that is trying his client. An actual conflict would exist where a defense attorney was implicated in the crimes for which his client stood trial, but that was not the case here. Accordingly, to obtain relief, defendant must demonstrate at a hearing on his CPL 440.10 application that the conduct of his defense was in fact affected by the operation of the conflict of interest, or that the conflict operated on the representation.

APPEARANCES OF COUNSEL

Robert C. Mitchell, Legal Aid Society, Riverhead (Kirk R. Brandt of counsel), for appellant.

Thomas J. Spota, District Attorney, Riverhead (Glenn Green of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be modified by remitting the case to County Court for a hearing on defendant's CPL 440.10 motion and, as so modified, affirmed.

On April 6, 2007, defendant Wendell Payton was arrested and charged with one count of second-degree robbery (Penal Law § 160.10). About two weeks before defendant's trial, the district attorney's office executed a search warrant on defense counsel's law office. This development was not disclosed to defendant, County Court or the assistant district attorney prosecuting the People's case. On February 19, 2008, the jury convicted defendant as charged.

On April 16, 2008, when defendant appeared for sentencing, the judge revealed that after the verdict he had learned of a potential conflict of interest with respect to defense counsel's representation of defendant. The nature of the conflict was not placed on the record, but County Court referred to an off-the-record discussion with defense counsel and the assistant district attorney. The judge separately confirmed with defense counsel and defendant that they had discussed this matter. The judge then advised defendant that he was prepared to assign him new counsel, and defendant acknowledged that he wanted a new lawyer. County Court relieved defense counsel and rescheduled the sentencing hearing.

On or about June 23, 2008, defendant's new attorney moved to set aside the verdict pursuant to CPL 330.30. He argued that the People's investigation of defendant's trial counsel on unrelated criminal charges created an actual conflict of interest that should have been disclosed to defendant; and that, as a result, defendant's conviction had to be vacated because he did not waive the conflict. In a decision dated October 3, 2008, the judge denied the motion, concluding that the circumstances presented did not rise to the level of an actual conflict of interest, but constituted a potential conflict at most. In the judge's view, the execution of the search warrant did not necessarily alert the trial attorney that he himself was the target of a criminal investigation, rather than some other person or legal entity referenced in any material seized. Further, defendant made no claim or showing that the putative conflict operated on the defense. On October 6, 2008, the judge sentenced defendant to a determinate term of 13 years in prison, followed by five years of postrelease supervision. About two months later, defendant's former counsel was arrested and charged with fifth-degree possession of a controlled substance (Penal Law § 220.06); he pleaded guilty to this charge and, on April 9, 2009, was sentenced to a conditional discharge.

Defendant subsequently moved to set aside his conviction pursuant to CPL 440.10, again alleging an actual conflict of interest. In a decision dated June 7, 2010, County Court denied the motion without a hearing. He cited essentially the same reasons as in his earlier decision denying defendant's CPL 330.30 motion. Defendant sought leave to appeal, and the Appellate Division granted the application and calendared it with his direct appeal. In November 2012, the Appellate Division affirmed the judgment as well as the order, insofar as appealed from, with one Justice dissenting (100 AD3d 786 [2d Dept 2012]); on January 22, 2013, the dissenting Justice granted defendant's motion for leave to appeal.

The State and Federal Constitutions guarantee a criminal defendant legal representation that is "reasonably competent, conflict-free and singlemindedly devoted to the client's best interests" (*People v Harris*, 99 NY2d 202, 209 [2002]). A defendant is denied the right to effective assistance of counsel when, "absent inquiry by the court and the informed consent of defendant, defense counsel represents interests which are actually in conflict with those of defendant" (*People v McDonald*, 68 NY2d 1, 8 [1986]). Because the trial judge owes a duty independent

of counsel to protect an accused's right to effective assistance, once a trial court is

“aware of facts from which it appears that conflicting interests arguably exist, the Trial Judge must conduct a record inquiry of each defendant whose representation is potentially conflict-ridden in order to ascertain whether he or she ‘has an awareness of the potential risks involved in that course and has knowingly chosen it’ ” (*id.*, quoting *People v Gomberg*, 38 NY2d 307, 313-314 [1975]).

But even if the trial court fails to conduct such an inquiry and obtain defendant's informed consent, the error requires reversal only if the conflict is an actual one. Where the conflict is merely potential, reversal is mandated only if the defendant can establish that the conflict operated on the defense (*see People v Solomon*, 20 NY3d 91, 97 [2012]).

We reject defendant's request to require automatic reversal anytime the defense attorney is under investigation or being prosecuted by the same district attorney's office that is trying his client. Indeed, in *People v Konstantinides* (14 NY3d 1, 13 [2009]), we declined to adopt such a per se rule in a case where a defense attorney was accused of criminal misconduct (witness tampering, bribery and suborning perjury) in relation to a witness in his client's case. An actual conflict would exist where a defense attorney was implicated in the crimes for which his client stood trial, but that was not the situation in *Konstantinides* and is certainly not the case here. Accordingly, to obtain relief, defendant must demonstrate at a hearing on his 440.10 application that “the conduct of his defense was in fact affected by the operation of the conflict of interest, or that the conflict operated on the representation” (*People v Ortiz*, 76 NY2d 652, 657 [1990] [internal quotation marks omitted]).

Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, FIGOTT, RIVERA and ABDUS-SALAAM concur.

Order modified by remitting to County Court, Suffolk County, for a hearing on defendant's CPL 440.10 motion and, as so modified, affirmed, in a memorandum.

MANINDER BHUGRA, Appellant, v MASSACHUSETTS CASUALTY INSURANCE COMPANY et al., Respondents, et al., Defendants.

Decided December 12, 2013

Reported below, 105 AD3d 685.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

Judge RIVERA taking no part.

In the Matter of DAKOTA F., Alleged to be the Child of a Mentally Ill or Mentally Retarded Parent. ST. LAWRENCE COUNTY DEPARTMENT OF SOCIAL SERVICES, Appellant; ANGELA F., Respondent. (Proceeding No. 1.)

In the Matter of DESIREA F., Alleged to be the Child of a Mentally Ill or Mentally Retarded Parent. ST. LAWRENCE COUNTY DEPARTMENT OF SOCIAL SERVICES, Appellant; ANGELA F., Respondent. (Proceeding No. 2.)

Submitted December 2, 2013; decided December 12, 2013

Reported below, 110 AD3d 1151.

Motion for leave to appeal denied. Motion for a stay dismissed as academic.

GRAND PACIFIC FINANCE CORP., Respondent, v ALEXANDER ASHKENAZI et al., Defendants. AMIT LOUZON, Nonparty Appellant.

Submitted December 2, 2013; decided December 12, 2013

Reported below, 108 AD3d 425.

Motion for leave to appeal denied with \$100 costs and necessary reproduction disbursements. Motion for a stay dismissed as academic.

SHAWN GREEN, Appellant, v STATE OF NEW YORK, Respondent.

Submitted November 4, 2013; decided December 12, 2013

Reported below, 2013 NY Slip Op 73425(U).

Motion for reargument of motion for leave to appeal denied
[see 21 NY3d 1049 (2013)].

In the Matter of NEW YORK CITY ASBESTOS LITIGATION.

WEITZ & LUXENBERG P.C., Respondent, v GEORGIA-PACIFIC LLC,
Appellant.

Submitted October 28, 2013; decided December 12, 2013

Reported below, 109 AD3d 7.

Motion for leave to appeal dismissed upon the ground that
the order sought to be appealed from does not finally determine
the action within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. TALIV ALI, Ap-
pellant, v PETER S. FELDSTEIN, Respondent.

Submitted November 4, 2013; decided December 12, 2013

Reported below, 2013 NY Slip Op 74162(U).

Motion for reargument of motion for leave to appeal denied
[see 21 NY3d 861 (2013)].

In the Matter of ANNETTE PEREL, Respondent, v DANIEL MI-
CHAEL GONZALEZ, Appellant.

Submitted October 28, 2013; decided December 12, 2013

Reported below, 105 AD3d 552.

Motion for reargument of motion for leave to appeal denied
[see 21 NY3d 865 (2013)].

Judge ABDUS-SALAAM taking no part.

In the Matter of RUTH M. POLLACK, Admitted as RUTH MARIE
POLLACK, a Suspended Attorney, Appellant. GRIEVANCE COM-
MITTEE FOR THE TENTH JUDICIAL DISTRICT, Respondent.

Submitted October 7, 2013; decided December 12, 2013

Reported below, 110 AD3d 119; 2013 NY Slip Op 82216(U); 2013 NY Slip Op 82217(U);
2013 NY Slip Op 82218(U); 2013 NY Slip Op 82219(U).

On the Court's own motion, appeal taken from the order of disbarment dismissed upon the ground that no substantial constitutional question is directly involved; appeals from the other four orders dismissed upon the ground that those orders do not finally determine the proceeding within the meaning of the Constitution. Motion for leave to appeal from the order of disbarment denied; motions for leave to appeal from the other four orders dismissed upon the ground that those orders do not finally determine the proceeding within the meaning of the Constitution. Motion for ancillary relief dismissed as academic.

Chief Judge LIPPMAN and Judge ABDUS-SALAAM taking no part.

PASQUALE SICURANZA, Respondent, v JOAN McDONALD, Appellant.

Submitted October 28, 2013; decided December 12, 2013

Reported below, 102 AD3d 762.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In re THELEN LLP.

YANN GERON, as Chapter 7 Trustee of the Estate of THELEN LLP, Appellant, v SEYFARTH SHAW LLP, Respondent.

Decided December 12, 2013

See 736 F3d 213.

Certification of questions by the United States Court of Appeals for the Second Circuit, pursuant to section 500.27 of the Rules of Practice of the Court of Appeals (22 NYCRR 500.27), accepted and the issues presented are to be considered after briefing and argument.

Concur: Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, PIGOTT, RIVERA and ABDUS-SALAAM.

[4 NE3d 359, 981 NYS2d 349]

ADWOA GYABAAH, Respondent, v RIVLAB TRANSPORTATION CORP.,
Appellant, et al., Defendant. JEFFREY A. ARONSKY, P.C.,
Nonparty Respondent.

Decided December 17, 2013

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered January 10, 2013. The Appellate Division affirmed an order of the Supreme Court, Bronx County (Julia I. Rodriguez, J.), which had granted nonparty law firm Jeffrey A. Aronsky, P.C.'s motion to the extent of granting it leave to place a lien against the action, and denied the motion insofar as it sought an order enforcing a purported settlement and setting the firm's fee accordingly. The following question was certified by the Appellate Division: "Was the order of Supreme Court, as affirmed by this Court, properly made?"

Jeffrey A. Aronsky, P.C., plaintiff's outgoing attorney, commenced a personal injury action on plaintiff's behalf on August 25, 2010. By letter to Aronsky dated October 1, 2010, defendant's carrier tendered its \$1 million policy limits for purposes of settlement. Aronsky explained the proposal to plaintiff who, at that time, chose to accept the settlement. Accordingly, plaintiff executed a general release on October 5, 2010 and a hold harmless agreement on October 12, 2010. Aronsky advised plaintiff that he would hold the release pending receipt of defendant's affidavit of no excess insurance and advice from plaintiff as to whether she preferred to have the settlement structured. By December 9, 2010, plaintiff had retained new counsel, Kenneth A. Wilhelm, Esq. On that date, Wilhelm advised Aronsky that plaintiff did not wish to settle the case or have the release sent to defendant. Aronsky moved for an order enforcing what he contended was a \$1 million settlement, and setting his firm's contingency fee at one third of the recovery pursuant to plaintiff's retainer agreement.

Gyabaah v Rivlab Transp. Corp., 102 AD3d 451, affirmed.

HEADNOTE

Attorney and Client — Compensation — Contingency Fee — Action Not Settled

Plaintiff's former law firm's motion, insofar as it sought an order enforcing a purported settlement of plaintiff's personal injury action and setting of the

firm's fee, was properly denied. The action was not settled because the general release and the hold harmless agreement were never delivered to defendant, nor was the acceptance of the settlement offer otherwise communicated to defendant or its carrier.

APPEARANCES OF COUNSEL

Law Offices of Kral Clerkin Redmond Ryan Perry & Van Eten, LLP, Melville (*Elizabeth Gelfand Kastner* of counsel), for appellant.

Law Offices of Kenneth A. Wilhelm, New York City (*Barry Liebman* and *Susan R. Nudelman* of counsel), for respondent.

Pollack, Pollack, Isaac & De Cicco, New York City (*Brian J. Isaac* of counsel), for nonparty respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs, and the certified question answered in the affirmative.

This action was not settled because the general release and the hold harmless agreement were never delivered to defendant, nor was the acceptance of the settlement offer otherwise communicated to defendant or its carrier (*see White v Corlies*, 46 NY 467, 469 [1871]).

Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, PIGOTT and RIVERA concur; Judge ABDUS-SALAAM taking no part.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, with costs, and certified question answered in the affirmative, in a memorandum.

[4 NE3d 941, 981 NYS2d 640]

HERZL RAGINS, Appellant, v HOSPITALS INSURANCE COMPANY, INC., et al., Respondents.

Argued November 14, 2013; decided December 17, 2013

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered June 13, 2012. The Appellate Division (1) reversed, on the law, so much of an order of the Supreme

Court, Westchester County (J. Emmett Murphy, J.), as had denied those branches of defendants' motion which were, in effect, to dismiss so much of the complaint as sought to recover damages for breach of an insurance policy and for a judgment declaring that they were not obligated to indemnify the plaintiff for costs and the remaining amount of unpaid interest incurred in connection with an underlying medical malpractice action, (2) granted those branches of defendants' motion to dismiss so much of the complaint as sought to recover damages for breach of the subject insurance policy and for a judgment declaring that defendants were not obligated to indemnify the plaintiff for costs and the remaining amount of unpaid interest incurred in connection with the underlying action, and (3) remitted the matter to Supreme Court for the entry of a judgment, among other things, declaring that the defendants were not obligated to indemnify the plaintiff for costs and the remaining amount of unpaid interest incurred in connection with the underlying action.

Ragins v Hospitals Ins. Co., Inc., 96 AD3d 819, reversed.

HEADNOTE

Insurance — Excess Coverage — Interest on Amount in Excess of Primary Coverage Liability Limit — Insolvent Primary Carrier

In an action for breach of an insurance contract in which plaintiff insured claimed that defendant excess carrier was liable for interest on a sum that exceeded the liability limit which had been paid by the liquidator of the insolvent primary carrier toward an underlying medical malpractice judgment rendered against plaintiff, the liquidator's payment of the primary policy's liability limit triggered the excess carrier's duty to pay all remaining amounts in connection with the judgment, including interest, under the plain language of the primary and excess policies. The primary policy did not obligate the now-bankrupt primary insurer, and by extension its liquidator, to pay interest on any judgment against plaintiff if it had already paid the policy's liability limit, and under the excess policy, the excess carrier must cover "all sums," including interest, above that limit. The excess policy did not limit the definition of "sums" to any particular category of damages or liability and, in fact, did not define "sums" at all. In accord with common dictionary meanings, interest included in any judgment against plaintiff constitutes a "sum" of money that is traceable to the judgment against him for damages in satisfaction of the wrong he caused to an injured party. Therefore, if that prejudgment interest were "in excess" of the primary policy's liability limit, the excess carrier must pay it. Moreover, even if the primary carrier had remained solvent and paid the policy's liability limit, the excess carrier would still bear the responsibility for the remaining interest in light of the plain language of the excess policy.

APPEARANCES OF COUNSEL

Silverson, Pareres & Lombardi, LLP, New York City (*Joseph T. Pareres* of counsel), for appellant.

Shaub, Ahmuty, Citrin & Spratt, LLP, Lake Success (*Christopher Simone* of counsel), for respondents.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed and the case remitted to that court for consideration of issues raised but not determined on the appeal to that court.

Plaintiff brought this action for breach of an insurance contract, asserting that defendants Hospitals Insurance Company and HANYS Insurance Company (collectively HIC) must pay interest on a \$1,100,000 medical malpractice judgment against plaintiff under an excess professional liability insurance policy issued by HIC because the liquidator of the insolvent primary insurer has already paid the \$1,000,000 per occurrence liability limit of plaintiff's primary professional liability insurance policy, thus triggering the coverage of the excess policy. By an order dated June 13, 2012, the Appellate Division held that HIC was entitled to dismissal of plaintiff's breach of contract claim and remitted the matter to Supreme Court for the entry of a judgment, *inter alia*, declaring that HIC was not obligated to indemnify plaintiff for the remaining amount of unpaid interest incurred in connection with the underlying malpractice action (*see Ragins v Hospitals Ins. Co., Inc.*, 96 AD3d 819, 819-821 [2d Dept 2012]). Plaintiff appeals by permission of this Court (20 NY3d 853 [2012]). We conclude that, under the plain language of the primary and excess policies, the liquidator's payment of the primary policy's \$1,000,000 liability limit triggered HIC's duty to pay all remaining amounts in connection with the judgment, including interest, and we therefore reverse.

At the outset, the plain language of the primary policy does not obligate the now-bankrupt primary insurer, and by extension its liquidator, to pay interest on any judgment against plaintiff if it has already paid the \$1,000,000 liability limit of the primary policy toward the judgment. In particular, the "supplementary payments" section of the primary policy obligates the primary insurer to pay postjudgment interest only "before" it has "paid . . . that part of the judgment which does not exceed the limit of the company's liability thereon," and the primary insurer has no responsibility for interest after paying the \$1,000,000 liability limit.

Furthermore, under the excess policy, HIC must cover any professional liabilities, including interest, above the primary

policy's \$1,000,000 limit. In that regard, the excess policy states that HIC will pay "all sums" which are in excess of that limit and which plaintiff "shall become legally obligated to pay as damages." And, although the excess policy does not specifically mention interest as a covered "sum" of "damages," that is of no moment because the excess policy does not limit the definition of "sums" to any particular category of damages or liability, or otherwise exclude interest from its reach.

In fact, given that the excess policy does not define "sums" at all, that contractual term logically acquires its widely used meaning of "indefinite or specified amount[s] of money" (Merriam-Webster's Collegiate Dictionary [11th ed 2003], sum; see *Travelers Cas. & Sur. Co. v Certain Underwriters at Lloyd's of London*, 96 NY2d 583, 594 [2001] [using common dictionary definition of a term in a reinsurance contract that was not otherwise defined in the contract]). Similarly, the parties evidently intended that "damages" would retain its most common meaning, namely "[t]he sum of money which the law awards or imposes as pecuniary compensation, recompense, or satisfaction for an injury done or a wrong sustained as a consequence either of a breach of a contractual obligation or a tortious act" (Ballentine's Law Dictionary [3d ed 2010], damages). By those definitions, interest included in any judgment against plaintiff constitutes a "sum" of money that is traceable to the judgment against him for "damages" in satisfaction of the wrong he caused to an injured party. Therefore, if that prejudgment interest is "in excess" of the primary policy's \$1,000,000 liability limit, HIC must pay it. Indeed, even if there were any ambiguity as to whether the covered sums under the excess policy include interest, that ambiguity must be construed against HIC and in favor of plaintiff, thus providing coverage for that amount under the excess policy (see *Dean v Tower Ins. Co. of N.Y.*, 19 NY3d 704, 708 [2012]).

Applying the plain meaning of the primary and excess policies to the particular medical malpractice judgment against plaintiff at issue here, it is clear that the primary insurer's liquidator fulfilled its obligations under the primary policy, thereby triggering HIC's responsibility to pay the interest in excess of the primary policy's \$1,000,000 liability limit. Upon entry of the initial judgment against plaintiff, the liquidator paid plaintiff \$1,000,000 toward that judgment. At that point, the liquidator was no longer required to pay interest under the "supplementary payments" provision of the primary policy because that

further amount accrued only after the liquidator had already satisfied the liability limit of the primary policy in the manner specified by the “supplementary payments” provision. Thus, the additional interest on the judgment, as amended, constituted a “sum[] in excess of the limits of liability of the Underlying Policy,” which is covered by the excess policy. Accordingly, HIC had to pay the additional interest.

Observing that, in the event of the primary insurer’s insolvency, the excess policy expressly relieves HIC from any duty to “drop down” to cover any portion of the judgment that the primary insurer would be required to supply, HIC argues that plaintiff is improperly attempting to bypass that provision and force HIC to pay interest for which the primary insurer would be responsible had it not become insolvent. But, as explained, plaintiff does not impermissibly seek to have HIC “drop down” to fulfill any duty which otherwise would fall to the primary insurer if that insurer were still a going concern. Rather, if the primary insurer had remained solvent and paid the primary policy’s \$1,000,000 liability limit, HIC would still bear the responsibility for the remaining interest; that is simply its obligation under the plain language of the excess policy.

Dingle v Prudential Prop. & Cas. Ins. Co. (85 NY2d 657 [1995]) does not mandate a different result. *Dingle* involved an automobile insurance policy that covered the principal amount of any judgment against the insured driver up to the liability limit of the policy, and under the policy, the insurer additionally agreed to pay “all interest” that accrued between the date of the judgment against the insured driver and the date that the judgment was paid (*id.* at 659 n 1). The policy provision for postjudgment interest in excess of the liability limit was designed to comply with state regulations governing automobile insurance, which required insurers to pay postjudgment interest (*see id.* at 659-661; *see also* 11 NYCRR 60-1.1 [b]). After the plaintiff in *Dingle* prevailed in a bifurcated trial against the insured driver, the insurer paid its \$100,000 policy limit toward the principal amount of the judgment, and it also paid postjudgment interest in proportion to its liability limit. However, the insurer refused to pay interest on the total amount of the judgment, and after the plaintiff sued the insurer, the trial court granted summary judgment to the insurer. We affirmed that grant of summary judgment, explaining that the courts’ interpretation of insurance policies containing language similar to the policy acquired by the plaintiff, as well as the relevant state

regulations, compelled the insurer to pay interest only in proportion to the policy's limit of liability and not in relation to the entire judgment (*see Dingle*, 85 NY2d at 660-661).

Thus, *Dingle* stands for the proposition that an insurer generally does not assume responsibility for payments beyond its policy's liability limit, and that even when the relevant policy expressly covers interest above that limit in order to comply with state regulations, the policy still does not cover excess interest on the entire judgment against the insured.

Here, unlike the policy in *Dingle*, the primary policy does not expressly cover interest above the policy's liability limit, and the excess policy plainly covers "all sums" in excess of the primary policy's limit, necessarily including interest. Furthermore, in this case, there are no state regulations mandating that the primary insurer cover additional damages or interest beyond the primary policy's limit, nor do any regulations exempt HIC from its responsibility to pay all amounts in excess of the primary policy's limit.

Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, PIGOTT, RIVERA and ABDUS-SALAAM concur.

Order reversed, with costs, and case remitted to the Appellate Division, Second Department, for consideration of issues raised but not determined on the appeal to that court, in a memorandum.

[4 NE3d 944, 981 NYS2d 643]

TOWN OF OYSTER BAY, Appellant, v LIZZA INDUSTRIES, INC., Respondent.

TOWN OF OYSTER BAY, Appellant, v J.D. POSILICO, INC., et al., Respondents.

TOWN OF OYSTER BAY, Appellant, v HENDRICKSON BROS., INC., Respondent.

VILLAGE OF BABYLON, Appellant, v HENDRICKSON BROS., INC., Respondent.

VILLAGE OF LINDENHURST, Appellant, v HENDRICKSON BROS., INC., Respondent.

VILLAGE OF LINDENHURST, Appellant, v LIZZA INDUSTRIES, INC., Respondent.

TOWN OF OYSTER BAY, Appellant, v J.D. POSILICO, INC., Respondent.

TOWN OF OYSTER BAY, Appellant, v S. ZARA AND SONS CONTRACTING CORPORATION, Respondent.

TOWN OF OYSTER BAY, Appellant, v MARVEC ALLSTATE, INC., Respondent.

VILLAGE OF LINDENHURST, Appellant, v J.D. POSILICO, INC., Respondent.

Argued November 12, 2013; decided December 17, 2013

SUMMARY

APPEAL, in the first above-entitled action, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered April 24, 2012. The Appellate Division affirmed an order of the Supreme Court, Nassau County (Ute Wolff Lally, J.), which had granted a motion by defendant for summary judgment dismissing the complaint.

APPEAL, in the second above-entitled action, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered April 24, 2012. The Appellate Division affirmed, so much of an order of the Supreme Court, Nassau County (Karen V. Murphy, J.), as had granted that branch of the motion of defendant J.D. Posillico, Inc. to dismiss the complaint insofar as asserted against it, and granted the separate motion of defendant Lizza Industries, Inc., for summary judgment dismissing the complaint insofar as asserted against it.

APPEAL, in the third above-entitled action, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered April 24, 2012. The Appellate Division affirmed an order of the Supreme Court, Nassau County (Thomas Feinman, J.), which had granted a motion by defendant for summary judgment dismissing the complaint.

APPEAL, in the fourth above-entitled action, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered April 24, 2012. The Appellate Division affirmed an order of the Supreme Court, Suffolk County (Denise F. Molia, J.), which had granted a motion by defendant for summary judgment dismissing the complaint.

APPEAL, in the fifth above-entitled action, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered April 24, 2012. The Appellate Division affirmed an order of the Supreme Court, Suffolk County (Denise F. Molia, J.), which had granted a motion by defendant for summary judgment dismissing the complaint.

APPEAL, in the sixth above-entitled action, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered April 24, 2012. The Appellate Division affirmed an order of the Supreme Court, Suffolk County (Arthur G. Pitts, J.), which had granted a motion by defendant for summary judgment dismissing the complaint.

APPEAL, in the seventh above-entitled action, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered April 24, 2012. The Appellate Division affirmed so much of an order of the Supreme Court, Nassau County (Karen V. Murphy, J.), as had, upon renewal, granted that branch of a motion by defendant which was to dismiss the complaint.

APPEAL, in the eighth above-entitled action, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered April 24, 2012. The Appellate Division affirmed an order of the Supreme Court, Nassau County (Daniel Palmieri, J.), which had, in effect, granted a motion by defendant which was, in effect, to dismiss the complaint.

APPEAL, in the ninth above-entitled action, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered April 24, 2012. The Appellate Division affirmed so much of an order of the Supreme Court, Nassau County (Daniel Palmieri, J.), as had granted that branch of a motion by defendant to dismiss the complaint.

APPEAL, in the tenth above-entitled action, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered April 24, 2012. The Appellate Division affirmed so much of an order of the Supreme Court, Suffolk County (Paul J. Baisley, Jr., J.), which had granted a motion by defendant to dismiss the complaint.

Town of Oyster Bay v Lizza Indus., Inc., 94 AD3d 1094, affirmed.

Town of Oyster Bay v J.D. Posillico, Inc., 94 AD3d 1093, affirmed.

Town of Oyster Bay v Hendrickson Bros., Inc., 94 AD3d 1092, affirmed.

Village of Babylon v Hendrickson Bros., Inc., 94 AD3d 1100, affirmed.

Village of Lindenhurst v Hendrickson Bros., Inc., 94 AD3d 1100, affirmed.

Village of Lindenhurst v Lizza Indus., Inc., 94 AD3d 1102, affirmed.

Town of Oyster Bay v J.D. Posillico, Inc., 94 AD3d 1093, affirmed.

Town of Oyster Bay v S. Zara & Sons Contr. Corp., 94 AD3d 1094, affirmed.

Town of Oyster Bay v Marvec Allstate, Inc., 94 AD3d 1094, affirmed.

Village of Lindenhurst v J.D. Posillico, Inc., 94 AD3d 1101, affirmed.

HEADNOTES

Limitation of Actions — When Cause of Action Accrues — Agreement for Benefit of Third Persons

1. Actions by municipalities alleging continuing public nuisance arising from defendants' construction of a sewer system, were barred by the six-year period applicable to breach of contract actions, since the gravamen of the complaints was that defendants, through their alleged faulty construction, breached their duty to plaintiffs under the protection clauses in the public works contracts, requiring defendants to restore plaintiffs' roadways to their "usual condition" after the sewer construction was complete, and the actions were commenced 16 years after completion of the construction. In cases against architects or contractors, the accrual date for statute of limitations purposes is completion of performance. Even if, as here, the plaintiff is not a party to the underlying construction contract, the claim may accrue where the plaintiff is not a stranger to the contract, and the relationship between the plaintiff and the defendant is the functional equivalent of privity. That plaintiffs did not own the sewer lines defendant constructed and the contracting counties never intended to transfer ownership of the sewer system to plaintiffs once construction was complete did not diminish plaintiffs' status as intended beneficiaries of the contracts. Moreover, while plaintiffs had no involvement or control over the construction process, plaintiffs, at the very least, consented to the sewer construction project and allowed defendants to perform excavation and other construction work on their property. In any case, there was not such a complete "lack of privity" that plaintiffs' claims should not fall under the general rule of accrual.

Limitation of Actions — When Cause of Action Accrues — Continuous Wrong Doctrine — Public Works Contract

2. Defendant contractors' allegedly defective performance under public works contracts with two counties for sewer construction work did not give

rise to successive causes of action under the continuous wrong doctrine, and plaintiff municipalities' continuing nuisance claims, which were interposed more than three years after defendants substantially completed the construction work, were time-barred even if the claims could be considered independent causes of action that did not arise from the contracts. Although plaintiffs alleged that the injuries to their property were ongoing, defendants' tortious conduct consisted of discrete acts, i.e., negligent excavation and backfilling, that ceased upon completion of the sewer construction over 20 years ago. Plaintiffs also did not allege the existence of an "unlawful encroachment" on their property, or a "continuous interference" with their property easements.

APPEARANCES OF COUNSEL

Carman, Callahan & Ingham, LLP, Farmingdale (*Michael F. Ingham* of counsel), for appellants in the first through tenth above-entitled actions.

Devitt Spellman Barrett, LLP, Smithtown (*John M. Denby* and *William J. Barrett* of counsel), for Lizza Industries, Inc. and another, respondents in the first, third, fourth, fifth and sixth above-entitled actions.

White Fleischer & Fino, LLP, New York City (*Jared T. Greisman* and *Renee S. Schwartz* of counsel), for Marvec Allstate, Inc., Agovino & Asselta, *LLP*, Mineola (*Joseph P. Asselta* and *David A. Loglisci* of counsel), for J.D. Posillico, Inc., and *Wade Clark Mulcahy*, New York City (*Robert J. Cosgrove* and *Cheryl D. Fuchs* of counsel), for S. Zara and Sons Contracting Corporation, respondents in the second, seventh, eighth, ninth and tenth above-entitled actions.

Dennis M. Brown, County Attorney, Hauppauge (*Christopher A. Jeffreys* of counsel), for County of Suffolk, amicus curiae in the first through tenth above-entitled actions.

Couch White LLP, Albany (*Jeremy M. Smith* of counsel), for Associated General Contractors of New York State, LLC and another, amici curiae in the first through tenth above-entitled actions.

Plunkett Cooney, Bloomfield Hills, Michigan (*Mary Massaron Ross* and *Karen E. Beach* of counsel), and *Goldberg Segalla*, Albany, for DRI - The Voice of the Defense Bar, amicus curiae in the first through tenth above-entitled actions.

OPINION OF THE COURT

MEMORANDUM.

The orders of the Appellate Division should be affirmed, with costs.

This litigation arises out of defendants' construction of a sewer system throughout Nassau and Suffolk Counties (the

Counties), including areas under plaintiffs' jurisdiction. In the 1970s, the Counties entered into public works contracts with defendants to perform the sewer construction work. The Counties included "protection clauses" in the contracts, which incorporated statutory language from County Law § 263 requiring defendants to restore plaintiffs' roadways to their "usual condition" after the sewer construction was complete.

Defendants completed their sewer construction work at various points in the 1970s and 1980s. Sometime thereafter, the areas surrounding the sewer lines settled, causing damage to plaintiffs' adjacent roadways, sidewalks, and curbs.

Plaintiffs commenced these 10 related actions in July 2009 alleging a single cause of action in continuing public nuisance. Plaintiffs claimed that defendants "committed faulty workmanship under [the] contracts" by, among other things, "failing to properly excavate and backfill the sewer trenches" and "failing to provide adequate subjacent support to plaintiffs['] roadways, curbs, gutters and other facilities both during and after actual construction operations." This "faulty workmanship," plaintiffs alleged, "created a continuing public nuisance."

Supreme Court dismissed the complaint in each action, and the Appellate Division affirmed in 10 separate decisions. In its lead decision, *Village of Lindenhurst v J.D. Posillico, Inc.* (94 AD3d 1101 [2d Dept 2012]), the court held that, viewing the complaint as asserting the Village's rights as a third-party beneficiary to the sewer construction contract, "the action is barred by the six-year statute of limitations for a cause of action alleging breach of contract" (94 AD3d at 1102). Noting the rule from *City School Dist. of City of Newburgh v Stubbins & Assoc.* (85 NY2d 535 [1995]) (*Newburgh*) that a cause of action arising out of defective construction accrues upon completion of the contractual work, the court stated that this rule applies to actions commenced by a third-party beneficiary to the contract (*see id.*). The court also rejected the Village's argument that "the conduct giving rise to the alleged nuisance is ongoing, thereby giving rise to successive causes of action" (*id.*).

The Appellate Division held that the other nine actions were "time-barred for the reasons stated" in *Village of Lindenhurst* (*see Town of Oyster Bay v Lizza Indus., Inc.*, 94 AD3d 1094, 1094 [2d Dept 2012]; *Town of Oyster Bay v J.D. Posillico, Inc.*, 94 AD3d 1093, 1093 [2d Dept 2012]; *Town of Oyster Bay v Hendrickson Bros., Inc.*, 94 AD3d 1092, 1092 [2d Dept 2012]; *Village of Babylon v Hendrickson Bros., Inc.*, 94 AD3d 1100, 1100

[2d Dept 2012]; *Village of Lindenhurst v Hendrickson Bros., Inc.*, 94 AD3d 1100, 1101 [2d Dept 2012]; *Village of Lindenhurst v Lizza Indus., Inc.*, 94 AD3d 1102, 1102 [2d Dept 2012]; *Town of Oyster Bay v J.D. Posillico, Inc.*, 94 AD3d 1093, 1093 [2d Dept 2012]; *Town of Oyster Bay v S. Zara & Sons Contr. Corp.*, 94 AD3d 1094, 1094 [2d Dept 2012]; *Town of Oyster Bay v Marvec Allstate, Inc.*, 94 AD3d 1094, 1094 [2d Dept 2012]). The Court granted plaintiffs leave to appeal (20 NY3d 854 [2012]) and we now affirm.

A breach of contract action must be commenced within six years from the accrual of the cause of action (*see* CPLR 203 [a]; 213 [2]). “In cases against architects or contractors, the accrual date for Statute of Limitations purposes is completion of performance” (*Newburgh*, 85 NY2d at 538, citing *Sosnow v Paul*, 36 NY2d 780 [1975]). This rule applies “no matter how a claim is characterized in the complaint” because “all liability” for defective construction “has its genesis in the contractual relationship of the parties” (*Newburgh*, 85 NY2d at 538, citing *Sears, Roebuck & Co. v Enco Assoc.*, 43 NY2d 389, 396 [1977]). Even if the plaintiff is not a party to the underlying construction contract, the claim may accrue upon completion of the construction where the plaintiff is not a “stranger to the contract,” and the relationship between the plaintiff and the defendant is the “functional equivalent of privity” (*Newburgh*, 85 NY2d at 538-539 [internal quotation marks omitted]).

Here, the gravamen of the complaints is that defendants, through their alleged faulty construction, breached their duty to plaintiffs under the protection clauses in the public works contracts. In fact, plaintiffs specifically allege that defendants “committed faulty workmanship under said contracts.” Although characterized as “continuing public nuisance” causes of action, plaintiffs’ “claim[s] aris[e] out of defective construction” and thus “accrue[d] on date of completion” (*Newburgh*, 85 NY2d at 538).

The Appellate Division properly applied *Newburgh* to these actions commenced by third-party beneficiaries to the construction contracts. *Newburgh* extended the completion of performance accrual rule to actions against architects or contractors brought by “intended beneficiar[ies]” of construction contracts (*id.*). Here, the Counties contracted with defendants to install the sewer system for the benefit of municipalities like plaintiffs, a fact which was surely “known to all parties at the time the contracts were negotiated” (*id.*).

Although plaintiffs do not dispute that they are third-party beneficiaries, they seek to distinguish *Newburgh* on several bases, noting that they do not own the sewer lines defendants constructed and the Counties never intended to transfer ownership of the sewer system to plaintiffs once construction was complete. But *Newburgh* is not limited to owners of real property and the Counties' intention to retain ownership of the sewer lines does not diminish plaintiffs' status as intended beneficiaries of the contracts. Plaintiffs further argue that, unlike the plaintiff beneficiary in *Newburgh*, they had no involvement or control over the construction process (*see id.* at 538-539). However, it is undisputed that plaintiffs, at the very least, consented to the sewer construction project initiated by the Counties and allowed defendants to perform excavation and other construction work on their property. In any case, we cannot say that there is such a complete "lack of privity" that plaintiffs' claims should "not fall under the general rule of accrual" articulated in *Newburgh* (*id.* at 538).

[1] Accordingly, *Newburgh* controls and plaintiffs' causes of action accrued upon defendants' completion of performance under the public works contracts. According to plaintiffs, defendants completed construction of the sewers, at the latest, by 1987. Assuming plaintiffs' claims accrued in 1987, plaintiffs had until 1993 to timely commence these actions. Because they waited until 2009 (16 years too late), plaintiffs' actions are plainly time-barred.

Even if plaintiffs' continuing nuisance claims could be considered independent causes of action that do not arise from the contracts—thus avoiding dismissal under *Newburgh*—the actions were still properly dismissed as time-barred. An action to recover damages for injury to property must be commenced within three years of the date of the injury (*see* CPLR 214 [4]). It is well-settled, however, that injuries to property caused by a continuing nuisance involve a "continuous wrong" and, therefore, generally give rise to successive causes of action that accrue each time a wrong is committed (*see e.g. Jensen v General Elec. Co.*, 82 NY2d 77, 85 [1993]; *509 Sixth Ave. Corp. v New York City Tr. Auth.*, 15 NY2d 48, 52 [1964]; *see also Covington v Walker*, 3 NY3d 287, 292 [2004], *cert denied* 545 US 1131 [2005]).

[2] While plaintiffs assert that the continued presence of roadway defects caused by defendants' faulty construction constitutes a continuing public nuisance, the Appellate Division

properly rejected this theory. Although plaintiffs allege that the injuries to their property are ongoing, defendants' tortious conduct consisted of discrete acts (i.e., negligent excavation and backfilling) that ceased upon completion of the sewer construction over 20 years ago (*cf. Bloomingdales, Inc. v New York City Tr. Auth.*, 13 NY3d 61, 65 [2009] [trespass and nuisance claims "not tied to (a) single negligent act" and thus constituted "successive causes of action"]; *New York Seven-Up Bottling Co. v Dow Chem. Co.*, 96 AD2d 1051, 1052 [2d Dept 1983], *affd* 61 NY2d 828 [1984] [finding no "continuing tort or torts" where "there was one tortious act complained of," and noting that "the accrual date does not change as a result of continuing consequential damages"]). Plaintiffs also have not alleged the existence of an "unlawful encroachment" on their property (*Bloomingdales*, 13 NY3d at 66; *see 509 Sixth Ave. Corp.*, 15 NY2d at 52), or a "continuous interference" with their property easements (*Cranesville Block Co. v Niagara Mohawk Power Corp.*, 175 AD2d 444, 446 [3d Dept 1991]). Accordingly, defendants' alleged wrongs do not give rise to successive causes of action under the continuous wrong doctrine, and plaintiffs' claims, which were interposed more than three years after defendants substantially completed the construction work, are time-barred (*see 509 Sixth Ave. Corp.*, 15 NY2d at 51-52).

SMITH, J. (concurring). These are tort actions—specifically, lawsuits based on damage to plaintiffs' property by allegedly negligent construction—and are barred by the statute of limitations applicable to such cases, for the reasons explained in the last two paragraphs of the majority's memorandum. The rest of the memorandum, which treats these cases as arising out of construction contracts and governed by the rule of *City School Dist. of City of Newburgh v Stubbins & Assoc.* (85 NY2d 535 [1995]), is a misapplication of the *Newburgh* rule.

Newburgh was an action by an owner against a builder for the defective construction of a school library. We applied in that case the previously-established rule that "the accrual date for Statute of Limitations purposes is completion of performance" (*id.* at 538). The plaintiff, the school district that owned the library, argued that this rule was inapplicable because the school district had no contract with the builder. The contract had been entered into by the school district's predecessor as owner of the building, the Urban Development Corporation. We rejected the school district's argument, saying:

“Plaintiff . . . was not a stranger to the contract. UDC undertook construction of the library on behalf of plaintiff, and plaintiff was the intended beneficiary of the contract. That fact, and the intended purpose of the building, was known to all parties at the time the contracts were negotiated. Plaintiff reviewed and approved the architectural plans and specifications. It retained control of the budget and change orders during construction. Plaintiff also had a representative at the construction site on a daily basis. Such a relationship—even pleaded by plaintiff in support of its claim of negligent design and construction—was the ‘functional equivalent’ of privity” (*id.* at 538-539).

The differences between this case and *Newburgh* are glaring. Plaintiffs here never owned the sewers and the Counties were not building them on plaintiffs’ behalf. So far as the record shows, plaintiffs had no involvement at all with their construction—much less a representative at the construction site. The majority concludes that plaintiffs here, like the plaintiff in *Newburgh*, are not strangers to the contracts, but that is true only in the most attenuated sense. The contracts between the Counties and the contractors are not in the record, but the only clause that anyone claims has anything to do with plaintiffs is the so-called “protection clause,” quoted in an affidavit submitted to Supreme Court. It says:

“The Contractor shall conduct his work so as to interfere as little as possible with private business and public travel, and shall protect from damage all buildings or other public or private structures, lawns, terraces, trees, curbs, gutters, flagging, crosswalks, water pipes, hydrants, electric lights, traffic control devices, telephone poles, water stop cocks, manholes, has [sic] pipes, conduits, and other underground appurtenances on the line of the work, and adjacent thereto, and at his own cost, unless otherwise determined by the Engineer, repair or replace immediately to the satisfaction of the respective owners and the Engineer, any of the aforementioned items which may become damaged or displaced at ant [sic] time during the progress of the work.”

This clause generally protects nonparties to the contract, including plaintiffs, from damage to their “buildings or other . . . structures . . . on the line of the work, and adjacent

thereto.” It is true that plaintiffs, like most or all of the property owners in the area, were third-party beneficiaries of the contract by virtue of the protection clause, but that is irrelevant, for no one has ever claimed the clause was violated. Plaintiffs are not suing because any of their structures were damaged in the course of the work. Rather, they allege that defendants were negligent in failing to backfill sewer trenches properly and that therefore plaintiffs’ roadways, lacking sufficient support, were caused to subside and their curbs, gutters and sidewalks to settle and crack. Plaintiffs could bring these identical cases if the protection clause did not exist. Thus the cases do not arise, as *Newburgh* did, out of a relationship between plaintiffs and defendants akin to contractual privity.

Because the contracts have nothing to do with this case, the governing accrual rule is the usual one in tort cases: the cause of action accrued when injury was inflicted (*Schmidt v Merchants Despatch Transp. Co.*, 270 NY 287, 300 [1936]). That occurred when defendants’ alleged negligence caused plaintiffs’ roadways to be without sufficient support (see *Macrose Realty Corp. v City of New York*, 49 AD2d 847 [1st Dept 1975]). It does not matter, under *Schmidt*, that plaintiffs did not know of the injury at the time, or that consequential damages resulted from the injury years later. Because, as the majority correctly says, there was no “continuing public nuisance” or other continuing tort in this case, the actions are time-barred.

Thus, the majority’s error in applying a construction-contract, rather than a tort, analysis in this case does not alter the result. It may alter the results in future cases, however, and, perhaps ironically, may be a boon to future plaintiffs. The majority seems to hold that, if a tort plaintiff happens to be a potential third-party beneficiary under the protection clause of a construction contract, the tort statute of limitations does not begin to run until construction is complete—a time that will usually be later, and sometimes many years later, than the time when injury is inflicted. Thus the result of today’s decision may be to permit the litigation of many stale claims against allegedly negligent contractors.

Judges GRAFFEO, READ, PIGOTT, RIVERA and ABDUS-SALAAM concur; Judge SMITH concurs in result in an opinion in which Chief Judge LIPPMAN concurs.

In each case: Order affirmed, with costs, in a memorandum.

In the Matter of RICKEY CLARK, Appellant, v PHILIP HEATH, Respondent.

Submitted November 12, 2013; decided December 17, 2013

Reported below, 2013 NY Slip Op 74403(U).

Motion for reargument of motion for leave to appeal denied [see 22 NY3d 910 (2013)].

In the Matter of ZEENA JENKINS-MOORE, Respondent, v JAMES SMITH, Appellant.

Submitted November 18, 2013; decided December 17, 2013

Reported below, 108 AD3d 544.

Motion for reargument of motion for leave to appeal denied [see 22 NY3d 852 (2013)].

NELLA MANKO, Appellant, v AETNA HEALTH, INC., et al., Respondents.

Submitted November 12, 2013; decided December 17, 2013

Reported below, 105 AD3d 814; 2013 NY Slip Op 84069(U).

Motion, insofar as it seeks leave to appeal from the portion of the April 2013 Appellate Division order affirming so much of Supreme Court's order as granted the motions to dismiss the complaint, denied; motion for leave to appeal otherwise dismissed upon the ground that the remainder of the April 2013 Appellate Division order and the September 2013 Appellate Division order do not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

Judge ABDUS-SALAAM taking no part.

In the Matter of SUARNA MEHULIC, Appellant, v STATE BOARD FOR PROFESSIONAL MEDICAL CONDUCT, Respondent.

Submitted November 12, 2013; decided December 17, 2013

Reported below, 107 AD3d 1066.

Motion for reconsideration of this Court's October 15, 2013 dismissal order denied [see 22 NY3d 911 (2013)].

MIDORIMATSU, INC., Appellant, v HUI FAT COMPANY, Respondent, et al., Defendants.

Submitted November 4, 2013; decided December 17, 2013

Reported below, 99 AD3d 680.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]).

MRI ENTERPRISES, INC., Appellant, v COMPREHENSIVE MEDICAL CARE OF NEW YORK, P.C., Respondent.

Submitted November 4, 2013; decided December 17, 2013

Reported below, 2013 NY Slip Op 72766(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

ANTHONY NASTASI et al., Respondents, v COUNTY OF SUFFOLK et al., Defendants, and CHICAGO TITLE INSURANCE COMPANY, Appellant.

Submitted November 12, 2013; decided December 17, 2013

Reported below, 106 AD3d 1064.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RUSSELL YOUNG, Appellant.

Submitted November 4, 2013; decided December 17, 2013

Reported below, 108 AD3d 1232.

Motion for reargument of motion for leave to appeal denied [*see* 22 NY3d 853 (2013)]. Motion for poor person relief dismissed as academic.

PHELPS CORPORATION, Respondent, v ROBERT D. JONES, Also Known as ROBERT DILLARD JONES, Appellant, et al., Defendants.

Submitted November 4, 2013; decided December 17, 2013

Reported below, 108 AD3d 814.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of STARR L. ROSHIA, Respondent, v CHRISTOPHER J. THIEL, Appellant.

Submitted November 12, 2013; decided December 17, 2013

Reported below, 110 AD3d 1490, 1493 (Appeal Nos. 2 and 3).

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order that affirmed Family Court's order denying father's objections to the Support Magistrate's denial of father's motion to vacate, dismissed upon the ground that such portion of the order does not finally determine the proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied.

In the Matter of MARK S. WALLACH, as Chapter 7 Trustee for NORSE ENERGY CORP. USA, Appellant, v TOWN OF DRYDEN et al., Respondents. DRYDEN RESOURCES AWARENESS COALITION, Proposed Intervenor.

Submitted November 12, 2013; decided December 17, 2013

Reported below, 108 AD3d 25.

Motion to substitute Mark S. Wallach, as Chapter 7 Trustee for Norse Energy Corp. USA, as party appellant herein for Norse Energy Corp. USA granted.

In the Matter of CYNTHIA YOUNG, Appellant, v WILLIAM FRUCI et al., Respondents, and PAUL J. SAUSVILLE, Respondent.

Submitted December 30, 2013; decided December 31, 2013

Reported below, 112 AD3d 1138.

Motion for leave to appeal denied. The Court of Appeals restates the rule that denial of a motion for leave to appeal is not equivalent to an affirmance and has no precedential value (see *Matter of Marchant v Mead-Morrison Mfg. Co.*, 252 NY 284, 297-298 [1929, Cardozo, Ch. J.]).
